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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETINGS

January 20, 2026

WEBVTT

1
00:00:09.710 --> 00:00:12.680
Boardroom: Good to go? Yes, we are ready.

2
00:00:13.300 --> 00:00:21.700
Boardroom: Alright, very good. I'm gonna call to order the Berkeley City Council meeting. Today is Tuesday, January, excuse me, January 20th, 2026.

3
00:00:21.820 --> 00:00:24.060
Boardroom: And I'd like to start off with a roll, please.

4
00:00:24.240 --> 00:00:28.809
Boardroom: Okay, calling the roll, Councilmember Kessarwani? Here.

5
00:00:29.120 --> 00:00:30.080
Boardroom: Taplin?

6
00:00:30.080 --> 00:00:30.860
Terry Taplin: Presidents.

7
00:00:31.150 --> 00:00:39.240
Boardroom: Bartlett? Present. Tregeb? Present. O'Keefe? Here. Blackaby? Here. Lunapara?

8
00:00:39.420 --> 00:00:51.580
Boardroom: Here. Humbert? Present. And Mayor Ishii? Here. Okay, all present. Thank you very much. So, it is the first meeting backed after our, winter…

9
00:00:51.600 --> 00:01:00.149
Boardroom: council recess, and, we have been taking turns saying the land acknowledgement statement, so I'm… beginning the year, I'm gonna start us off.

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10
00:01:00.320 --> 00:01:14.360
Boardroom: So the City of Berkeley recognizes that the community we live in was built on the territory of Huchun, the ancestral and unceded lands of the Chocheno-speaking Ohlone people, the ancestors and descendants of the sovereign Verona Band of Alameda County.

11
00:01:14.360 --> 00:01:21.070
Boardroom: This land was, and continues to be, of great importance to all of the Ohlone tribes and descendants of the Verona Band.

12
00:01:21.180 --> 00:01:34.769
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay.

13
00:01:34.930 --> 00:01:44.529
Boardroom: We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

14
00:01:44.600 --> 00:01:56.490
Boardroom: As stewards of the law regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today.

15
00:01:56.490 --> 00:02:04.940
Boardroom: The City of Berkeley will continue to build relationships with the Lijan tribe, and to create meaningful actions that uphold the intention of this land acknowledgement.

16
00:02:05.180 --> 00:02:06.320
Boardroom: Thank you.

17
00:02:06.680 --> 00:02:09.650
Boardroom: Now moving on to our ceremonial items.

18
00:02:12.720 --> 00:02:19.470
Boardroom: So, for our ceremonial items this evening, we have the presentation of Berkeley's, Poet Laureates.

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19
00:02:19.580 --> 00:02:20.870
Boardroom: So…

20
00:02:28.520 --> 00:02:36.879
Boardroom: So tonight, we recognize Aya de Leon, Berkeley's 2024-2025 Poet Laureate, and thank her for her… where are you?

21
00:02:37.190 --> 00:02:39.720
Boardroom: Oh, there you are! There we go.

22
00:02:44.350 --> 00:02:59.979
Boardroom: And thank her for her extraordinary service to the city. Aya's work has powerfully uplifted poetry as a tool for justice, storytelling, and community connection. I had the honor of having her present a poem at my inauguration ceremony a little over a year ago.

23
00:03:00.070 --> 00:03:10.570
Boardroom: I thank her for her leadership, generosity, and vision, which have strengthened the Berkeley's literary arts community in lasting ways, and we are deeply grateful for her contributions to our community.

24
00:03:10.740 --> 00:03:14.170
Boardroom: We are also honored to welcome Hanan Masri.

25
00:03:23.670 --> 00:03:26.049
Boardroom: as Berkeley's next Poet Laureate.

26
00:03:26.420 --> 00:03:44.549
Boardroom: Hanan is a long-time Berkeley educator, poet, and cultural worker whose practice centers land, ancestry, and intergenerational learning. Her work reflects a deep commitment to youth, community, and creative stewardship, and we are excited for the voice and also the mentorship that she will bring to the city in this role.

27
00:03:44.860 --> 00:03:50.830
Boardroom: At this time, I'm pleased to invite Aya de Leon and Hanan Masri forward for the ceremonial passing of the laurel.

28
00:04:04.070 --> 00:04:10.659
Boardroom: I do want to acknowledge that we have Berkeley's first Poet Laureate in the house as well.

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29
00:04:16.829 --> 00:04:27.280
Boardroom: So, this was supposed to be a ceremonial passing of the laurel, but because I'm always doing too much, we have an actual laurel.

30
00:04:27.640 --> 00:04:35.469
Boardroom: Hanan Masri, I'm overjoyed today to pass on the mantle of Berkeley's Poet Laureate to you tonight.

31
00:04:35.690 --> 00:04:47.690
Boardroom: As many of you know, I am no fan of royalty, as my multiple No Kings Line dances will attest. But I want to actually crown you tonight.

32
00:04:47.800 --> 00:04:53.989
Boardroom: Not with gold or jewels, but with a garland of olive branches.

33
00:05:00.310 --> 00:05:13.160
Boardroom: representing olive trees, which are so important to your people's homeland of Palestine, and as symbols of peace, which is so desperately needed in these times.

34
00:05:13.640 --> 00:05:24.929
Boardroom: I look forward to working with you during your term as cultural workers together in the fight against authoritarianism and injustice everywhere.

35
00:05:24.930 --> 00:05:35.279
Boardroom: To support and inspire our movements for democracy and liberation, which are growing in our commitment and capacity to win.

36
00:05:36.880 --> 00:05:45.110
Boardroom: Beware of Why? That's because I'm not an experienced lail maker.

37
00:05:55.980 --> 00:05:57.639
Boardroom: Did you want to say anything?

38
00:05:58.570 --> 00:06:01.160
Boardroom: Yeah, you've got… there we go.

39
00:06:04.840 --> 00:06:05.680
Boardroom: Wow.

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40
00:06:07.220 --> 00:06:08.260
Boardroom: Okay.

41
00:06:08.980 --> 00:06:12.399
Boardroom: Oh, thank you. Thank you, Berkeley, for this honor.

42
00:06:13.540 --> 00:06:16.769
Boardroom: What greats before and ahead?

43
00:06:17.610 --> 00:06:20.410
Boardroom: But maybe it's not a line of succession.

44
00:06:20.840 --> 00:06:23.290
Boardroom: Maybe we're all standing in a circle.

45
00:06:23.420 --> 00:06:26.669
Boardroom: And facing one another from all our star points.

46
00:06:27.280 --> 00:06:31.790
Boardroom: Thank you, Aya, already, for your encouragement and blessings.

47
00:06:32.690 --> 00:06:34.649
Boardroom: You are one of my aspirants.

48
00:06:35.220 --> 00:06:38.110
Boardroom: And to be relating as we are.

49
00:06:38.460 --> 00:06:41.760
Boardroom: Is a dream in its rose stage.

50
00:06:42.860 --> 00:06:50.670
Boardroom: Rafael Jesus Gonzalez, the city's first, and a member of my chosen family that I have just…

51
00:06:50.790 --> 00:06:57.319
Boardroom: come to understand. Thank you for your work, which reorients my heart when it is lost.

52

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00:06:57.480 --> 00:07:01.610
Boardroom: I carry one of your poems with me this eve to give me courage.

53
00:07:02.070 --> 00:07:08.310
Boardroom: There are so many people and places that are sacred to me, many of them rooted in this city.

54
00:07:08.860 --> 00:07:16.500
Boardroom: To Berkwood Hedge, the first racially integrated school in Berkeley, the place of my teaching grounds for nearly three decades.

55
00:07:16.660 --> 00:07:31.539
Boardroom: Thank you, Jane Friedman, Betsy Wilson, Marty Mogenson, Deanne Burke, and Donna Mickelson for taking a chance on a teacher in her embryonic stage, and giving her ample guidance and room to grow.

56
00:07:32.320 --> 00:07:40.820
Boardroom: Laura Farha, Hiban Numer, Dunya Al-Wan, Zappo Dickinson, Patricia West. I am alive because of you, and I mean that

57
00:07:41.760 --> 00:07:45.370
Boardroom: High Road Scholars, My dream camp, let's keep…

58
00:07:45.570 --> 00:07:50.290
Boardroom: Packing up suitcases and keep uncovering the resplendence of this world.

59
00:07:50.850 --> 00:07:58.480
Boardroom: And to my niece, my beloved, my life Valentine Samantha, I am with you, and I am for you.

60
00:07:58.670 --> 00:07:59.940
Boardroom: Remember that.

61
00:08:00.630 --> 00:08:03.550
Boardroom: And this poem is called Green.

62
00:08:05.630 --> 00:08:19.519
Boardroom: Oh, Berkeley, you gorgeous bohem, with your Tibetan bling, and your cracked pepper fil-fil-falafil, you know, the center, crispy and green, because I know you got that parsley from the Arab Spring.

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63
00:08:20.540 --> 00:08:29.289
Boardroom: Berkeley healed my heart. It was here that I met her. My heart leapt out of my chest like a hawthorn tree in winter.

64
00:08:29.440 --> 00:08:37.540
Boardroom: We listened to Al Green, foraged for city sorrel, stuffed that verdant tang in dough, and called it dinner.

65
00:08:38.360 --> 00:08:40.490
Boardroom: Ample, make this bed.

66
00:08:41.659 --> 00:08:55.539
Boardroom: I trace my finger across this map, past wars and gardens, azores and emeralds, from Hu Qian to here, a love note nestled between ancient humps of breaststone.

67
00:08:55.780 --> 00:08:58.050
Boardroom: Beirut City's Green Line.

68
00:08:58.200 --> 00:09:13.150
Boardroom: There are no grenades. Instead, sages, mint, thyme, marjoram, the shepherds keep a pinch of za'atar in their pockets, steady the nerves, so mac brightens the blood, and olives stain our DNA.

69
00:09:14.170 --> 00:09:21.910
Boardroom: Five hours, and I'm not sure when I'm going to leave this room, all of us there, midnight's children.

70
00:09:22.390 --> 00:09:30.349
Boardroom: How do you make your grass grow? Show us your W-2s. Do you pledge allegiance to any flag with a band of green?

71
00:09:30.900 --> 00:09:37.779
Boardroom: In between the minutes, I think of you, Berkeley, your placard-filled windows, your justice unhushed.

72
00:09:38.290 --> 00:09:43.040
Boardroom: California poppies blooming in your front yards will never put you to sleep.

73
00:09:43.760 --> 00:09:51.289

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Boardroom: I think of something I wish my mother had said, as Saturn's rings began to fade from around her neck.

74
00:09:52.360 --> 00:10:03.809
Boardroom: We, tender rascals of women, electric wires of green, red splashes, we will make our own incisions. We will never beg for thread.

75
00:10:04.090 --> 00:10:08.140
Boardroom: My daughter, find the loudest people in the room.

76
00:10:08.370 --> 00:10:10.500
Boardroom: And make friends with them.

77
00:10:11.600 --> 00:10:12.710
Boardroom: Thank you.

78
00:10:45.700 --> 00:10:50.529
Boardroom: Can we get a photo with the previous and current, please, for Laureate?

79
00:11:51.770 --> 00:11:52.510
Boardroom: Excellent.

80
00:12:17.730 --> 00:12:30.939
Boardroom: Thank you so much, everyone, for that beautiful moment. I'm guessing so many of you are here to support them, so thank you all so much for coming, as well, to see the ceremonial passing on and physical passing of the laurel.

81
00:12:31.210 --> 00:12:45.810
Boardroom: So we are now moving on to the rest of our meeting. Oh, one thing I want to say, is that, we have a new Vice Mayor. So, Vice Mayor Luna Parra is, is going to be the Vice Mayor for this next.

82
00:12:45.810 --> 00:12:53.770
Boardroom: how many months is it? I forget. But anyway, for the next few months, quarter, next quarter! Yeah, so welcome to your new role.

83
00:12:56.770 --> 00:12:57.650
Boardroom: Thank you so much.

84

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00:12:58.660 --> 00:13:11.139
Boardroom: And, and so the next thing on our agenda is our City Manager comments. City Manager, do you have any comments? I don't, thank you. Okay, thank you very much. So now I will take public comment on non-agenda matters.

85
00:13:12.230 --> 00:13:18.259
Boardroom: So… Okay, we'll draw 5 cards for the in-person…

86
00:13:18.670 --> 00:13:25.539
Boardroom: Speakers, and then, have one minute each, and then go to the speakers on participating remotely.

87
00:13:53.520 --> 00:13:58.240
Boardroom: Okay, there's 5 speakers for in-person public comments.

88
00:13:58.530 --> 00:14:01.659
Boardroom: Read your names, you can come up in any order.

89
00:14:02.020 --> 00:14:12.949
Boardroom: We have Diana Vendor, Luis Cunio, Steve, Tracy… Betsy Morris and Willie G.

90
00:14:13.950 --> 00:14:21.769
Boardroom: Okay, folks, I know you're excited, but I'm gonna ask that you continue your conversations outside, please. Thank you!

91
00:14:22.080 --> 00:14:25.359
Boardroom: Thank you so much, especially to our young visitors.

92
00:14:27.660 --> 00:14:29.760
Boardroom: Okay, if you heard your name.

93
00:14:30.250 --> 00:14:33.980
Boardroom: Please come on up to the front, and whoever's up first can go.

94
00:14:39.570 --> 00:14:44.959
Boardroom: Good evening, City Council members. My name is Betsy Morris. I'm,

95
00:14:45.100 --> 00:14:55.440

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Boardroom: speaking here as a member of the East Bay Gray Panthers, and a member of the statewide Affordable California Coalition.

96
00:14:55.550 --> 00:15:08.000
Boardroom: about a hundred, seemingly 100, but it might have been fewer, went up to Sacramento last week, and 6, 8 gray panthers, some of us hobbling, like.

97
00:15:08.480 --> 00:15:15.770
Boardroom: very slowly, testified in support of AB1157, which was

98
00:15:16.180 --> 00:15:29.099
Boardroom: Brought forward to the Judicial Committee. Four Democrats voted for it, 3 Republicans voted against it, and 4 Democrats simply did not show up.

99
00:15:29.550 --> 00:15:36.419
Boardroom: for this… Measure which would have lowered the cap and lessened the risk of homelessness.

100
00:15:36.560 --> 00:15:46.710
Boardroom: and imiseration among our seniors and disabled members of our California community. Thank you. Thanks, Betsy. Thanks for being here.

101
00:15:49.370 --> 00:15:50.160
Boardroom: Okay.

102
00:15:52.780 --> 00:15:54.469
Boardroom: We have video feed this evening?

103
00:15:55.990 --> 00:16:00.049
Boardroom: We broadcast every meeting. Oh, okay. I don't see it up there, I was just kidding.

104
00:16:00.340 --> 00:16:01.130
Boardroom: Yes.

105
00:16:01.320 --> 00:16:03.039
Boardroom: Happy New Year!

106
00:16:03.840 --> 00:16:05.410

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Boardroom: Steve Tracy here.

107
00:16:05.950 --> 00:16:13.320
Boardroom: We're halfway through an old year, the budget year. I'm wondering how we're doing. Are we…

108
00:16:13.930 --> 00:16:16.020
Boardroom: On target for a balanced budget?

109
00:16:16.790 --> 00:16:20.879
Boardroom: Lots of fun programs, like a Poet Laureate, but…

110
00:16:21.500 --> 00:16:25.789
Boardroom: They gotta be rooted in living within our means.

111
00:16:26.470 --> 00:16:30.780
Boardroom: Last year, $27 million deficit.

112
00:16:30.930 --> 00:16:35.580
Boardroom: Has that been paid back to the pension fund and the workers' compensation fund?

113
00:16:37.320 --> 00:16:38.350
Boardroom: Paid back?

114
00:16:38.680 --> 00:16:39.829
Boardroom: Not paid back.

115
00:16:40.670 --> 00:16:41.970
Boardroom: Anybody know?

116
00:16:42.650 --> 00:16:47.599
Boardroom: Are we still… we've still borrowed the $27 million, and what's this year doing?

117
00:16:47.800 --> 00:16:48.640
Boardroom: Hey.

118
00:16:50.320 --> 00:16:51.920
Boardroom: Fewer employees.

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119
00:16:54.890 --> 00:17:01.320
Boardroom: the health department redundant to Alameda County was $12 million last year.

120
00:17:02.530 --> 00:17:08.549
Boardroom: We really need a 12 million health department. Thank you. Look for ways. Thanks for your comments.

121
00:17:10.660 --> 00:17:14.939
Boardroom: Who's… Who else is on… Yes, come on up.

122
00:17:15.960 --> 00:17:23.410
Boardroom: We represent the… Go ahead and move the, mic down so we can hear you. Okay. Here we go. Okay.

123
00:17:24.829 --> 00:17:26.940
Boardroom: Hello, City Council members, how are you?

124
00:17:27.160 --> 00:17:37.060
Boardroom: My name is Kelly, and I have been a vendor out on Telegraph… pardon me? Yeah, with Diana. We're together. Diana and Kelly.

125
00:17:37.520 --> 00:17:40.550
Boardroom: These are the other vendors that are here.

126
00:17:40.690 --> 00:17:49.899
Boardroom: There's Lewis, that's Diana. Both of your minutes to… to me.

127
00:17:51.460 --> 00:17:57.409
Boardroom: Should I start over? Okay. Yeah, go ahead and start over. So, sorry, just to clarify, can you pause it really quickly? Okay.

128
00:17:57.570 --> 00:18:13.739
Boardroom: So whose names were called? The two people who are sitting, is that correct? Yes. Okay, and they're giving both of their minutes to you. It's all of us together, really. Alright, go ahead. Thank you. Hello. Hello, city council members. My name is Kelly, and I have been working out on Telegraph for about 16 years, every weekend.

129
00:18:14.240 --> 00:18:18.829

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Boardroom: I am here representing not only the merchants, but also the vendors.

130
00:18:19.080 --> 00:18:25.079
Boardroom: I'm not sure if you're aware that they changed the coding on the vendors to business licenses.

131
00:18:25.480 --> 00:18:43.139
Boardroom: The problem is with that is the fact that the business license that you guys are handing out now are competing with our merchants. That has never happened. We have rules out there that we all must abide by to make it a smooth operation.

132
00:18:44.210 --> 00:18:45.510
Boardroom: We have…

133
00:18:45.890 --> 00:18:56.290
Boardroom: And the reasons for this situation for our merchants is the example I'm gonna give you. We have Anastasia's closet, we have Dorothy's closet.

134
00:18:56.440 --> 00:19:10.260
Boardroom: And we have all these clothing stores, but when you guys changed the code, you allowed all people to be able to vend. That cannot happen, because it competes the vendors with the merchants.

135
00:19:10.620 --> 00:19:23.219
Boardroom: So you take Anastasia's closet, and here they are, a used clothing store, you give a business license to another person who is a vendor to sell clothes, which has always been

136
00:19:23.510 --> 00:19:31.299
Boardroom: unlawful to do, because if you give them the business license, you know, they set up in front of Anastasia's closets.

137
00:19:32.240 --> 00:19:36.070
Boardroom: One pays $8,000 in rent, the other one's paying $55.

138
00:19:36.970 --> 00:19:38.930
Boardroom: This causes conflict.

139
00:19:39.200 --> 00:19:48.889

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Boardroom: I am here today to ask you to reinstate the code that says you can only sell on Telegraph Avenue with handmade goods.

140
00:19:49.570 --> 00:20:02.970
Boardroom: And it's… it's hard to negotiate out there, as I have for the last 7 years, which is just asking people, have you gotten your license yet? And usually people will answer you yes or no, and they go back.

141
00:20:03.410 --> 00:20:21.430
Boardroom: The City of Berkeley has always defended us, because… oop, am I done? Yeah, thank you, but I do hope that you'll write us and let us, send us more information if you have an idea. Yeah, I'm not even sure if you guys know that they changed the code. Yeah, thank you, I'm sorry, your time's up, but feel free to write us and give us more information.

142
00:20:21.730 --> 00:20:22.400
Boardroom: You wanna come?

143
00:20:22.590 --> 00:20:26.730
Boardroom: Anyone… do we have any other names that… Yeah, Willie G. Okay.

144
00:20:28.390 --> 00:20:29.430
Boardroom: Thank you.

145
00:20:30.990 --> 00:20:36.369
Boardroom: Hi, I'm Andre Special, and Willie Gee has given me his time.

146
00:20:36.370 --> 00:20:59.129
Boardroom: One minute's kind of short, but, I operate the Cannabis Buyers Club of Berkeley, which is America's oldest dispensary. We're about to celebrate 30 years of operations, and I'm here to ask that the Council consider bringing back the Cannabis Commission, take away the city cannabis tax, allow consumption, including smoking at the dispensaries, and allow only licensed Berkeley cannabis

147
00:20:59.130 --> 00:21:01.960
Boardroom: entities to deliver within the City of Berkeley.

148
00:21:02.080 --> 00:21:24.580
Boardroom: We are currently surrounded by businesses that don't charge tax for their cannabis sales, such as psychedelic churches, smoke shops, hemp shops, and businesses like a chain of CBD stores whose ownership is based out of Florida that sell many of the same products that we do, but

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without the 30% tax. Another example of this hardship is that San Francisco recently did away with its 5% tax.

149
00:21:24.580 --> 00:21:31.080
Boardroom: They don't allow businesses from out of the city of San Francisco to deliver there, but

150
00:21:31.080 --> 00:21:36.209
Boardroom: they can come here and deliver in Berkeley for 5% less than we can.

151
00:21:36.390 --> 00:21:37.590
Boardroom: Thank you.

152
00:21:37.930 --> 00:21:39.980
Boardroom: Thank you very much.

153
00:21:42.200 --> 00:21:58.500
Boardroom: Okay, so now we'll go to non-agenda comments from people participating remotely, and we'll call on the first five hands, so if you'd like to speak to non-agenda public comment, and you're participating remotely, now's the time to raise your hand.

154
00:21:58.900 --> 00:22:02.769
Boardroom: The first speaker is Cheryl Davil, a former council member.

155
00:22:11.800 --> 00:22:13.330
Cheryl Davila, Former Councilmember, Founder CEMTF: Thank you,

156
00:22:14.330 --> 00:22:24.510
Cheryl Davila, Former Councilmember, Founder CEMTF: So, Berkeley City Council, that was the longest break. Other councils in the area have returned already, within the last couple of weeks.

157
00:22:24.650 --> 00:22:26.979
Cheryl Davila, Former Councilmember, Founder CEMTF: So Happy New Year!

158
00:22:27.110 --> 00:22:30.890
Cheryl Davila, Former Councilmember, Founder CEMTF: 2026, no more tricks.

159
00:22:31.010 --> 00:22:32.860

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Cheryl Davila, Former Councilmember, Founder CEMTF: Let's fix.

160
00:22:33.450 --> 00:22:40.350
Cheryl Davila, Former Councilmember, Founder CEMTF: You should be ashamed. Today is day number 832 of the freakin' genocide.

161
00:22:41.480 --> 00:22:57.640
Cheryl Davila, Former Councilmember, Founder CEMTF: Olive trees. Yes, that represents Palestine, but you don't give a flying flick of a flea about Palestine. Or the babies that are freezing to death and starving to death, and

162
00:22:57.780 --> 00:23:00.320
Cheryl Davila, Former Councilmember, Founder CEMTF: It's just really shameful.

163
00:23:00.800 --> 00:23:16.869
Cheryl Davila, Former Councilmember, Founder CEMTF: And please keep the tear gas ban in place. That passed unanimously with my friendly amendment when Jesse was trying to just ban it for a short period of time. It needs to stay in place, and shame on you.

164
00:23:16.870 --> 00:23:18.109
Boardroom: Sure, your time's up.

165
00:23:19.760 --> 00:23:21.710
Boardroom: Next is Maria.

166
00:23:23.340 --> 00:23:24.360
Boardroom: Maria?

167
00:23:25.780 --> 00:23:33.919
Maria: Hi there, it's, Mariah, sorry. My name is Mariah Yates, and I live in District 1, and,

168
00:23:36.010 --> 00:23:50.949
Maria: I was relieved to see the proposal by District 1 Councilmember Kesarwani to repeal Berkeley's ban on tear gas removed from today's agenda, and I applaud whatever prompted this course correction, and I hope that we have a permanent, and not temporary reprieve from the proposal.

169

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00:23:51.080 --> 00:24:02.149
Maria: Thank you, former Councilmember Davila. As former mayor and current California Senator Eragin said at the time, tear gas is banned in warfare and should not be used in our streets or in our protests.

170
00:24:02.420 --> 00:24:17.119
Maria: I did note that my email expressing my objection to the pro-tear gas agenda item is missing from the correspondence list in this agenda, in addition to any email on that topic, and I honestly, I don't understand which correspondences get… make it into the agenda.

171
00:24:17.120 --> 00:24:35.100
Maria: But, I was disappointed to not receive a response from any member here, and not to see it noted there. I guess I'm not sure how that works. But again, I wish to express my gratitude to whomever's responsible for getting this item removed from our agenda. I hope the Council's attention can remain on more important. Thank you. Thanks, Mara. Thank you for your comment.

172
00:24:35.400 --> 00:24:42.249
Boardroom: Next is a caller with a phone number ending in 211.

173
00:24:47.580 --> 00:24:59.850
1510****211: Hi, good evening. So, our business manager handed you some paper today. Please, read it carefully. Second, we may settle for if the city could lease a place for us anywhere in the city of Berkeley.

174
00:25:00.240 --> 00:25:06.740
1510****211: Not only, think about that, think about it. Tens of thousands, hundred thousand Berkeley and Bay Area residents need our business.

175
00:25:07.140 --> 00:25:14.599
1510****211: As far as the monstrosity in the White House, no way to describe it. It is not. This man is a Russian…

176
00:25:15.030 --> 00:25:16.170
1510****211: Rosen Horse.

177
00:25:16.430 --> 00:25:28.900
1510****211: We are losing our country in real time, and I never have expected fascism to talk about this country, especially that quickly. We have all to stand up. Immigrants build this country.

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178
00:25:28.990 --> 00:25:39.420
1510****211: immigrants, During his first administration, 1.2 million Americans died from COVID because United. Both Moderna and the other Pfizer

179
00:25:39.420 --> 00:25:51.919
1510****211: POs were one with Greek American, one was Lebanese-American. This is the end, not only of America, end of civilization, because he has the bottom of the nuclear war, and he will do it.

180
00:25:51.920 --> 00:25:52.699
Boardroom: Thank you.

181
00:25:52.700 --> 00:25:53.469
1510****211: Thank you, and have a good evening.

182
00:25:53.880 --> 00:25:55.050
Boardroom: Thanks for your comment.

183
00:25:55.650 --> 00:26:00.750
Boardroom: Okay, last hand raise is Madeline… Roberts Rich.

184
00:26:04.000 --> 00:26:09.799
Madeleine Roberts Rich: Hello, everybody. My name's Madeline. Hello again, I should say, because you've heard from me before.

185
00:26:10.100 --> 00:26:25.709
Madeleine Roberts Rich: I'm calling, once again, about the urgency that I feel about reviving the downtown Berkeley corridor on Traddock Avenue. You heard me and many, many others fight to preserve cinematic,

186
00:26:25.870 --> 00:26:32.060
Madeleine Roberts Rich: Facilities on Traddock Avenue, as specified and accounted for in the downtown area-specific Plan.

187
00:26:32.230 --> 00:26:51.590
Madeleine Roberts Rich: There are no operating movie theaters outside of California. There's one remaining in Berkeley, that being the Rialtoon College. I really encourage you to collaborate with developers and figure out a way to get some chips off the table in the public's favor from the developers. The developers budget for this. The budget for providing,

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188
00:26:51.850 --> 00:27:06.649
Madeleine Roberts Rich: what is it called? Profirst in the community for community benefits, and really try hard to support nightlife uses and cinema, again, on Chaddock Avenue in, some creative fashion. Orinda saved their theater in Lafayette is saving their theater.

189
00:27:06.940 --> 00:27:08.679
Madeleine Roberts Rich: Mill Valley has benefited tremendously.

190
00:27:08.680 --> 00:27:09.130
Boardroom: soup.

191
00:27:09.130 --> 00:27:12.130
Madeleine Roberts Rich: Thank you for theirs.

192
00:27:12.130 --> 00:27:14.479
Boardroom: Your time is up, but thank you for your comment.

193
00:27:16.410 --> 00:27:19.470
Boardroom: Okay. That's all the speakers online.

194
00:27:19.620 --> 00:27:20.620
Boardroom: Okay?

195
00:27:20.960 --> 00:27:33.210
Boardroom: Thank you very much. Thank you, everyone, for your public comment. It is the first regular meeting of the month, and so I want to see if there's… there are any employee unions that would like to speak today.

196
00:27:35.890 --> 00:27:39.110
Boardroom: Employee unions, here or online?

197
00:27:39.770 --> 00:27:41.730
Boardroom: There's no hands raised.

198
00:27:44.450 --> 00:27:49.190
Boardroom: Okay, I'm just… Want to give them a little bit of time. Nobody?

199

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00:27:49.390 --> 00:27:50.080
Boardroom: Okay.

200
00:27:50.580 --> 00:27:53.460
Boardroom: Alright, we will move on, then, to the consent calendar.

201
00:27:54.540 --> 00:27:59.470
Boardroom: Can I start first with, any Councilmember comments, please?

202
00:28:04.200 --> 00:28:05.890
Boardroom: Councilmember Humbert.

203
00:28:08.690 --> 00:28:11.480
Boardroom: Wow, I delayed a little bit in pushing the button, but…

204
00:28:11.700 --> 00:28:20.609
Boardroom: I just have a few comments on the… The consent calendar, with respect to.

205
00:28:21.520 --> 00:28:25.440
Boardroom: Consent item 9, I want to say this is a really good thing.

206
00:28:25.690 --> 00:28:38.499
Boardroom: We keep the restrictions against riding bikes on sidewalks, except for kids, but eliminate unnecessary and pass a bike permitting registration and licensing requirements. So, all in favor of that.

207
00:28:39.960 --> 00:28:50.100
Boardroom: And with respect to, consent item number 17, Caminos al exito.

208
00:28:51.770 --> 00:29:01.200
Boardroom: $150 I'd like to contribute from our DA'd account for this very worthy program. I read a little bit about it, and it sounds, like, really important.

209
00:29:02.010 --> 00:29:04.010
Boardroom: program.

210
00:29:04.400 --> 00:29:15.350

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: With respect to item… consent item 19, a referral to the city manager to allow tiny homes on wheels as permissible accessory dwelling units.

211
00:29:15.890 --> 00:29:35.490
Boardroom: I want to thank Councilmember Kesarwani and her staff for this creative and timely measure. Tiny homes on wheels are much easier to put in place than ADUs on foundations, and they can work very well for individuals in very small families. This is just a referral, and city staff will clearly work out all the safety and logistical issues.

212
00:29:35.700 --> 00:29:39.140
Boardroom: With respect to item number…

213
00:29:39.340 --> 00:29:44.889
Boardroom: 20, consent item number 20, which is the City Council Employee Recognition Program.

214
00:29:45.100 --> 00:30:01.499
Boardroom: Thank you to Councilmember Blackaby and the co-sponsors for this very thoughtful item. We have such a wonderful group of city employees, and this will allow us to bestow our praise, on them when it's warranted, which will be very often, I think.

215
00:30:01.650 --> 00:30:07.719
Boardroom: Thank you, that's all I have. Thank you very much. Moving on to Vice Mayor Lunapara.

216
00:30:08.890 --> 00:30:25.519
Boardroom: Thank you. I am really excited that item 8, to allow the retail sale of alcohol in the Telegraph Avenue Commercial District is becoming law after two readings, with unanimous support from Council, so… and the Planning Commission. Thank you so much to Director Klein and his staff for making it a reality.

217
00:30:25.640 --> 00:30:36.500
Boardroom: I'm also excited to donate $250 from my budget to Caminos Alexito… and the Multicultural Center. Thank you, Madam Mayor, for letting me co-sponsor, and thanks to your staff, Jose, for… who worked on this item. Thanks.

218
00:30:38.180 --> 00:30:41.399
Boardroom: Yes, thank you very much. Councilmember Blackby.

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219
00:30:41.690 --> 00:30:53.160
Boardroom: Thanks, Madam Mayor. It's good to see everyone. Happy New Year. Just a couple of brief comments on item 17. We'd also like to, contribute $250 from our office holder account.

220
00:30:53.250 --> 00:31:03.650
Boardroom: And on item 20, I appreciate, the support of my colleagues, in particular, Mayor Ishii, Councilmember Luna Parr, and Councilmember Kessarwani for co-sponsoring it.

221
00:31:03.650 --> 00:31:13.720
Boardroom: It was important to me, and I think during my time on the Police Accountability Board, when you're thinking about, you know, often we are critical in thinking about, you know, ways we can improve

222
00:31:13.720 --> 00:31:32.290
Boardroom: Performance, but it's also equally important to uplift examples of where people are doing really good work. We see that in our police department, I think we see that in our city staff. And I'd say, especially in a time when we know we're going into some challenging budget conditions, the more that we can do to, again, recognize the amazing work that our staff is doing.

223
00:31:32.290 --> 00:31:47.570
Boardroom: And in many cases, we'll be doing more work, potentially, with a little less as we tighten our belts. Just felt like a really important time, to do that. So again, I appreciate the support, and I do think it's gonna be a nice way to recognize, one employee a month.

224
00:31:47.620 --> 00:32:02.119
Boardroom: And have us all participate in the process of doing that work. So, thanks to the city manager and HR team for their input as well, and I'm hopeful and looking forward to working with the mayor's office to implement that in the months ahead. Thank you.

225
00:32:03.230 --> 00:32:07.550
Boardroom: Thank you very much. Can I just check in really quick on our Zoom situation?

226
00:32:08.360 --> 00:32:11.149
Boardroom: whether it's… I think the Zoom is fine, but…

227
00:32:20.200 --> 00:32:23.649

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Boardroom: Okay. I'm very sorry, folks. We are going to take a break.

228
00:32:23.770 --> 00:32:29.999
Boardroom: and restart our system, and I am very hopeful that it will work so we can come back and finish our meeting. Thank you.

229
00:32:32.670 --> 00:32:35.690
Boardroom: Okay, Mayor, we can… Continue.

230
00:32:37.280 --> 00:32:40.689
Boardroom: Okay, I think we're back on, everyone! Yay!

231
00:32:40.850 --> 00:32:55.280
Boardroom: Yes. Okay. Very happy. Alright, we are on our consent calendar right now, and we just heard Councilmember Blackaby's comments, I believe, and we're moving on to Councilmember Trey Gubb.

232
00:32:56.710 --> 00:33:02.639
Boardroom: Thank you, Madam Mayor. I want to, express my…

233
00:33:03.160 --> 00:33:13.239
Boardroom: enthusiasm, in particular for item 6, which will expand the Throne Lab Portable Toilet Pilot Program.

234
00:33:13.390 --> 00:33:20.160
Boardroom: My district has one of the two, thrones. It is in Civic Center Park.

235
00:33:20.300 --> 00:33:29.579
Boardroom: And it has gotten rave reviews, and has been, ha…

236
00:33:30.110 --> 00:33:39.410
Boardroom: has been popular, and I really appreciate, the opportunity to host it in my district for a few months longer.

237
00:33:40.810 --> 00:33:54.470
Boardroom: I also… would like to thank Mayor Ishii for, the opportunity to co-sponsor, item 17, Caminos El…

238
00:33:54.920 --> 00:34:03.990

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Boardroom: Exito, and I, am excited to contribute $150 from my discretionary account.

239
00:34:05.980 --> 00:34:06.700
Boardroom: And…

240
00:34:07.270 --> 00:34:22.829
Boardroom: Lastly, I wish to thank Councilmember Kesarwani for her item, the referral item 19, referral to the City Manager to allow tiny homes on wheels as permissible accessory dwelling units, and…

241
00:34:22.889 --> 00:34:28.509
Boardroom: I'm appreciative of the opportunity to co-sponsor that item. Thank you.

242
00:34:29.670 --> 00:34:33.070
Boardroom: Thank you very much. This.

243
00:34:33.590 --> 00:34:40.829
Boardroom: I… This is a blank number, so I'm gonna move on to Councilmember Kezzarwani, please.

244
00:34:41.659 --> 00:34:54.270
Boardroom: Thank you very much, Madam Mayor. Happy New Year to everybody. I also wanted to be recorded as donating $100, to Caminos al Exito. I hope I…

245
00:34:54.270 --> 00:35:06.810
Boardroom: Didn't butcher that too badly. And then, I just wanted to thank everyone for speaking in support of, the item 19 to allow tiny homes on wheels

246
00:35:06.830 --> 00:35:14.419
Boardroom: So that, we are trying to expand the opportunities to add accessory dwelling units, the…

247
00:35:14.430 --> 00:35:30.779
Boardroom: Permanent ones and even prefabricated ones can be very expensive, so we know that tiny homes can be less expensive, so we're trying to open up new opportunities. And I did want to add Councilmember Bartlett as a co-sponsor of that item. Thank you very much for your support.

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248
00:35:31.650 --> 00:35:39.840
Boardroom: Thank you very much. I'm gonna go to Councilmember Bartlett, and then I'm gonna move online to Councilmember Taplin, and then back to Councilmember O'Keefe here.

249
00:35:40.210 --> 00:35:43.409
Boardroom: Thank you, Madam Mayor, and it's, great to be back after a…

250
00:35:43.660 --> 00:35:49.930
Boardroom: Nice vacation. The, number 13 on the consent calendar I'm really excited about. This is,

251
00:35:49.980 --> 00:36:09.829
Boardroom: the city engaging with, emerging nonprofit, affordable housing developers. So, we can help new people to access this industry and get some new talent in here, from diverse backgrounds. Really good, really happy about this. 17, I'd like to give $200 to the Caminos Alexito.

252
00:36:10.230 --> 00:36:11.329
Boardroom: Did I say that right?

253
00:36:11.510 --> 00:36:13.239
Boardroom: Madam Vice Mayor?

254
00:36:13.490 --> 00:36:24.119
Boardroom: Yeah? Okay. Thank you. And again, thank you, Councilor Cassarwani, for permitting me to join you on the ADU item, the, the tiny homes on wheels.

255
00:36:25.550 --> 00:36:30.960
Boardroom: Also, Meals on Wheels is on the same agenda tonight. We're… and Mills and Wheels is from Berkeley. Do people know that?

256
00:36:31.460 --> 00:36:32.700
Boardroom: Yeah, it started here.

257
00:36:33.010 --> 00:36:46.539
Boardroom: Very vital resource for seniors, getting food. And I'd like to also thank, Councilman Blackaby and his co-sponsors, and, for your work to recognize, employees.

258

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00:36:46.810 --> 00:36:49.680
Boardroom: But they do great work here, and they should be held up.

259
00:36:49.820 --> 00:36:50.610
Boardroom: Thank you.

260
00:36:51.140 --> 00:36:53.310
Boardroom: Thank you very much, Councilmember Taplin.

261
00:36:53.730 --> 00:37:02.180
Terry Taplin: Thank you, good evening, everyone. On item 17, I would like to be recorded as relinquishing $250 from my D13 account, $250.

262
00:37:02.600 --> 00:37:15.339
Terry Taplin: On item 18, the referral to the City Manager for the development of comprehensive communication design standards, I want to thank you, Madam Mayor, for your leadership and your sensitivity, and say that I am very happy to be included as a co-sponsor. Thank you very much.

263
00:37:15.920 --> 00:37:18.130
Boardroom: Thank you very much. Councilmember O'Keefe?

264
00:37:19.250 --> 00:37:20.070
Boardroom: Oh.

265
00:37:20.540 --> 00:37:22.450
Boardroom: It said I was number 4 in 9.

266
00:37:22.740 --> 00:37:32.709
Boardroom: Thank you. Just two quick comments. I'd like to be recorded as donating $250 for item 17. Sounds like a great program.

267
00:37:32.830 --> 00:37:34.479
Boardroom: And,

268
00:37:35.150 --> 00:37:44.709
Boardroom: A lot of compliments being thrown around. I'll just do one. I really, appreciate item 18, Madam Mayor and co-sponsors. I just… I'm a big fan of…

269
00:37:45.220 --> 00:38:00.129

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Boardroom: clear, well-thought-out laws, as opposed to haphazard random laws, which is kind of what we have now. And there's no fault, I mean, all of the… it's all good-intentioned work, that's led up to where we are today, but this is a really logical next step, and I just really want to…

270
00:38:00.290 --> 00:38:02.970
Boardroom: Say how much I appreciate it. That is all.

271
00:38:04.310 --> 00:38:23.520
Boardroom: Thank you very much. So… Sorry, the parliamentarian was out, and that's why it said you were 4. So, for number two, I want to acknowledge that we have contracted with Lake Partners. I'm really excited to move forward in the poll, so I really want to thank the City Manager and your team for moving that forward while we were on recess.

272
00:38:23.520 --> 00:38:34.129
Boardroom: I want to acknowledge that we got another grant from Americans for the Arts. I think that's very exciting. Our city works really hard to find other sources of funding, and I want folks to know about that.

273
00:38:34.130 --> 00:38:36.029
Boardroom: So thank you very much.

274
00:38:36.030 --> 00:38:46.179
Boardroom: For number 9, we are removing some nonsensical bicycle licensing requirements, so I think that's always a good thing, I wanted to call that out. And, number 17 is

275
00:38:46.180 --> 00:39:04.539
Boardroom: Caminos al Exito, which, I am sponsoring. I wanted to just highlight that it was written by our intern, Jose Martinez, and so I want to give him a shout-out, and, thank you so much for your work. It's a one-day conference held at Berkeley City College, which is my alma mater, as well as Councilmember Taplin, I don't know if anyone else did, but,

276
00:39:04.970 --> 00:39:17.179
Boardroom: And it's meant to demystify and provide resources for students and parents… students and parents for life outside of high school. It's a bilingual event that has workshops, working groups, and activities, and, it is organized

277
00:39:17.230 --> 00:39:34.499
Boardroom: With the collaborative efforts of the ChicanX Latinx Student Development Center, ROOCs, Live, Latino Sunidos State Berkeley, Berkeley

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Public Schools, Berkeley City College, Multicultural Institute, and the Office of Family Engagement and Equity.

278
00:39:34.580 --> 00:39:53.999
Boardroom: So, I wanna, just thank everyone who worked on that event, and thank you so much to the council members for also relinquishing some funds for that. And then just for number 18, the Comprehensive Transportation Design Standards, which some folks had mentioned, this is something that we had said at the last meeting that we were gonna bring forward to this meeting, so I just want folks to know

279
00:39:54.000 --> 00:40:12.229
Boardroom: We did it, we said we were gonna work on it. During the break, I really want to thank my staff for pushing that forward as well, and working with the city manager staff as well. So thank you very much, I'm really looking forward to that work moving forward, so we have some clarity. And then, also just thank you also, the ADU items, so… very exciting.

280
00:40:12.250 --> 00:40:17.850
Boardroom: Alright, now, is there… Public comment.

281
00:40:18.550 --> 00:40:19.710
Boardroom: on consent.

282
00:40:22.000 --> 00:40:22.970
Boardroom: Come on up.

283
00:40:28.040 --> 00:40:44.999
Boardroom: My name is Carol Wolfley, and I am here to express my appreciation to the Landmark Commission, for their unanimous vote to make the KPFA building a historical landmark.

284
00:40:45.230 --> 00:40:50.090
Boardroom: And… I appreciate that they…

285
00:40:51.100 --> 00:40:57.849
Boardroom: had such an in-depth understanding of Berkeley history, as well as knowledge of how

286
00:40:58.000 --> 00:41:14.719

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Boardroom: 16,000 people, protested and rallied in support of community media in 1999 to protect the KPFA building and KPFA as the first listener-sponsored media

287
00:41:14.720 --> 00:41:28.729
Boardroom: organization radio in the United States. So, I… I appreciate your being here. It was also recognized by the Nation Manage magazine in 19…

288
00:41:28.730 --> 00:41:35.679
Boardroom: in, 19… 2018. Thank you. Thank you. Thank you so much.

289
00:41:40.980 --> 00:41:54.649
Boardroom: Do we get 2 minutes, if there's less than 10 people? Okay, thank you. First, I wanted to, speak in favor of item 13. Hopefully this will address some of the racial and gender disparities.

290
00:41:54.880 --> 00:42:04.379
Boardroom: That, were revealed during the Mason-Tillman report. Second has to item 19, it's always good to have

291
00:42:04.450 --> 00:42:17.580
Boardroom: alternative housing options when everything is so expensive in terms of housing. But mainly I want to address the throne bathrooms, and one of the issues, or a issue with them, is in

292
00:42:18.390 --> 00:42:22.259
Boardroom: trying it out, this would have been really problematic.

293
00:42:22.350 --> 00:42:29.880
Boardroom: if I… having been my mother… taking care of my mother, or bringing her everywhere for 19 years when she was blind.

294
00:42:29.920 --> 00:42:46.920
Boardroom: and in a wheelchair and multiply disabled, there is… you get a warning that says, I believe it's a 10-minute warning, where the music starts playing and says you have to exit. And that could be really problematic for a person with disabilities.

295
00:42:47.440 --> 00:42:48.770
Boardroom: Thank you, Carol. Thank you.

296

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00:42:53.830 --> 00:43:01.039
Boardroom: Hi, my name is Candace Schott, and I'm a Berkeley resident and the secretary of the KPFA Local Station Board.

297
00:43:01.170 --> 00:43:17.570
Boardroom: And I am also here in support of the Landmark Commission's decision to approve the landmark status of the KPFA building, and to note that it's, the only, broadcast radio building

298
00:43:17.580 --> 00:43:36.029
Boardroom: in, Berkeley proper, which I think makes it an important building in Berkeley. And just to note that all the very famous people that have come through that building, been through those airwaves, and I really appreciate your consideration for approving it. Thank you.

299
00:43:36.170 --> 00:43:54.839
Boardroom: Thank you. I love that you all are coordinated in your sweatshirts, too. I didn't even think about it, I wear it so much. Hi, I'm Colleen Mast. Go ahead and move the mic up so we can hear you better. Thank you. Colleen Mast, and I'm a resident and also a new member of the KPFA Station Board.

300
00:43:55.020 --> 00:44:03.999
Boardroom: And I'm here to speak in support of the Landmark Commission's decision to make the KPFA building an historical landmark, also.

301
00:44:04.140 --> 00:44:19.800
Boardroom: The KPFA building is a site of profound historical significance, not only for its pioneering role in the evolution of the community radio, but also a historical archive of the social and political movements that have shaped Berkeley and the wider world.

302
00:44:20.020 --> 00:44:28.020
Boardroom: Since its inception, KPFA has been a steadfast platform for independent media, providing coverage and in-depth analysis

303
00:44:28.200 --> 00:44:33.499
Boardroom: Of, some of the most significant events in modern history and,

304
00:44:33.870 --> 00:44:47.389
Boardroom: And just one example being the station played a critical role in covering the civil rights movement, offering a voice to leaders and activists fighting for racial justice, and this at a time when mainstream media

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305
00:44:47.720 --> 00:44:51.210
Boardroom: often marginalize their perspectives. Thank you.

306
00:44:51.570 --> 00:44:52.750
Boardroom: Thanks so much.

307
00:44:58.000 --> 00:45:11.189
Boardroom: Hello, everyone in the City of, well, the City Council of Berkeley. Thank you for having me. My name's Antonio Ortiz, I'm the Interim General Manager of KPFA Radio, and I want to thank the Landmark Historical Commission to, push forward the,

308
00:45:11.220 --> 00:45:26.569
Boardroom: making KPFA's building into a historical landmark. I also want to thank these ladies here for all the work that they've done to make that happen. Kpfa has been found… was founded in 1949 by a pacifist. Ever since then, our goal has been to build understanding between peoples.

309
00:45:26.630 --> 00:45:41.760
Boardroom: And one of the main challenges, at least for me as a general manager, or interim general manager, has been how do we start to… how do we bridge the gap between people? And that's what I learned at KPFA. That's the education that I got, and my hope is that we can continue doing that.

310
00:45:41.800 --> 00:45:58.300
Boardroom: The building becoming a historical landmark would be fabulous for us, because it would show to our staff and the community that we exist, we're here, and that we've been part of the fabric of Berkeley since 1949. And, thank you all for listening to me, and I hope you all have a good rest of your evening.

311
00:45:58.530 --> 00:46:00.780
Boardroom: Thank you. Thank you so much.

312
00:46:06.110 --> 00:46:13.840
Boardroom: Good evening. Thank you. I'm Betsy Morris, and I'm wearing a third hat now as part of, my consulting

313
00:46:15.040 --> 00:46:25.929

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Boardroom: practice, planning for sustainable communities. I've been advocating, and mostly just educating, since 2014 on tiny homes, and just…

314
00:46:26.100 --> 00:46:28.760
Boardroom: Thank you for bringing this up.

315
00:46:28.950 --> 00:46:45.450
Boardroom: And I also very much appreciate that this is going for further analysis, because the details, those guidelines and definitions, are very important. I also hope we'll come back and consider ways that these can stay.

316
00:46:45.640 --> 00:46:57.759
Boardroom: As at least moderate income, if not affordable to lower income people, because, in fact, you can have a $300,000 tiny home. People are selling

317
00:46:58.010 --> 00:47:11.970
Boardroom: very elaborate ones. But I did want to say, just to reassure anyone, that, most legal tiny homes in California are certified either with, manufactured home standards or RV. Thank you. Thank you.

318
00:47:12.920 --> 00:47:13.930
Boardroom: Yeh.

319
00:47:25.460 --> 00:47:36.939
Boardroom: I still haven't grown. It's such a pleasure to see all of you. Happy, Happy New Year, and I know it's going to be a super year, because again, good Mayor, you've opened it up.

320
00:47:37.450 --> 00:47:40.150
Boardroom: On this first meeting, with such a heart space.

321
00:47:42.020 --> 00:47:58.089
Boardroom: That's my bottom line, and I'm starting to cry. I can't thank you enough. And secondly, KPFA, voice of the voiceless. It's my university after university. Thank you, KPFA. Alright, my primary interest is in the tiny homes.

322
00:47:58.700 --> 00:48:00.920
Boardroom: I've built… A bunch.

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323
00:48:01.840 --> 00:48:10.079
Boardroom: There's lots of people that need them, and there's lots of people that actually have space and would like to share it. It is…

324
00:48:10.340 --> 00:48:17.210
Boardroom: Cost-effective, simple, on wheels, movable, alterable, flexible.

325
00:48:18.270 --> 00:48:31.270
Boardroom: almost immediately possible. It's like, can't we simplify this, please? All day long, I take pictures. Oh, I have an extra minute, I'm sorry, I forgot to tell you, from, Taj. Sorry, thank you.

326
00:48:31.450 --> 00:48:33.010
Boardroom: Thanks. Go ahead.

327
00:48:33.830 --> 00:48:36.879
Boardroom: I'm constantly in the community, and I take…

328
00:48:37.530 --> 00:48:40.550
Boardroom: I'm starting to cry again. I take too many pictures.

329
00:48:42.120 --> 00:48:47.319
Boardroom: of wasted resources, And infinite needs.

330
00:48:47.500 --> 00:48:55.999
Boardroom: And again, there's a community of share, because we care, that's possible. And it can be legal, and it can be safe.

331
00:48:56.510 --> 00:49:01.310
Boardroom: And again, I love the wheels, so… and… I would just…

332
00:49:01.860 --> 00:49:08.499
Boardroom: I'd bill them for free, I'm telling ya. Alright, and also, in terms of this comprehensive transportational thing.

333
00:49:08.860 --> 00:49:12.100
Boardroom: I really have to work very hard not to run over.

334
00:49:12.690 --> 00:49:16.310

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Boardroom: Bicyclists with no lights, dressed in black.

335
00:49:16.470 --> 00:49:23.810
Boardroom: at night, and or on these electric things that come out of nowhere. It's like, what's happened?

336
00:49:24.000 --> 00:49:31.550
Boardroom: I still have my motorcycle license. These things are amazing. We need to be comprehensive. Thank you. Thank you.

337
00:49:44.050 --> 00:49:47.540
Boardroom: Item 19… I would like to,

338
00:49:48.430 --> 00:49:54.280
Boardroom: express my support for tiny homes, however… You have this…

339
00:49:55.630 --> 00:50:02.219
Boardroom: Tendency to look problems and solutions straight in the face and not see them.

340
00:50:04.520 --> 00:50:10.650
Boardroom: Tiny homes… Can be built by people right here in this community.

341
00:50:14.650 --> 00:50:20.370
Boardroom: Unhoused folks have Skills. Lots of skills.

342
00:50:20.540 --> 00:50:22.530
Boardroom: That can be put to use.

343
00:50:23.970 --> 00:50:30.919
Boardroom: And if they are Disabled and can't do it physically. They can't teach.

344
00:50:32.140 --> 00:50:40.250
Boardroom: And we can set up, right here in Berkeley, a little factory for putting out Tiny homes, producing them…

345
00:50:40.430 --> 00:50:44.119
Boardroom: Putting them in place, and get people a home.

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346
00:50:45.530 --> 00:50:47.260
Boardroom: Thank you.

347
00:50:48.750 --> 00:50:54.569
Boardroom: Any other comments on the consent or information items online?

348
00:50:55.530 --> 00:50:58.270
Boardroom: Yes, we have 4 hands raised for…

349
00:50:58.670 --> 00:51:05.850
Boardroom: comments on consent and information. First is… Phone number ending in 000.

350
00:51:14.140 --> 00:51:16.520
Boardroom: Shouldn't be able to unmute.

351
00:51:19.350 --> 00:51:21.100
Boardroom: Star 6 to unmute.

352
00:51:28.350 --> 00:51:30.110
Boardroom: Maybe we'll, we'll come back.

353
00:51:32.560 --> 00:51:34.549
Boardroom: Next is Ben.

354
00:51:39.900 --> 00:51:55.260
ben: Good evening, Council. This is Ben Gerhardstein with Walk Bike Berkeley. I wanted to, express our support, Walk Bike Berkeley's support, for the Transportation Design Standards item. Thank you to the Mayor and co-sponsors and City Manager's Office for bringing this item forward.

355
00:51:55.350 --> 00:52:07.960
ben: It's an important step for the city to take. It's gonna be a big project, but I think it will yield dividends if we keep our eyes on the North Star of safety while meeting the operational needs of other road users.

356
00:52:07.960 --> 00:52:13.330
ben: all of your users. And I want to draw your attention to a couple of comments we made in our letter.

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357
00:52:13.330 --> 00:52:31.570
ben: First, that as we work through these standards, it's important that we field test what we're putting in… what we're developing, because that's where we can learn and refine, especially when it comes to, bigger… road users with bigger vehicles, and how they maneuver various road features.

358
00:52:31.650 --> 00:52:44.800
ben: And then secondly, I think it's important that we maintain our commitment to delivering on the projects that are in the queue, and not, take our eyes off of that as we are developing these standards, which will take time and be, important.

359
00:52:44.800 --> 00:52:45.470
Boardroom: Thank you, Ben.

360
00:52:45.470 --> 00:52:46.250
ben: Thank you so much.

361
00:52:46.250 --> 00:52:47.219
Boardroom: Thanks for your comment.

362
00:52:48.060 --> 00:52:51.269
Boardroom: Next is Della Luna.

363
00:52:54.670 --> 00:52:56.269
Della Luna (she/her) Huichun: Yes, can you hear me okay?

364
00:52:56.670 --> 00:52:57.410
Boardroom: Yes.

365
00:52:57.590 --> 00:53:15.159
Della Luna (she/her) Huichun: Okay, I'm speaking about item number 13, and I'm here to say that more oversight is needed for these emerging nonprofit affordable housing developers. The city needs to first verify that these developers follow through and display competence before dishing out more funds to them.

366
00:53:15.200 --> 00:53:31.629
Della Luna (she/her) Huichun: Some of these developers treat the city relationship as a creative writing assignment and submit feel-good proposals, but the city's not doing their due diligence to vet these

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organizations, and the impact is that your vulnerable constituents are placed in the hands of the less experienced with no recourse.

367
00:53:31.630 --> 00:53:40.120
Della Luna (she/her) Huichun: City funds should be allocated to help constituents, not prop up nonprofits. And people will form nonprofits just to get access to city funds.

368
00:53:40.410 --> 00:54:00.180
Della Luna (she/her) Huichun: Creative writing is not enough in proposals. Fake it till you make it is harming your constituents. Please provide oversight for these affordable housing nonprofit developers that are emerging. The recent lawsuit resulting from the unfortunate homicide at the homeless shelter is an example of what happens when there's.

369
00:54:00.180 --> 00:54:02.790
Boardroom: Thank you, Della. Thanks for your comment.

370
00:54:03.450 --> 00:54:10.059
Boardroom: Let's go back to… Phone number ending in 000.

371
00:54:15.360 --> 00:54:27.419
1510****000: Hi, good evening. I am calling regarding, system number 8. I don't like it at all. As a college student, I was there for 14 years as in the physics and nuclear engineering department.

372
00:54:27.570 --> 00:54:31.730
1510****000: One time, almost died. A student, sometimes you go on a drinking bench.

373
00:54:32.350 --> 00:54:35.920
1510****000: Through a party we had, I had almost a full bottle of jam.

374
00:54:36.160 --> 00:54:49.370
1510****000: I almost died. That… please don't pass that. We don't… we have bad enough problem with, the pot shops all across the street, on Telegraph. Now we need to add liquor as well.

375
00:54:49.630 --> 00:54:53.819
1510****000: For heaven's sake, think about your kids. Think about your grandkids.

376

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00:54:54.200 --> 00:54:55.620
1510****000: Got it. Thank you.

377
00:54:57.310 --> 00:54:58.220
Boardroom: Thank you.

378
00:54:58.910 --> 00:55:07.570
Boardroom: Okay… And… We have Cheryl Davil, a former council member.

379
00:55:10.130 --> 00:55:15.320
Cheryl Davila, Former Councilmember, Founder CEMTF: So, yeah, back in… when I was on council, I tried to get an item for Tiny Homes.

380
00:55:15.450 --> 00:55:23.379
Cheryl Davila, Former Councilmember, Founder CEMTF: I tried to get… Them built, have the designs. I still have the designs.

381
00:55:23.760 --> 00:55:27.600
Cheryl Davila, Former Councilmember, Founder CEMTF: So it's interesting that you're doing that now, but that's not the first time.

382
00:55:27.700 --> 00:55:32.320
Cheryl Davila, Former Councilmember, Founder CEMTF: Somebody has copied things that I had wanted to do.

383
00:55:32.420 --> 00:55:41.419
Cheryl Davila, Former Councilmember, Founder CEMTF: I'm not sure, I haven't read the item, and don't plan to, but, I just think it's interesting that now.

384
00:55:41.490 --> 00:55:52.700
Cheryl Davila, Former Councilmember, Founder CEMTF: You're putting this forward as you have done on, other items that I put forward, that you put forward. Alright,

385
00:55:53.170 --> 00:56:06.370
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, that's all I gotta say. Free Palestine, free Congo, free Sudan, free Yemen, and free yourselves from all the hatred that you all have towards other people in your city that you're supposed to represent.

386
00:56:08.700 --> 00:56:11.099

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Boardroom: Next is Daniel Brownson.

387
00:56:15.790 --> 00:56:17.400
Daniel Brownson: Hi,

388
00:56:17.990 --> 00:56:32.330
Daniel Brownson: So, I don't know if others saw the news, but the City of Santa Cruz has terminated their contract with Flock, quote, Safety, and Berkeley should do the same.

389
00:56:32.330 --> 00:56:39.850
Boardroom: This is, on, consent and information items, which… Sorry, I thought it was public comment, sorry, never mind. Okay, thank you!

390
00:56:39.850 --> 00:56:41.360
Daniel Brownson: all the CWM, then.

391
00:56:42.920 --> 00:56:55.920
Boardroom: Okay, that, that was it, that was the last, speaker. Okay, thank you very much. Is there a motion to presume, excuse me, to approve the consent calendar? So moved. Second.

392
00:56:57.310 --> 00:57:17.170
Boardroom: Thank you. Can we… yes, did you have a comment? Yeah, if you can indulge me for a minute, I just wanted to congratulate everyone, that has made the landmarking possible, at KPFA. Thank you so much while KPFA has preceded district elections.

393
00:57:17.170 --> 00:57:24.710
Boardroom: I, for sure, am very proud, to be able to say that it is in my district, and…

394
00:57:24.790 --> 00:57:27.459
Boardroom: Thank you for everything that you're doing.

395
00:57:27.800 --> 00:57:29.109
Boardroom: Thank you.

396
00:57:30.220 --> 00:57:38.000
Boardroom: Okay, can we take the roll on that, please? Okay, on the consent calendar, Councilmember Kastarwani? Yes. Kaplan?

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397
00:57:38.000 --> 00:57:38.760
Terry Taplin: Yes.

398
00:57:39.050 --> 00:57:40.040
Boardroom: Bartlett.

399
00:57:40.730 --> 00:57:43.719
Boardroom: is… Currently absent.

400
00:57:44.210 --> 00:57:50.680
Boardroom: Tregeb? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes.

401
00:57:50.830 --> 00:57:54.709
Boardroom: Humbert? Yes. Mayor Ishii? Yes.

402
00:57:54.960 --> 00:58:02.200
Boardroom: And, Councilmember Bartlett, would you like to record a vote on the consent calendar? Yes? Okay. Motion passes.

403
00:58:02.570 --> 00:58:04.170
Boardroom: Consent calendars adopted.

404
00:58:07.050 --> 00:58:08.130
Boardroom: Thunderous supplies.

405
00:58:11.810 --> 00:58:17.500
Boardroom: We are gonna just take a quick 5-minute stretch as we're switching into the next item. Thank you.

406
00:58:28.640 --> 00:58:30.659
Boardroom: Are we ready? Are staff ready?

407
00:58:32.530 --> 00:58:41.369
Boardroom: Staff? Jordan, you ready? Oh, yeah. Okay. Alright, very good. We are going to… yeah, we are going to call this meeting back into session.

408
00:58:41.790 --> 00:59:01.760
Boardroom: And, and we are moving on to the action calendar, starting with action item number 21, which is amendments to Title 21 subdivisions

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to allow separate sale of ADUs continued from December 2nd, 2025, which is why you're going first. And as it says, items contain revised materials. Okay.

409
00:59:01.910 --> 00:59:18.320
Boardroom: We have, Councilmember Kessarwani has the statement. Thank you very much, Madam Mayor. I've been advised by the City Attorney's Office, as well as the Fair Campaign Political Practices Commission at the state level, that I have a conflict of interest, and therefore will be recusing on this item. Thank you.

410
00:59:20.100 --> 00:59:23.100
Boardroom: Okay, and Councilmember Trago?

411
00:59:24.950 --> 00:59:28.670
Boardroom: Similarly, pursuant to…

412
00:59:29.360 --> 00:59:43.669
Boardroom: This advice from the City Attorney and the Fair Political Practices, Commission, I will be recusing myself from these items as a tenant in an ADU in Berkeley.

413
00:59:45.550 --> 00:59:48.390
Boardroom: Okay, thank you very much. I'm gonna make sure we…

414
00:59:48.770 --> 00:59:54.109
Boardroom: Allow them to leave, but then open the public hearing and have staff give their presentation.

415
01:00:05.810 --> 01:00:07.500
Boardroom: Okay, go ahead, staff.

416
01:00:08.130 --> 01:00:12.520
Boardroom: Thank you, Mayor. Good evening, Councilmembers. I'm Jordan Klein, I'm Director of Planning and Development.

417
01:00:12.820 --> 01:00:22.640
Boardroom: Joined at the table by Justin Horner, Principal Planner on the Policy Team, and Branca Tatarevich on the policy team, who will be presenting on behalf of staff. Take it away, Branca.

418
01:00:23.010 --> 01:00:24.230

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Boardroom: Thank you, Jordan.

419
01:00:31.300 --> 01:00:39.170
Boardroom: Thank you, Mayor Ishii and the members of the City Council. My name is Branca Tatarevic, and I am an Associate Planner with the Land Use Planning Division.

420
01:00:39.410 --> 01:00:50.640
Boardroom: Tonight, I'm presenting the ordinance to allow separate sale of ADUs under Assembly Bill 1033 as directed by City Council Referral and Planning Commission input.

421
01:00:52.710 --> 01:01:07.909
Boardroom: The Planning Commission reviewed the ADU Condominiums item in spring and summer. The Commission first discussed AB 1033 in March, and recommended adoption of the new section, ADU Condominiums, as BMC Section 2129 in May.

422
01:01:10.230 --> 01:01:21.140
Boardroom: Berkeley Municipal Code currently doesn't allow ADUs to be sold separately. AB 1033 gives cities that option if they adopt local regulations.

423
01:01:21.450 --> 01:01:30.679
Boardroom: City Council asked the planning department staff to create that pathway to broaden moderate-income homeownership and help homeowners build equity.

424
01:01:33.030 --> 01:01:42.069
Boardroom: The new Chapter 2129 is Berkeley's opt-in to AB 1033. It is nested in Title 21 subdivisions.

425
01:01:42.680 --> 01:01:50.359
Boardroom: The chapter applies only to the separate sale of ADUs on eligible lots and creates no new development rights.

426
01:01:50.600 --> 01:01:54.479
Boardroom: It provides a path to condorize what is already allowed.

427
01:01:55.280 --> 01:02:00.869
Boardroom: The process is ministerial, where applicable under state law, and our objective standards.

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428
01:02:01.030 --> 01:02:07.600
Boardroom: State law also requires a lien holder consent, a safety inspection, and buyer disclosures.

429
01:02:10.100 --> 01:02:21.999
Boardroom: If the ADU is a covered rental, the ordinance preserves tenant protections, the right of first refusal, and the right to remain, per Chapter 2128, Condominium conversion.

430
01:02:22.790 --> 01:02:30.660
Boardroom: CCNRs and any necessary access easements are needed as required under the David Sterling Act and Subdivision Map Act.

431
01:02:31.540 --> 01:02:38.739
Boardroom: Under the proposed ordinance, condo converted ADUs would be exempt from the condo conversion mitigation fee.

432
01:02:39.010 --> 01:02:49.820
Boardroom: Overall, the ordinance complies with state law, adds no new standards, and provides a practical path to attainable home ownership.

433
01:02:52.750 --> 01:03:07.279
Boardroom: Finally, staff recommends that the City Council hold a public hearing and adopt the first reading of the ordinance to implement AB 1033 by allowing the separate sale of ADUs as condominiums through amendments to Title 21.

434
01:03:08.640 --> 01:03:13.040
Boardroom: That concludes my presentation. Thank you, and I'm available for questions.

435
01:03:14.920 --> 01:03:24.160
Boardroom: Thank you very much, appreciate the presentation. I would like to now go to Councilmember Lunapara, so that she may present her

436
01:03:24.270 --> 01:03:25.570
Boardroom: Supplemental.

437
01:03:27.670 --> 01:03:29.900
Boardroom: Great, thank you. Excuse me, Vice Mayor.

438

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01:03:30.480 --> 01:03:31.969
Boardroom: I think…

439
01:03:32.990 --> 01:03:38.519
Boardroom: We might have to take down the staff presentation in order for me to share my screen. I have a presentation.

440
01:03:47.630 --> 01:03:48.370
Boardroom: Okay.

441
01:03:55.950 --> 01:03:56.790
Boardroom: Alright.

442
01:03:57.370 --> 01:04:10.849
Boardroom: AB 1033 and the goal of the ADU condo conversion ordinance is to provide opportunities for more affordable home ownership, which is a critical piece of the puzzle, and one that I personally relate very closely to as a young renter with

443
01:04:11.120 --> 01:04:14.659
Boardroom: Some hope that I'll be able to afford a home in the Bay Area eventually.

444
01:04:14.850 --> 01:04:24.160
Boardroom: I think the fundamental question right now is around how to balance the stability of ADU tenants and the opportunities for potential future ADU homeowners.

445
01:04:24.160 --> 01:04:39.209
Boardroom: I don't believe that we should be incentivizing putting ADU tenants in jeopardy of displacement in exchange for home ownership opportunities. That was not the purpose of AB 1033, which allows cities to pass ADU conversion ordinances to encourage more developments of ADUs to be sold independently.

446
01:04:39.630 --> 01:04:58.519
Boardroom: Renters in affected ADUs should be provided with protection similar to those of tenants in other units proposed for condominium conversion, based on our existing condominium conversion ordinance. Based on feedback from tenants, housing supply advocates, and our legal teams, this supplemental material proposes adding the following tenant protections to this ordinance.

447

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01:05:00.350 --> 01:05:04.479
Boardroom: One, to add a condition of approval to prevent no-fault evictions.

448
01:05:04.760 --> 01:05:09.439
Boardroom: Two, to establish the right of first refusal for 90 days for all ADU tenants.

449
01:05:09.570 --> 01:05:18.800
Boardroom: 3 prohibits condo conversion if there has been an owner move-in eviction for the past 5 years. 2. Disincentivize using owner move-ins to avoid other tenant protections.

450
01:05:18.930 --> 01:05:28.219
Boardroom: 4 provides a choice between paying the affordable housing mitigation fee, or agree to rent control the condoized ADU if it is rented out, and I'll explain more about that in a moment.

451
01:05:28.440 --> 01:05:43.419
Boardroom: And five, more clearly define which ADUs are eligible for conversion. Zooming into the last point, this… these definitions would limit ADU conversion to ADUs built after 2002, and this is because pre-2003,

452
01:05:43.710 --> 01:05:50.960
Boardroom: dwellings that had undergone… that have undergone the amnesty program process are subject to this ordinance. They… they… the time

453
01:05:51.290 --> 01:06:00.010
Boardroom: The staff can explain this better, but the time at which the program is approved, that is the year at which it is officially,

454
01:06:00.280 --> 01:06:13.189
Boardroom: built, I guess, for the purposes of this. Pre-2003, dwellings that have not undergone the amnesty program process may be converted through the regular condo conversion ordinance, not the ADU ordinance.

455
01:06:13.330 --> 01:06:19.929
Boardroom: Pre-2003, ADUs are considered built in the year they went through the amnesty process,

456
01:06:20.020 --> 01:06:38.819

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Boardroom: So they would still fall under this ordinance. Prior to 2003, accessory dwelling units did not have their own code section, and were only listed as a special use in the single-family residential district. The term ADU has also become a popular term that is used interchangeably with residential other dwelling types that were previously referred to as in-law units, cottages, granny flats, etc.

457
01:06:38.820 --> 01:06:45.490
Boardroom: Most of these units are now considered full dwelling units, and could only convert to condominiums under the condo conversion ordinance.

458
01:06:47.520 --> 01:06:53.040
Boardroom: So, this slide compares the differences between our condo conversion ordinance

459
01:06:53.540 --> 01:06:59.259
Boardroom: which is already law for non-ADU conversions, the Planning Commission item, and our supplemental item.

460
01:06:59.420 --> 01:07:11.030
Boardroom: The status of a covered versus an exempt ADU varies on situation, on year of construction, on year of certificate of occupancy, on owner occupancy status, on whether it was built on existing residential space, etc.

461
01:07:11.070 --> 01:07:24.330
Boardroom: The status of an ADU can vary and can change over time. Part of our goal here is to simplify the process and ensure that all ADU tenants are protected from displacement for the sake of conversion without adding new protections on property owners that do not wish to convert their unit.

462
01:07:25.650 --> 01:07:41.980
Boardroom: So first, the tenant right of first refusal. The condo conversion ordinance requires that those converting a unit provide one year of right of first refusal for current and future tenants in covered and exempt dwelling units. The Planning Commission recommended one year only for current tenants in fully covered dwelling units.

463
01:07:42.100 --> 01:07:52.180
Boardroom: And the current supplemental compromises by decreasing the timeline to 90 days for current and future tenants in all dwelling units, allowing for a quicker process for sellers.

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464
01:07:54.150 --> 01:08:12.119
Boardroom: For the conversion prohibition after no-fault evictions, so again, the current non-ADU conversion ordinance, condo conversion ordinance, has a waiting period that prevents conversions after no-fault eviction from happening by prohibiting landlords from doing a conversion for 10 years after a no-fault eviction. The Planning Commission recommendation

465
01:08:12.120 --> 01:08:19.920
Boardroom: remove these protections for all units, meaning a landlord could perform a no-fault eviction and immediately convert their ADU, displacing their tenant to sell the unit.

466
01:08:20.050 --> 01:08:31.060
Boardroom: And the current supplemental compromises by shortening the conversion prohibition to 5 years instead of 10 years, and it also adds an Ellis Act Savings Clause to ensure compliance with state law.

467
01:08:33.630 --> 01:08:48.499
Boardroom: In terms of prohibiting owner move-ins for current tenants, the condo conversion ordinance prohibits owner move-in evictions for all current tenants at the time of their conversion. The Planning Commission version prohibits owner move-ins for current tenants living in only covered dwelling units.

468
01:08:48.850 --> 01:08:59.809
Boardroom: At the time of conversion, and our supplemental mirrors the existing condo conversion ordinance by prohibiting owner eviction… owner move-in evictions for all current tenants at the time of conversion.

469
01:08:59.920 --> 01:09:01.320
Boardroom: We're almost done, sorry.

470
01:09:01.740 --> 01:09:20.279
Boardroom: For the affordable housing mitigation fee piece, the condo conversion ordinance requires property owners to pay the affordable housing mitigation fee during a conversion. If they opt into rent control, the fee is halved. The Planning Commission version does not require property owners to pay the affordable housing mitigation fee during a conversion.

471
01:09:20.410 --> 01:09:32.390

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Boardroom: In our supplemental, a property owner who opts to make the newly converted ADU rent-controlled, which would only apply if the condo unit is rented out, they would pay $0 of the MF.

472
01:09:32.810 --> 01:09:37.999
Boardroom: This incentivizes the preservation of rent-controlled housing, prevents displacement, and gives property owners more flexibility.

473
01:09:38.240 --> 01:09:55.789
Boardroom: I want to clarify again that the supplemental is not intended to add any new tenant protections for ADUs that are not already covered by the rental ordinance unless they are converting their unit into a condo. And that we are not required to adopt AB 1033 ordinance under state law, although we should.

474
01:09:58.250 --> 01:10:21.169
Boardroom: And these are some of the impacts, briefly, for the owner move-in, the protections would only apply in the case that the property owner voluntarily opts to convert their ADU into a condo. So, for example, a landlord who wants to go out of business, so a relative can move into their ADU when it is already occupied by a tenant, can still do that without penalty. Someone moving their relative into an ADU would likely not want to convert their ADU because they aren't selling it.

475
01:10:21.170 --> 01:10:24.310
Boardroom: So, the proposed tenant protections of the supplemental would not apply.

476
01:10:24.370 --> 01:10:39.269
Boardroom: And the supplemental only ensures that while creating this new tool for property owners, we don't incentivize displacement. It does this by applying less restrictive versions of tenant protections that already apply in other situations at Berkeley.

477
01:10:40.620 --> 01:10:57.610
Boardroom: Ultimately, the goal of this legislation is to incentivize new development of ADUs for the sake of condoization, not to replace a tenant in an ADU with a homeowner in an ADU. Statistically, tenants of ADUs are lower income and significantly more likely to be displaced away from Berkeley or into homelessness than a middle-income family looking to purchase a home.

478
01:10:57.810 --> 01:11:14.430
Boardroom: As I said at the beginning, I would love to purchase a condo home in the future and start a family in Berkeley, and I'm so glad to see

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that Council is taking concrete steps in creating these opportunities, and I do not want to place, displace my friends who are current young tenants and ADUs, in this situation.

479
01:11:14.590 --> 01:11:32.180
Boardroom: This is not a zero-sum game, and I believe that these amendments balance our priorities to ensure that we are incentivizing affordable home ownership without displacement. And I want to thank Director Klein and his team for all of their hard work on this. I'm also really grateful to the Planning Commission, to the Rent Board, and the City Attorney's Office for their substantial contributions to this ordinance. Thank you so much.

480
01:11:33.880 --> 01:11:36.449
Boardroom: Thank you, Council. Thank you, Vice Mayor.

481
01:11:37.210 --> 01:11:47.730
Boardroom: Okay, so I'd like to get questions from council members first, and then, and that could be to Vice Mayor Lunopara or to staff.

482
01:11:47.860 --> 01:11:55.690
Boardroom: And then, I will take public comment, and then we'll go to Council comments before moving to vote. So, questions?

483
01:12:02.110 --> 01:12:17.489
Boardroom: Okay, I'd like to ask staff if you can please speak to the need for clarification of language around which ADUs this would apply to. This is Councilmember Leno Parr's point. She mentioned that staff might be able to explain it better, so I just wanted to get some clarity on that.

484
01:12:21.140 --> 01:12:31.300
Boardroom: Sorry, which ADUs her supplemental would apply to, or which ADUs does that proposal? No, the final bullet point, if you wouldn't mind pulling it up, asked…

485
01:12:31.760 --> 01:12:35.150
Boardroom: For clarity around the language, Oh, Lord.

486
01:12:35.260 --> 01:12:44.810
Boardroom: I mention that, because the… the situation in which an ADU is, granted the,

487

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01:12:44.850 --> 01:13:00.089
Boardroom: the amnesty program makes the, like, date kind of complicated, so I was wondering if you could just explain it better than I could, what that means when an ADU, an existing ADU, gets approved under the amnesty program. Sure, under the staff and Planning Commission proposal.

488
01:13:00.170 --> 01:13:08.610
Boardroom: A unit that sought amnesty, through the city's amnesty program for unpermitted dwelling units.

489
01:13:09.100 --> 01:13:24.040
Boardroom: could apply… could, qualify for conversion as a condo, but only if… but, there's two pathways through the amnesty program. There's a certificate of compliance pathway, which doesn't result in a full certificate of occupancy.

490
01:13:24.220 --> 01:13:42.610
Boardroom: That, in that case, the unpermitted unit is only screened for, for housing safety. And it doesn't go through the full land use entitlement process, it doesn't go through the, the full building inspection process. In that case, it couldn't get converted into a condo.

491
01:13:42.740 --> 01:13:53.910
Boardroom: If it goes the full route, which is essentially the normal entitlement and building permitting process, with amnesty protection from any code enforcement.

492
01:13:54.030 --> 01:14:02.829
Boardroom: Then it would qualify for conversion, regardless of the Date of original construction.

493
01:14:03.080 --> 01:14:10.170
Boardroom: And I think that's one way in which the… in which the supplemental differs from the Planning Commission recommendation.

494
01:14:12.130 --> 01:14:15.269
Boardroom: Okay, thank you.

495
01:14:16.150 --> 01:14:25.460
Boardroom: And I know we've gone over this, but I think it would be good if you could also help us understand what, if any, protections exist for tenants who live in an exempt ADU.

496

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01:14:30.540 --> 01:14:41.260
Boardroom: So, yeah, I can answer that question. So, fully exempt units, Kev actually own,

497
01:14:43.480 --> 01:14:51.300
Boardroom: Fully exempt units have no protection, But the…

498
01:14:52.480 --> 01:15:02.259
Boardroom: There is really a small subset of units that are fully exempt. So, that doesn't mean that the…

499
01:15:02.420 --> 01:15:06.280
Boardroom: ADUs to be converted are,

500
01:15:07.080 --> 01:15:15.419
Boardroom: Are not gonna offer any protection, because most of them are actually partially covered units, and they have some of the tenant protections.

501
01:15:15.620 --> 01:15:27.679
Boardroom: So, all of the tenant protections that are in conduct conversion ordinance that apply to partially covered units would also be, applied to these ADUs.

502
01:15:27.830 --> 01:15:42.470
Boardroom: And most of the ADUs that are rented would fall into that category. So, these protections would be exclusive right to purchase, right to remain, and recent no-fault eviction screening.

503
01:15:44.190 --> 01:15:54.940
Boardroom: Thank you. Yeah, so the point is, fully exempt units, that's a very, very narrow subset, and, it only actually applies to,

504
01:15:56.080 --> 01:15:59.129
Boardroom: to ADUs that are,

505
01:15:59.740 --> 01:16:11.330
Boardroom: On the property, zoned for single-family, for single-family use, and where there are only two units, and one of them is owner-occupied.

506
01:16:13.310 --> 01:16:16.539

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Boardroom: Thank you. Councilmember Blackaby.

507
01:16:17.090 --> 01:16:33.400
Boardroom: Thanks, Madam Mayor. One quick question, and we may not have the answer. I was curious if staff has any rough projections, predictions as to, the kind of volume we might expect. I know we had a similar discussion about that during the middle housing discussion.

508
01:16:33.400 --> 01:16:38.859
Boardroom: But, is it… do you have a sense of, under the Planning Commission proposal, any rough

509
01:16:38.980 --> 01:16:42.939
Boardroom: Projections of volume, and how that may or may not be affected if

510
01:16:43.070 --> 01:16:58.090
Boardroom: in the alternative version? Do we have any sense of numbers? Sure, I'll give, a crack at… take a crack at that. So we have been seeing production on average, of about 100 ADUs per year over the last 5 years or so.

511
01:16:58.780 --> 01:17:05.080
Boardroom: We don't think that that's going to be impacted in a huge way by either of these proposals.

512
01:17:05.290 --> 01:17:08.429
Boardroom: What it does, it creates a new…

513
01:17:09.120 --> 01:17:13.519
Boardroom: avenue for separate sale, but I… I mean, it's difficult to speculate, but…

514
01:17:14.400 --> 01:17:25.750
Boardroom: I don't think that this will necessarily… I mean, we think that it could have a slightly, beneficial in terms of production. It could encourage a little bit more production.

515
01:17:26.020 --> 01:17:32.080
Boardroom: By, you know, creating an opportunity for somebody to, you know.

516

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01:17:32.200 --> 01:17:40.560
Boardroom: take advantage of some unused land on their property. And then regarding the supplemental material.

517
01:17:40.860 --> 01:17:59.109
Boardroom: You know, most of the… most of the proposed expand provisions don't have any direct impact on unit production. They're really about when there's an existing sitting tenant. And so, somebody who's choosing to go… to produce a new unit, they could decide whether or not they want to rent out that unit.

518
01:17:59.250 --> 01:18:04.919
Boardroom: You know, the one possible exception is the application of the affordable housing mitigation fee.

519
01:18:05.740 --> 01:18:16.709
Boardroom: Because that's… but that's still an edge case, because it's somebody who is planning to produce an ADU for a separate sale, with the expectation that it would be…

520
01:18:16.850 --> 01:18:19.470
Boardroom: A for-rent unit.

521
01:18:19.490 --> 01:18:28.670
Boardroom: Right? So that's a pretty narrow subset of the kind of units we're talking about, but it could have a slight impact on production, but we don't think it'd make an impact. Okay, great.

522
01:18:28.670 --> 01:18:41.489
Boardroom: And then, getting back to the earlier question about, kind of, what's covered, what's not covered, again, your sense is the vast majority, the fully covered units and the partially covered units, that's still where most of the volume is.

523
01:18:41.610 --> 01:18:47.860
Boardroom: And the number of units, that are the fully… of the fully exempt kind, which is…

524
01:18:48.340 --> 01:19:08.300
Boardroom: for the most part, what would exist in my district in D6 is your individual homeowners who may or may not create an ADU and are going to be owner-occupied. That's a relatively small percentage of the overall volume. Is that fair to say? Yeah, I just want to qualify. We really don't have good data distinguishing these by

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525
01:19:08.310 --> 01:19:14.749
Boardroom: by type, so it's really difficult for us to answer. You know, you heard Branca speculate that

526
01:19:14.830 --> 01:19:25.930
Boardroom: it's likely a pretty small percentage of the overall volume of ADUs, but we don't have great data on that. Okay, but if you are, if you are a tenant, an ADU that's owned by

527
01:19:26.400 --> 01:19:29.060
Boardroom: Someone who's not… does not live on-site.

528
01:19:29.630 --> 01:19:35.350
Boardroom: Full protection, or partial or full protections under the existing rent control, and that's preserved.

529
01:19:35.650 --> 01:19:37.439
Boardroom: In this, in this piece.

530
01:19:38.150 --> 01:19:38.900
Boardroom: Thank you.

531
01:19:41.130 --> 01:19:43.139
Boardroom: Thank you very much. Any other questions?

532
01:19:44.530 --> 01:19:45.200
Boardroom: Okay.

533
01:19:45.660 --> 01:19:48.480
Boardroom: Oh, sorry, yes, thank you. Councilmember Taplin?

534
01:19:48.480 --> 01:19:53.919
Terry Taplin: Thank you. I would actually like to, refer my question to the city attorney.

535
01:19:58.790 --> 01:20:05.789
Boardroom: Thank you. She's ready. I also have, Steve Hilis that worked on this project, available.

536

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01:20:07.060 --> 01:20:09.860
Boardroom: Feel free to ask either of us the question.

537
01:20:10.390 --> 01:20:12.699
Terry Taplin: Sure, thank you very much. Thank you both very much.

538
01:20:13.050 --> 01:20:27.249
Terry Taplin: And so this was before my time, but we've received communications periodically from members of the ADU Task Force regarding exemptions to the Rent Stabilization ordinance for certain types of rental units codified by the 2018 Berkeley Measure Q.

539
01:20:27.290 --> 01:20:38.540
Terry Taplin: Can you clarify what those exemptions were, and what impact on those exemptions the amendments proposed here tonight in the supplemental would have, how the proposed language would interact with the RSO?

540
01:20:40.180 --> 01:20:53.159
Boardroom: I can start, and then I can turn it over to Steve if he, is prepared to answer that, but in our examination of the ordinance, there's no conflict between Measure Q

541
01:20:53.260 --> 01:20:56.179
Boardroom: Which was, as you mentioned, a ballot initiative.

542
01:20:56.450 --> 01:20:59.860
Boardroom: And, and this ordinance.

543
01:21:00.710 --> 01:21:06.829
Boardroom: Steve, I don't know if you're online, or Lauren, if you wanted to add anything.

544
01:21:08.000 --> 01:21:10.300
Stephen Hylas: Yes, I am, hi.

545
01:21:10.970 --> 01:21:19.380
Stephen Hylas: Yes, so under Measure Q, which, as you noted, was passed by the voters in 2…

546
01:21:19.990 --> 01:21:31.429

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Stephen Hylas: 2018. Certain ADUs, specifically, certain ADUs on… Properties where there's a single…

547
01:21:31.660 --> 01:21:44.700
Stephen Hylas: family home, and the landlord occupies a unit in the same property, are fully exempt from the rental ordinance, provided

548
01:21:44.890 --> 01:22:04.109
Stephen Hylas: that the tenancies in question, were created after November of 2018. And so, for those types of units are fully exempt under the MENT ordinance, and they are treated as

549
01:22:04.590 --> 01:22:07.419
Stephen Hylas: Such under the staff proposal.

550
01:22:09.630 --> 01:22:20.450
Terry Taplin: Thank you very much. And so, what the, language proposed by the supplemental removed that exemption for…

551
01:22:21.270 --> 01:22:22.459
Terry Taplin: Those units…

552
01:22:35.710 --> 01:22:47.970
Stephen Hylas: It wouldn't remove all of those exemptions, but I believe it would remove some in that it would apply certain

553
01:22:48.140 --> 01:22:49.760
Stephen Hylas: tenant protections.

554
01:22:50.000 --> 01:23:03.850
Stephen Hylas: to all ADUs. We, however, have concluded that the way that the supplemental is written wouldn't pose any conflict with Measure Q.

555
01:23:05.560 --> 01:23:11.120
Terry Taplin: Alright, thank you. And then, my final question is for, the planning staff.

556
01:23:11.890 --> 01:23:25.340
Terry Taplin: do we… and my apologies if we… if we don't have this, but do we have numbers on ADUs produced before and after November of 2018?

557

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01:23:27.750 --> 01:23:31.670
Boardroom: We have numbers, produced after 2018.

558
01:23:32.030 --> 01:23:38.440
Boardroom: And I mentioned it's been, on average, about 100 a year since then. We don't have good data

559
01:23:38.550 --> 01:23:46.470
Boardroom: on projection… Prior to… Around that point, actually. Yeah.

560
01:23:48.070 --> 01:23:50.150
Terry Taplin: Yeah, thank you very much. Those are my questions.

561
01:23:51.100 --> 01:23:53.780
Boardroom: Okay, thank you very much. Any other questions?

562
01:23:54.280 --> 01:23:58.390
Boardroom: Okay, we will move on to public comment then, please.

563
01:23:59.910 --> 01:24:00.630
Boardroom: Coming up!

564
01:24:03.910 --> 01:24:11.650
Boardroom: And I've got a minute from someone, yeah. I know, many of you are here for that, so I kind of want to just get a sense of how many folks…

565
01:24:12.900 --> 01:24:16.899
Boardroom: Okay, it'll be a minute, so… and you have a minute from this person here.

566
01:24:17.230 --> 01:24:17.920
Boardroom: Okay.

567
01:24:18.170 --> 01:24:36.500
Boardroom: Go ahead. Good evening, Mayor and members of the City Council. As Chair of the Rent Board, I'd like to thank Councilmember Lunapara and Councilmember Bartlett for their support for this supplemental, which, will… I think… the important thing to understand is largely mirrors protections already in place for tenants in… when condo conversions occur, but

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568
01:24:36.500 --> 01:24:40.699
Boardroom: Significantly lowered the burden of those protections for,

569
01:24:40.700 --> 01:24:58.349
Boardroom: during the conversion process. The board supports, in concept, the idea that we want to make it easier to produce homeownership opportunities in Berkeley, right? You know, whether we need more housing, whether that's rental housing or owned housing, and as Councilmember Lunapara said, maybe one day some of us young folks will be able to buy a house in Berkeley.

570
01:24:58.370 --> 01:25:06.740
Boardroom: But, I think the important thing, as Planning Director Klein mentioned, is that we don't need to incentivize the creation of units that already exist.

571
01:25:06.770 --> 01:25:09.349
Boardroom: Right? Those units that are currently tenant-occupied.

572
01:25:09.490 --> 01:25:17.359
Boardroom: have been built. We don't need to do anything to incentivize their creation. And it doesn't make new housing to replace tenant-occupied housing with owner-occupied housing.

573
01:25:17.370 --> 01:25:25.109
Boardroom: And so, any unit that's going to be built because of this ordinance will be built empty of tenants. No building that you build from the ground up comes with a tenant inside it.

574
01:25:25.120 --> 01:25:40.720
Boardroom: And so this will have minimal impacts on the creation of what this unit would… what this proposal would do to incentivize the creation of new housing. As Director Klein stated, the one part that could is this part about the fee, but these are units that are designed to be sold.

575
01:25:40.830 --> 01:25:58.999
Boardroom: and owned. So, the imposition of rent control will have a de minimis impact on selling price if it's being sold for a homeownership opportunity. Those units are not going to be rented. It's more of an ins… it's an insurance, right, that basically, if you're not going to use the ordinance for the purpose that we're designing it to, we want to make sure that tenants in those units have protections.

576

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01:25:59.150 --> 01:26:01.739
Boardroom: Additionally… oops, sorry, my phone walked.

577
01:26:02.320 --> 01:26:06.949
Boardroom: I like to be environmentally friendly and have a fast close time, but it sometimes bites you in the butt.

578
01:26:08.490 --> 01:26:28.720
Boardroom: Likewise, all currently inbuilt ADUs were built with the understanding that they wouldn't be sold as condos, so there's no rug pull going on here. This is the status quo, and we're granting a new right, which is the right to convert to a condo, and imposing reasonable protections that mirror current protections. Thank you. So, just I'll say, I have staff from the rent board here if folks have any questions. Thank you.

579
01:26:34.100 --> 01:26:35.210
Boardroom: Good evening.

580
01:26:38.300 --> 01:26:57.709
Boardroom: Thank you, Carol. Was that Carol? Sorry, I can't see you. Yeah. Okay, thank you. So, I appreciate the chance to speak to this. I am here to support the, work of, Councilmember Luna Parra, and, also… Sorry, folks, can I just have it be quiet while people give public comment? Thank you.

581
01:26:59.100 --> 01:27:08.090
Boardroom: So, I'm here to support that, and there's many details I don't know, but I did want to speak to the item on page 5 in the…

582
01:27:08.350 --> 01:27:09.910
Boardroom: packet.

583
01:27:10.060 --> 01:27:26.050
Boardroom: Which indicates ADU condos would be exempt from conversion mitigation fees. So, I would very much encourage a re-look at that. I have, for the last 20 years, have lived in limited equity

584
01:27:26.280 --> 01:27:32.049
Boardroom: condominium co-housing, which meant there was a group of us that got together, bought

585
01:27:32.400 --> 01:27:37.879

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Boardroom: And moved in as renters into a property that had already been

586
01:27:37.980 --> 01:27:50.780
Boardroom: unfortunately depleted of renters, but we moved in as an empty… as cooperators. The point was that we negotiated for permanent affordability at the moderate income level.

587
01:27:50.780 --> 01:28:05.450
Boardroom: in perpetuity, and we were, in exchange for giving up the condo, the rental conversion fees, the condo conversion fee. That helped us create and be able to buy these units as moderate-income people.

588
01:28:05.650 --> 01:28:12.539
Boardroom: And that agreement is now going away, because the city attorneys said, no, you can't make it in perpetuity.

589
01:28:12.560 --> 01:28:22.429
Boardroom: I would really like to encourage you to think about that as a bargaining, negotiating, to actually make it permanently

590
01:28:22.430 --> 01:28:38.820
Boardroom: affordable if… with the mitigation fee, forgiven if people go with a land trust or some other mechanism that keeps it perpetually affordable to moderate-income people. Because we know how crazed the market

591
01:28:38.900 --> 01:28:46.480
Boardroom: of sellers and interested, parties have been. Thank you. Thanks, Betsy. Thank you.

592
01:28:52.060 --> 01:28:52.910
Boardroom: Just kidding.

593
01:28:58.010 --> 01:29:07.530
Boardroom: Hello, Madam Mayor and City Council, Nathan Meisel, Berkeley Rampport. Good to see all of y'all. I want to thank Councilmember Bartlett, Vice Chair Lunaparr, for introducing this item.

594
01:29:07.820 --> 01:29:18.060
Boardroom: I think, you know, Chair Alpert said really all the main points here. Certainly those who originally got in the ADU, you know, market or business.

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595
01:29:18.220 --> 01:29:30.479
Boardroom: This is a new avenue for them, and hopefully for, you know, regular folks in our city to be able to live here and maybe buy a home. I'm in that camp hoping that's something I can do one day.

596
01:29:30.560 --> 01:29:35.889
Boardroom: But more importantly than about me, it's really these predictions, and I think the graph, that…

597
01:29:35.960 --> 01:29:39.000
Boardroom: The Vice Mayor showed really illuminates on it.

598
01:29:39.010 --> 01:29:47.559
Boardroom: The city has similar protections that are in place for the condo conversions already. These protections mirror that, and in some ways are a compromise.

599
01:29:47.560 --> 01:30:00.050
Boardroom: I think it really gives a reasonable balance between allowing for greater building and home ownership and protecting tenants from displacement. Things are both very important in this city. So, thank you for considering this. Thank you.

600
01:30:06.020 --> 01:30:10.160
Boardroom: Good evening, Mayor Ishii and Council Members. My name is Audrey Kramer.

601
01:30:10.160 --> 01:30:33.310
Boardroom: I am a sophomore at UC Berkeley, and, am speaking to you today on behalf of Cal Berkeley Democrats. I am coming to you as a student, and I urge you to adopt amendment to Title 21. Housing in this city is expensive, we all know it, but the people who feel it are the students like me. Enabling the sale of these units separately encourages the building of these homes, allowing for more housing to be built in our community.

602
01:30:33.530 --> 01:30:51.989
Boardroom: It is important to me as a renter in this city that my government works hard to keep our city and community affordable and renter-friendly. I'm particularly in favor of Councilmember Luna Parra's amendment to increase tenant protections for all of us. Please adopt this, amendment to Title 21, but especially the revised agenda material. Thank you for your time.

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603
01:30:52.480 --> 01:30:53.560
Boardroom: Thank you.

604
01:30:57.340 --> 01:31:09.770
Boardroom: Good evening, Mayor Ishii and Councilmembers. Sam Greenberg here on behalf of East Bay for Everyone. East Bay for Everyone believes that the most successful outcome of this policy is increased production of ADUs for condoization.

605
01:31:09.770 --> 01:31:25.369
Boardroom: We believe that increasing tenant protections for sitting ADU tenants would not preclude increased production, and would limit displacement of lower-income residents, younger families, and generally vulnerable tenants. And I also want to highlight that Director Klein just shared in his response to Councilmember Blackaby

606
01:31:25.370 --> 01:31:32.310
Boardroom: Blackbee's question that, that added protections wouldn't have a notable impact on production.

607
01:31:32.310 --> 01:31:52.309
Boardroom: We applaud your dedication to implementing AB 1033. Not every jurisdiction in the state is doing that, but we urge you to pass this policy right. We can be a model for how cities implement AB 1033 justly, statewide, and I hope we can accomplish that tonight. With Calhome funding zeroed out in Newsom's state budget.

608
01:31:52.310 --> 01:32:02.290
Boardroom: And, with tenants… more… with tenants, more precariously housed than ever, it's important to pass this policy, but to do it right with added protections. Thank you. Thanks, Sam.

609
01:32:08.100 --> 01:32:12.720
Boardroom: Good evening, everyone. Thank you, Councilmember Bartlett and Vice Mayor Lenopara.

610
01:32:12.950 --> 01:32:32.059
Boardroom: these amendments and modifications. I really hope and urge Council to support these. I am extremely hopeful for the continuous, you know, agenda of having housing options as well as tenant protections. Thank you so much.

611
01:32:33.060 --> 01:32:34.340

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Boardroom: Thank you.

612
01:32:38.830 --> 01:32:39.949
Boardroom: Good evening.

613
01:32:40.190 --> 01:32:45.770
Boardroom: Mayor and City Councilors, I just wanted to thank you for making… for this item, and making

614
01:32:46.130 --> 01:32:55.610
Boardroom: ADUs more… easier to, create and use, and I also wanted to thank Councilmember Lenipara for the supplemental, because AD… because

615
01:32:55.920 --> 01:32:58.400
Boardroom: Re… Because…

616
01:32:58.780 --> 01:33:07.360
Boardroom: you can have housing development and renter's rights, and so thank you, thank you so much, and I hope you will adopt Councilmember Lunapar's supplemental.

617
01:33:08.370 --> 01:33:09.680
Boardroom: Thank you.

618
01:33:10.860 --> 01:33:11.690
Boardroom: Come on up.

619
01:33:13.360 --> 01:33:15.900
Boardroom: I get to do this again. Bend this down a bit.

620
01:33:16.150 --> 01:33:31.100
Boardroom: Hello. My name is Daniel, I'm with the Cal Berkeley Democrats, and yeah, I would just like to voice my support for the measure. I think that, obviously, Berkeley's facing an acute housing shortage, and ADUs are probably going to make up a big part of remedying that issue.

621
01:33:31.100 --> 01:33:39.809
Boardroom: ADU's made up, I think, something like 20% of new housing developments in the past few years, which, you know, obviously implies that they'll be, you know, a big part of

622

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01:33:39.860 --> 01:33:41.630
Boardroom: Housing development in the future.

623
01:33:41.870 --> 01:33:47.619
Boardroom: I also think that it's important to ensure that tenants still have their needed protections.

624
01:33:47.740 --> 01:33:50.299
Boardroom: I think that, you know, as the…

625
01:33:50.450 --> 01:33:54.840
Boardroom: what's it called? As they said earlier, it wouldn't…

626
01:33:55.650 --> 01:34:09.479
Boardroom: so adversely affect housing pri- what's it called? Production of ADUs, so I think that, you know, just looking at the facts, as long as they don't adversely affect ADU production, I think that it's reasonable to adopt it. Thank you.

627
01:34:09.840 --> 01:34:11.040
Boardroom: Thank you.

628
01:34:16.220 --> 01:34:17.350
Boardroom: Good evening.

629
01:34:17.470 --> 01:34:30.080
Boardroom: Is this on? Good evening, Mayor Ishii and Council Members. I'm Ida Martinak, I'm, also a Rent Board Commissioner, and would like to echo the comments of my colleagues.

630
01:34:30.450 --> 01:34:32.689
Boardroom: And I just want to say my hope

631
01:34:33.210 --> 01:34:36.200
Boardroom: It's limited to surviving this year, but…

632
01:34:36.340 --> 01:34:51.969
Boardroom: Should we all survive this year, it would be nice to be able to afford a home in Berkeley, and I really wish that for the younger generation to be able to own a home, and I welcome,

633

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01:34:52.110 --> 01:35:02.849
Boardroom: vice, mayors and Councilmember Bartlett's, supplement, in that it is a very happy, compromise. Thank you so much.

634
01:35:03.350 --> 01:35:04.500
Boardroom: Thank you.

635
01:35:09.780 --> 01:35:23.900
Boardroom: Good evening, Council, Mayor, and Vice Mayor. My name is Rebecca, and I'm an ADU tenant in Berkeley. I think that we should adopt a version of AB 1033 with more tenant protections, with the goal of incentivizing

636
01:35:23.900 --> 01:35:31.200
Boardroom: new development for condos instead of replacing existing ones. And as an ADU renter, I want

637
01:35:31.240 --> 01:35:43.789
Boardroom: just as everyone else before me said, to be able to buy a home someday, especially in Berkeley, but I don't want to be… risk being evicted in the meantime. Please support Vice Mayor Lunapara's supplemental. Thank you.

638
01:35:44.510 --> 01:35:45.680
Boardroom: Thank you.

639
01:35:51.060 --> 01:36:05.670
Boardroom: Hi all, I'm Audrey Tam, so another Audrey, but I'm a student in Calhabitat for Humanity. Many students, as renters, see ADUs as important to Berkeley's housing, and I know this because you let me and you guys know. Important enough to email you over winter break, to show up.

640
01:36:05.710 --> 01:36:11.510
Boardroom: And to speak here today, on our first day of school. Here's a comment from Theo Wang, who isn't here today.

641
01:36:11.660 --> 01:36:26.669
Boardroom: Like many students, I chose Berkeley not just for school, but also because I care about this community and hope to stay in the area after graduation. And housing is a big issue on my mind. Over the past few years, I've watched friends struggle to find affordable housing close to campus, or face unexpected rent increases.

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642
01:36:26.720 --> 01:36:45.360
Boardroom: Student housing often comes in the form of small units or ADUs, and those spaces are essential for keeping Berkeley accessible to students from all backgrounds. When students are displaced, it doesn't just disrupt our housing, it also hugely impacts our education, mental health, and sense of belonging. Please consider our voices. AB 1033 expands housing access opportunities.

643
01:36:45.360 --> 01:36:54.610
Boardroom: Simultaneously, displaced ADU tenants are more likely to be homeless. Berkeley can set a precedent here tonight. Prioritize new home ownership and tenant protection. Thank you.

644
01:36:55.210 --> 01:36:56.260
Boardroom: Thank you.

645
01:37:01.360 --> 01:37:09.939
Boardroom: Hello, my name is Shalini. I'm also with Cal Habitat for Humanity, an organization centered around equitable housing. I'm speaking on behalf of my peer, Ava Smith.

646
01:37:10.060 --> 01:37:15.960
Boardroom: A close friend of hers who lived in her hometown her whole life was forced to leave the home that her family was living in after…

647
01:37:16.110 --> 01:37:29.269
Boardroom: the landlords decided to turn the home's garage into an ADU. They were without a home for months and ultimately were forced to leave the community. A large reason why I've loved living in Berkeley is because of this community's diversity. Permitting ADUs

648
01:37:29.340 --> 01:37:41.640
Boardroom: as written, as AB 1033 has written, can hurt this diversity. AB 1033 is a good policy that will increase the number of housing units, but in a city that already relies on rent control to prevent displacement, I hope that tenant protections

649
01:37:42.110 --> 01:37:57.009
Boardroom: will be included in AB 1033, because by including safeguards to prevent no-fault evictions and guaranteeing first right of refusal, Berkeley can ensure that families and individuals will not suffer from the implementations of ADUs the same way people have in her hometown, and that's it. Thank you.

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650
01:37:57.470 --> 01:37:59.150
Boardroom: Thank you for your comment.

651
01:38:06.390 --> 01:38:12.120
Boardroom: Hi, my name is Lucia, and I'm also part of Cal Habitat, and I'll be speaking for my friend Lorena.

652
01:38:12.940 --> 01:38:22.440
Boardroom: Hello, my name is Lorena, and I personally am currently fortunate enough to live in a student rental here in the University Village, where my rent is covered by financial aid.

653
01:38:22.840 --> 01:38:27.359
Boardroom: Otherwise, like many others, I'd be struggling in finding affordable housing.

654
01:38:27.940 --> 01:38:37.819
Boardroom: As I've had countless of my peers tell me of their unfortunate housing situations that ultimately left them homeless, couch-hopping, and seeking unconventional housing for the night.

655
01:38:38.240 --> 01:38:42.600
Boardroom: It is plain to see that it isn't humane, and should be prevented from worsening.

656
01:38:43.050 --> 01:38:47.350
Boardroom: It is substantial that we keep in mind that many students live in ADUs.

657
01:38:50.780 --> 01:38:51.540
Boardroom: Hold up.

658
01:38:54.730 --> 01:39:01.739
Boardroom: That many students live in ADUs, or small rental units, and as students, we wish to protect ourselves as tenants. Thank you.

659
01:39:02.270 --> 01:39:03.410
Boardroom: Thank you.

660
01:39:08.330 --> 01:39:16.640

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Boardroom: Hello, my name is Madeline. I am also a member of Cal Habitat for Humanity at Berkeley, and I'll be speaking on behalf of my peer, Oliver Chang, who cannot be here today.

661
01:39:17.980 --> 01:39:40.180
Boardroom: Hello, my name is Oliver Chang. I am currently renting an apartment in Berkeley for college and will be there for at least another year and a half. I've seen too many examples firsthand of how housing instability has affected how students go about their daily lives. In fact, today I was with a friend who was absent-minded because all she could think about was how she had to move out because rent was being raised at where she was living currently, affecting her thought process and how she interacted with everyone.

662
01:39:40.180 --> 01:39:46.709
Boardroom: As a result, I believe we should say yes to AB 1033 and tenant protections, because Berkeley has an opportunity to do this right.

663
01:39:46.710 --> 01:39:58.469
Boardroom: This is a good policy. We should allow ADUs to be converted into condos and sold separately, especially when they are newly built and not rented, but this should not happen at the expense of existing ADU tenants who are especially vulnerable.

664
01:39:58.610 --> 01:40:02.889
Boardroom: Tenants that live there currently desert protections as well. Thank you.

665
01:40:03.100 --> 01:40:04.270
Boardroom: Thank you.

666
01:40:09.700 --> 01:40:16.370
Boardroom: Hi, my name is Alex DeFrega, and I'll be reading on behalf of Angie, a fellow CalHabitat for Humanity member and UC Berkeley student.

667
01:40:16.560 --> 01:40:29.970
Boardroom: A couple of years ago, I lived in a rented ADU with my family. Though it wasn't here in Berkeley, it was one of the many ways we experienced an inequitable and inaccessible path to ownership, and it is applicable to a variety of communities across the country.

668
01:40:29.970 --> 01:40:36.770

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Boardroom: Having the ADU as a housing option had significantly helped my family find a sense of stability amidst the housing challenges we were experiencing.

669
01:40:36.880 --> 01:40:52.420
Boardroom: A lack of information on tenant protections and educational barriers pushed us to displacement when the rent increased over time and ownership of the ADU was not an option. Berkeley has an opportunity to do this right. ADUs have the potential to offer an affordable space upgraded from a room or apartment.

670
01:40:52.420 --> 01:41:04.230
Boardroom: If combined with greater tenant protections against displacement and towards home ownership, Berkeley can expand long-term housing stability. We hope that the Lunapara Bartlett Supplemental is adopted with AB 1033. Thank you for your time and consideration.

671
01:41:05.990 --> 01:41:07.510
Boardroom: Thank you very much.

672
01:41:10.360 --> 01:41:16.639
Boardroom: Good evening, Council. I'm Debbie Sanderson. I'm speaking on behalf of the ADU Task Force.

673
01:41:16.890 --> 01:41:21.980
Boardroom: In the past, this council's been very supportive of housing, and we thank you for that.

674
01:41:22.260 --> 01:41:28.760
Boardroom: We think it is now imperative that we build as many ADUs as we can.

675
01:41:29.100 --> 01:41:36.250
Boardroom: And we… but we want to remind you, that The people of Berkeley

676
01:41:36.860 --> 01:41:40.250
Boardroom: Gave us a clear mandate in 2018.

677
01:41:40.580 --> 01:41:44.690
Boardroom: And we should continue to honor that mandate.

678
01:41:45.110 --> 01:41:48.930

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Boardroom: through the life of the ADU.

679
01:41:49.230 --> 01:41:52.529
Boardroom: Even as a condo.

680
01:41:52.880 --> 01:42:06.570
Boardroom: So, we urge you, I think the spirit of 2018 Measure Q was to relieve ADUs that are on owner-occupied property, a small number of them.

681
01:42:06.890 --> 01:42:14.719
Boardroom: to… have control over who lives in their ADU, because they live there, too. Thank you. Thank you.

682
01:42:18.350 --> 01:42:30.979
Boardroom: Good evening, Mayor Ishii, and Vice Mayor Luna Parra, and City Council members. First of all, I want to thank Councilmember Lunapara and Ben Bartlett for this very thoughtful supplemental, item. You know, tenants…

683
01:42:31.040 --> 01:42:35.780
Boardroom: living in ADUs are consumers in the rental housing industry.

684
01:42:35.830 --> 01:42:48.610
Boardroom: When you have a business and your ADU is a business, it is a business. You are making money. So tenants should have protections, just like consumers in other industries should have protections. And

685
01:42:48.610 --> 01:42:59.370
Boardroom: These are really reasonable. These are really reasonable. I mean, I would love for them to have one year for, you know, to think about it, but, you know, to think about if they have the first right of approval.

686
01:42:59.410 --> 01:43:07.599
Boardroom: But, doesn't matter, 90 days are fine. All these are good. So I really would hope that you consider this, that tenants need protections. Thank you.

687
01:43:09.190 --> 01:43:10.220
Boardroom: Thank you.

688
01:43:12.840 --> 01:43:35.930

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Boardroom: Good evening, Mayor and Council Members. Crystal Branson, Executive Director of the Berkeley Property Owners Association. I just want to remind you, yes, in 2018, the ADU Task Force, of which I was one of the founding members, and with Ben Bartlett's help, we came forward with a proposal to the voters that said that owner-occupied properties, certain ones, especially with new construction ADUs, would receive exemptions from

689
01:43:35.930 --> 01:43:45.270
Boardroom: parts of the rent stabilization ordinance. I'm here to say that I do believe, in reading this carefully, that Councilmember Luna Parr's proposal

690
01:43:45.270 --> 01:44:10.240
Boardroom: actually contradicts that. It puts tenant protections on some ADUs if they decide to convert and be able to sell off the ADU, and that is not permitted under the law, because the rent stabilization ordinance is a directive of the voters. She also is proposing that you remove the ability to do an owner move-in. An owner move-in is given to those

691
01:44:10.240 --> 01:44:19.279
Boardroom: properties where a tenant has tenant protections under the rent stabilization ordinance. Thank you. So I think you need a more clear answer on that. Thank you. Thank you so much.

692
01:44:24.560 --> 01:44:25.650
Boardroom: Good evening.

693
01:44:27.190 --> 01:44:46.659
Boardroom: To the mayor, to council members, my name is Dominique Walker, I'm the Vice Chair of the Berkeley Rent Board, and I just wanted to echo my colleagues. I think that this is a fair compromise. Councilmember Luna Parra, Ben Bartlett, I think that we can work with this, and I would love for you all to vote yes on the amendment.

694
01:44:46.850 --> 01:44:48.939
Boardroom: And I'll cede the rest of my time tomorrow.

695
01:44:50.650 --> 01:44:51.800
Boardroom: Thank you.

696
01:44:52.920 --> 01:44:57.650
Boardroom: Hello, my name's Andy Kelly, I'm a Rep Board Commissioner and Vice Chair of the County Planning Commission.

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697
01:44:57.870 --> 01:45:06.970
Boardroom: I was just here to speak in support of the supplemental, which I think is a very reasoned compromise. Sorry, can you move closer? Yes. I've never been accused of not being loud enough in my life.

698
01:45:07.120 --> 01:45:15.390
Boardroom: I'm just here to speak in support of the supplemental, which I think is a very reasoned compromise in the kind of spirit of collaboration we'd love to see the Council impart on these issues.

699
01:45:15.660 --> 01:45:21.370
Boardroom: I think it's important to note that no one affected by this ordinance tonight built an ADU with the intention of selling it.

700
01:45:21.490 --> 01:45:32.000
Boardroom: That's a major thing that the city is giving to these homeowners, and it's a wonderful thing. If you need to retire, or you want to pay for your kid's college, having the ability to sell is wonderful.

701
01:45:32.110 --> 01:45:36.099
Boardroom: But so is the ability of folks who are living there now to stay if they want to.

702
01:45:36.590 --> 01:45:52.500
Boardroom: We can do both things. It's not mutually exclusive. And giving tenants 3 months to figure out if they can purchase the property, that's a great thing. It's good for our neighborhoods to stabilize them, it provides the stability and affordable housing the ADUs were meant to do in the first place.

703
01:45:52.630 --> 01:45:55.499
Boardroom: And the tenant protections would only exist

704
01:45:55.750 --> 01:45:59.280
Boardroom: For the rent control, if the homeowner decided they wanted them.

705
01:45:59.460 --> 01:46:12.649
Boardroom: No one forces that in the supplemental. Only an owner who's saying, I'm gonna sell this A to you, I'd like it to remain affordable, it's gonna be in my backyard, I'd like folks to be able to stay there.

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That's a choice. You don't want to do it, you pay the affordable housing fee.

706
01:46:12.760 --> 01:46:27.830
Boardroom: You pay the condo conversion fee, you go through the regular process. But it allows the protections without anyone being forced to do it. It's a wonderful compromise. It provides a pathway to homeownership for folks who don't have a million dollars, and I strongly encourage the Council to support

707
01:46:27.930 --> 01:46:29.310
Boardroom: Supplemental, thank you.

708
01:46:30.580 --> 01:46:31.789
Boardroom: Thank you.

709
01:46:32.590 --> 01:46:35.840
Boardroom: Any public comment on this item online?

710
01:46:40.640 --> 01:46:45.679
Boardroom: Public comment on item 21, allowing separate sale of ADUs.

711
01:46:46.340 --> 01:46:50.880
Boardroom: Currently have 4 hands raised. First is Alfred Tu.

712
01:46:55.610 --> 01:47:00.500
Alfred Twu: Good evening, City Council. My name is Alfred Chiu. I'm also a Rent Board Commissioner.

713
01:47:00.710 --> 01:47:07.150
Alfred Twu: And I'm here to also speak in favor of the item with Councilmember Lunaparos Supplemento.

714
01:47:07.360 --> 01:47:19.950
Alfred Twu: Our goal here is to get people to build new ADUs, so we have more housing being built, and also get people who have an empty ADU, but aren't interested in renting it out, to perhaps consider selling it.

715
01:47:20.950 --> 01:47:35.980
Alfred Twu: Portland, Oregon, to our north, they implemented an ADU condo ordinance about 10 years ago, and they now have a good ecosystem of

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businesses that specialize in building new for-sale ADUs. And that's really the motto we want to go.

716
01:47:36.090 --> 01:47:41.769
Alfred Twu: Where people are building new homes, rather than just taking homes from one person for another.

717
01:47:42.290 --> 01:47:47.420
Alfred Twu: Similarly, in San Francisco, they passed the AB 1033 ordinance recently.

718
01:47:47.640 --> 01:47:51.420
Alfred Twu: But theirs only allows new construction to be condoized.

719
01:47:51.530 --> 01:47:55.869
Alfred Twu: So I think what we have proposed here is a good compromise between

720
01:47:56.070 --> 01:47:58.400
Alfred Twu: The stronger tenant protections, as well as…

721
01:47:58.400 --> 01:47:58.959
Boardroom: Thank you, Alfred.

722
01:47:58.960 --> 01:48:00.649
Alfred Twu: Offering flexibility. Thank you.

723
01:48:00.650 --> 01:48:01.949
Boardroom: Thanks for your comments.

724
01:48:02.560 --> 01:48:05.760
Boardroom: Next is… iPhone.

725
01:48:07.790 --> 01:48:09.220
Boardroom: Should be able to unmute.

726
01:48:09.630 --> 01:48:17.820
iPhone (3): City Council members and, Honorable Mayor, this is Kathleen Crandall. I'd like to cede my minute to, Deborah Sanderson.

727

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01:48:18.920 --> 01:48:19.610
Boardroom: Oh.

728
01:48:20.010 --> 01:48:24.159
Boardroom: Oh, she spoke already. Kathy, I'm sorry, do you want to speak instead?

729
01:48:24.870 --> 01:48:31.450
iPhone (3): No, other than we can't afford to disincentivize any kind of building of the ADUs, and

730
01:48:31.550 --> 01:48:39.060
iPhone (3): And so I… I've, I've written the letter to, to all of you, so thank you for your time, and please vote no.

731
01:48:41.790 --> 01:48:44.479
Boardroom: Next is, Brianna Morales.

732
01:48:48.620 --> 01:49:00.949
Brianna Morales: Good evening, my name is Brianna Morales with the Housing Action Coalition. We strongly support this ordinance, especially at a time when California is facing a housing crisis, and housing costs are through the roof.

733
01:49:00.950 --> 01:49:09.649
Brianna Morales: We love to see creative, flexible opportunities that support housing choices, especially with ADUs that already exist in neighborhoods across Berkeley.

734
01:49:09.650 --> 01:49:25.779
Brianna Morales: The… this ordinance will help create new pathways to home ownership that are often more affordable, more attainable, and more flexible. It could mean, you know, a renter having the opportunity to buy the home they already live in, or a homeowner helping a loved one, build equity nearby, and…

735
01:49:26.110 --> 01:49:41.880
Brianna Morales: We strongly also support, protecting tenants and appreciate the Council's attention to these concerns. We encourage continued work towards, an approach that maintains a clear and workable pathway for ADU home ownership and preserves predictability for these small projects.

736

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01:49:41.880 --> 01:49:50.309
Brianna Morales: Berkeley has a long time been a leader, and so we're hoping, to see this ordinance pass so that we can align with state law.

737
01:49:50.310 --> 01:49:52.730
Brianna Morales: And bring more homes to California. Thank you.

738
01:49:53.020 --> 01:49:54.740
Boardroom: Thanks for your comments.

739
01:49:57.760 --> 01:50:00.730
Boardroom: Okay, next is Daniel Brownson.

740
01:50:05.160 --> 01:50:16.690
Daniel Brownson: Hi, yeah, I think it's telling that the housing advocates, including the, author of the supplemental, council,

741
01:50:16.790 --> 01:50:29.399
Daniel Brownson: member Lunapara and the members of the Berkeley Rent Board have been willing to compromise, resulting in this, you know, already compromised,

742
01:50:31.330 --> 01:50:49.439
Daniel Brownson: supplemental measure, whereas the landlords, like the, person who spoke on behalf of the Landlord Association, which shouldn't even exist, because it's a price-fixing organization, seem completely unwilling to compromise and,

743
01:50:50.290 --> 01:50:58.739
Daniel Brownson: and approve any tenant protections whatsoever. So, I strongly encourage the board to

744
01:50:59.060 --> 01:51:07.580
Daniel Brownson: Adopt the supplemental, so that it will be balanced with tenant protections and…

745
01:51:07.730 --> 01:51:09.689
Boardroom: Thank you. Thanks, Daniel.

746
01:51:10.540 --> 01:51:16.039
Boardroom: Okay… Next is… Tony.

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747
01:51:19.130 --> 01:51:24.369
Toni: Good evening, this is Tony Mester speaking from District 2.

748
01:51:24.660 --> 01:51:37.850
Toni: I support the staff recommendation on the ADU conversion, condo conversion. I don't support the supplemental.

749
01:51:37.990 --> 01:51:47.489
Toni: I think it's, idealistic to believe that the supplemental… some of the items in the supplemental would not be a disincentive.

750
01:51:47.740 --> 01:51:54.079
Toni: I think if it passes, you will see the number of ADUs being, created.

751
01:51:54.180 --> 01:52:01.360
Toni: reduced. I don't know by what percent, I'm not that smart, but I do know that

752
01:52:01.650 --> 01:52:04.889
Toni: It would be a burden for those people who

753
01:52:05.100 --> 01:52:15.379
Toni: are going to use their equity to build housing, and I think we need the ADUs, and I'm very proud to have been part of the Measure Q, team.

754
01:52:15.600 --> 01:52:20.660
Toni: And I'm very proud that we've had so many ADUs created.

755
01:52:21.820 --> 01:52:22.389
Toni: Thank you.

756
01:52:22.390 --> 01:52:24.710
Boardroom: Thank you, Tony. Okay.

757
01:52:26.330 --> 01:52:29.520
Boardroom: Last hand is Cleo.

758
01:52:31.760 --> 01:52:33.939
Boardroom: Cleo, you should be able to unmute.

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759
01:52:35.630 --> 01:52:37.270
Cleo Masliah: Thank you, hi, I'm Cleo.

760
01:52:37.540 --> 01:52:49.370
Cleo Masliah: So ADUs are different from multi-unit buildings in that they tend to be owned by non-professional individual homeowners. This means that creating more cost and or more complexity will be a major roadblock to condoization and sale.

761
01:52:49.370 --> 01:53:01.049
Cleo Masliah: People will still build the ADUs, sure, but they just won't sell them. On the other hand, virtually no small entry-level new homes are being currently built for sale in Berkeley.

762
01:53:01.050 --> 01:53:08.040
Cleo Masliah: Other than the ADUs if they're conduits. By contrast, the city is building tens of thousands of new rental apartments.

763
01:53:08.040 --> 01:53:25.790
Cleo Masliah: For this reason, I am against the amendment proposed by Councilperson Luna Parra, because it would disincentivize private homeowners with a dues from condoizing and selling them, thereby denying entry-level home buyers with virtually the only potential new source for affordable first homes.

764
01:53:26.410 --> 01:53:33.099
Cleo Masliah: So, we're only talking about a guesstimate of less than 1,000 new-build ADUs since 2018.

765
01:53:33.950 --> 01:53:34.740
Cleo Masliah: Thank you.

766
01:53:35.290 --> 01:53:36.230
Boardroom: Thank you.

767
01:53:37.340 --> 01:53:38.260
Boardroom: That's it.

768
01:53:38.770 --> 01:53:39.770
Boardroom: Okay.

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769
01:53:40.000 --> 01:53:44.149
Boardroom: Thank you very much. We're gonna move on to Council Comments, starting with Councilmember Humbert.

770
01:53:45.370 --> 01:53:46.800
Boardroom: Thank you, Madam Mayor.

771
01:53:47.550 --> 01:54:01.459
Boardroom: And I want to give a huge thank you to Director Klein and the planning staff for all your hard work on this item. It's been pending for so long, and I'm glad that we finally got into it.

772
01:54:01.630 --> 01:54:17.490
Boardroom: I think the ordinance, as prepared by planning staff and the Planning Commission, is pretty much ready to roll, with one exception. Way back in October, Mayor Ishii, Councilmember Blackaby, Councilmember O'Keefe, and I submitted a supplemental with a proposed amendment

773
01:54:17.730 --> 01:54:28.929
Boardroom: to a chapter in section 21.29.010.c1 covered rental ADUs, subparagraph B.

774
01:54:28.930 --> 01:54:41.480
Boardroom: for the purposes of… for the purpose of limiting the right of first refusal to 90 days. So once again, I'd propose an amendment that simply adds the following to the end of subsection B.

775
01:54:41.890 --> 01:54:53.689
Boardroom: Quote, except that the exclusive right to purchase period shall not exceed 90 days from the date of the notice, and that's, end quote, and that's in place of the one year.

776
01:54:53.840 --> 01:55:03.800
Boardroom: I think that roughly 3 months is a fair amount of time for a tenant to declare their intent to purchase, and better… and it better aligns with typical timelines for real estate transactions.

777
01:55:03.800 --> 01:55:16.849
Boardroom: A year is far too long to demand that someone wait to potentially sell their ADU, especially since it is most likely people will be seeking to sell because they're having financial difficulties, or because they may want to sell to a family member.

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778
01:55:17.150 --> 01:55:32.470
Boardroom: With respect to the thoughtful, very thoughtful supplemental brought forward by Council… I shouldn't say that by Vice Mayor Lunapara, I feel that it is well intended, but I think… personally, I just fundamentally see the relationship between

779
01:55:32.560 --> 01:55:45.369
Boardroom: a single-family homeowner, you know, sort of a Measure Q homeowner, and an ADU tenant in a very different way. I do want to credit the arguments that I've heard tonight here about the lack of impact

780
01:55:45.440 --> 01:55:53.199
Boardroom: the supplemental would likely have on newly constructed ADUs. I think those arguments are correct.

781
01:55:53.290 --> 01:56:10.520
Boardroom: But… and I also accept that… I still favor the staff proposal. Having tighter rules for multi-unit and non-owner-occupied properties makes sense, but I don't think it makes sense when you have a homeowner with just the one ADU on the property.

782
01:56:10.670 --> 01:56:15.339
Boardroom: to force them into a potentially fraught relationship with a sitting ADU tenant.

783
01:56:15.610 --> 01:56:31.640
Boardroom: And I guess I would say, why should these proposed rights, which didn't exist, and don't exist at this point, for this very limited class of tenants, all of a sudden spring into existence in connection with a condo conversion of an ADU? And,

784
01:56:31.910 --> 01:56:36.520
Boardroom: I'm not completely…

785
01:56:37.120 --> 01:56:58.010
Boardroom: Well, I'm gonna… I'm gonna strike that. I think that using weather… using whether a unit is covered by the rent stabilization ordinance is the cleanest and clearest way to establish different standards for ADU protections. So I think we should stick with the Planning Commission and staff-recommended approach. Let's just keep a clear, workable line.

786
01:56:58.010 --> 01:57:06.350

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Boardroom: And ultimately, you know, it may have some impact to incentivize more ADU conversions, if not construction of new ADUs.

787
01:57:06.660 --> 01:57:17.159
Boardroom: As far as applying an affordable housing mitigation fee to ADU conversions, I can't support that, as I think it's far too discouraging of such conversions.

788
01:57:17.270 --> 01:57:34.219
Boardroom: Berkeley suffers from an even more acute shortage of affordable ownership housing, as has been pointed out, than it does affordable rental housing. So I'm committed to not having a fee for these conversions. So with all that said, I would like to move, for the purpose of discussion.

789
01:57:34.220 --> 01:57:47.669
Boardroom: the staff version of the ADU conversion ordinance with the amendments proposed in the October 28th supplemental that I just referred to, that was submitted by the Mayor and Councilmembers Blackaby and O'Keefe and I.

790
01:57:47.720 --> 01:57:53.959
Boardroom: to limit the right of first refusal period to 90 days, for the tenant. Thank you.

791
01:57:55.640 --> 01:57:58.430
Boardroom: Thank you. Do I hear a second?

792
01:57:58.630 --> 01:58:01.110
Boardroom: That was my next question. Is there a second?

793
01:58:02.100 --> 01:58:10.190
Boardroom: A second. A second from Councilmember Blackaby. Moving on to Councilmember Taplin's comments.

794
01:58:10.670 --> 01:58:24.259
Terry Taplin: Thank you. Just real quick, and my apologies for not asking this in the first round, the prohibition on, conversion following no-fault evictions, who's proposing what?

795
01:58:27.360 --> 01:58:28.719
Boardroom: I'm gonna try to field that.

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796
01:58:29.220 --> 01:58:35.830
Boardroom: So the Planning Commission recommendation… Applies,

797
01:58:36.030 --> 01:58:46.130
Boardroom: A no-fault eviction screen on condo conversion eligibility of 10 years, and that applies to covered units and partially covered units.

798
01:58:46.370 --> 01:58:48.319
Boardroom: But not to fully exempt units.

799
01:58:48.740 --> 01:58:51.609
Boardroom: I believe that the supplemental

800
01:58:52.100 --> 01:59:00.670
Boardroom: expands that to also apply to fully covered units, but reduces the period from 10 years to 5 years for all 3 categories of ADUs.

801
01:59:03.090 --> 01:59:04.470
Terry Taplin: Thank you.

802
01:59:06.020 --> 01:59:08.240
Terry Taplin: To share my thinking.

803
01:59:08.400 --> 01:59:21.929
Terry Taplin: It's really helpful to know that there is a relatively small number of ADUs situated on owner-occupied two-unit properties, and that versions of a prohibition on conversion following no-fault termination dependency is present in both versions.

804
01:59:22.000 --> 01:59:35.899
Terry Taplin: I'm very committed to increasing pathways and opportunities for homeownership, and I see condo conversion for ADU sales as a valuable tool, and want to be cautious to not unwittingly create impediments that would have a chilling effect on ADU production.

805
01:59:35.900 --> 01:59:44.939
Terry Taplin: That being said, I do welcome my colleagues' deliberation on the two proposals for the no-fault eviction screen, in particular.

806
01:59:48.610 --> 01:59:53.110
Boardroom: Sorry, just to clarify, the no-fault eviction for all?

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807
01:59:56.690 --> 02:00:00.270
Boardroom: all ADUs just… Councilmember?

808
02:00:00.440 --> 02:00:07.619
Terry Taplin: Oh, I, I, I, I… I welcome hearing from…

809
02:00:08.180 --> 02:00:13.350
Terry Taplin: The rest of my colleagues on the fine points of both and either.

810
02:00:13.630 --> 02:00:16.750
Terry Taplin: Of the two proposals on that point.

811
02:00:18.450 --> 02:00:25.180
Boardroom: Okay. Thank you, and actually, I would like to see if there's a motion to close the public hearing.

812
02:00:25.320 --> 02:00:26.910
Boardroom: Before we continue more.

813
02:00:28.000 --> 02:00:28.970
Boardroom: So moved.

814
02:00:29.590 --> 02:00:31.849
Boardroom: Okay, thanks. Can you take the roll on that, please?

815
02:00:32.680 --> 02:00:36.449
Boardroom: To close the public hearing, Councilmember Taplin?

816
02:00:36.690 --> 02:00:37.360
Terry Taplin: Yes.

817
02:00:37.950 --> 02:00:39.380
Boardroom: Bartlett? Yes.

818
02:00:39.650 --> 02:00:47.709
Boardroom: O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mary Shee? Yes. Okay.

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819
02:00:47.940 --> 02:00:52.570
Boardroom: Public hearing is closed. Okay, thank you very much. I'm gonna go to Councilmember Bartlett.

820
02:00:53.230 --> 02:01:00.619
Boardroom: Thank you, Madam Mayor. It would be possible to post that one chart with the three proposals, with the X's?

821
02:01:00.920 --> 02:01:06.149
Boardroom: That one, you know, with the… From Vice Mayor Lunaparo. Planning Commission, Lunaparo Bartlett.

822
02:01:06.360 --> 02:01:08.009
Boardroom: Yeah, give me a moment.

823
02:01:08.800 --> 02:01:19.850
Boardroom: I think that's helpful, thank you. And, in the meantime, I wanna, do want to thank the planning staff, thank Director Klein and team, for your diligent work, wonderful work, I love the proposal.

824
02:01:19.910 --> 02:01:30.659
Boardroom: I do think it, it, it is, it is, it's benefited by my colleague, the Vice Mayor's efforts here, to, to really what, what I see as a really rational.

825
02:01:31.090 --> 02:01:44.789
Boardroom: really rationalization and unifying of the baseline protections afforded to tenants, that we give to houses, people living in houses. You know, in one sense, without it, we kind of carry on the…

826
02:01:44.890 --> 02:01:51.839
Boardroom: The prejudicial relationship between single-family homeowners and home dwellers versus apartment people.

827
02:01:52.030 --> 02:01:53.739
Boardroom: In this case, ADU people.

828
02:01:53.890 --> 02:01:59.810
Boardroom: They work so hard to kind of unify and make… make even. And so I think that's,

829

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02:02:00.540 --> 02:02:13.199
Boardroom: you know, these protections afforded to the people of ADUs are less burdensome than those living in homes. And again, you know, going to what you said, 100 units a year, I think this is going to be negligible.

830
02:02:13.310 --> 02:02:19.590
Boardroom: However… Even though it's negligible, if it keeps one person

831
02:02:20.010 --> 02:02:22.819
Boardroom: From falling out into the street is worth it.

832
02:02:23.650 --> 02:02:24.990
Boardroom: That's a real person.

833
02:02:25.310 --> 02:02:42.680
Boardroom: And, and believe me, I think the… I think the fears, and ADU people, yes, I'm all ADU, I'm Mr. ADU. I formed the task force. I'm all about it. But again, you know, I don't, like, I don't believe in the zero-sum relationship, that we hear so much.

834
02:02:42.790 --> 02:02:46.670
Boardroom: in our world today. You can have your cake and eat it, too.

835
02:02:47.330 --> 02:02:50.839
Boardroom: You can have economic growth, and you can have people living a good life.

836
02:02:51.340 --> 02:02:52.809
Boardroom: They're not exclusive.

837
02:02:52.980 --> 02:03:02.169
Boardroom: And this is one example where I would, really impress upon you the fact that we can protect people while advancing, the goals of homeownership.

838
02:03:02.430 --> 02:03:10.379
Boardroom: and starter homes, and ADU development. And you realize, if someone's making ADU to sell it, they're doing it to sell it.

839
02:03:10.460 --> 02:03:23.620
Boardroom: And they will be engaging in property taxes, and etc, and, you know, doing all things you do to sell property. It's a… it's a commercial

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decision. This is not the usual story about ADU, it's about my grandma being in there.

840
02:03:23.680 --> 02:03:32.430
Boardroom: My mama, you know, my sister got rained out, and Florida, she's coming here to live with us. This is you selling it to someone to make money.

841
02:03:32.530 --> 02:03:35.970
Boardroom: And so you will factor in that cost when you sell it.

842
02:03:37.750 --> 02:03:48.210
Boardroom: I mean, this is really, I think, again, the fears are overblown, and I think the rationale for doing so and executing with these, these elements,

843
02:03:48.580 --> 02:03:53.479
Boardroom: are good. They're good for the community, good for people, and good for our economy as a whole.

844
02:03:53.630 --> 02:03:54.350
Boardroom: Thank you.

845
02:03:56.380 --> 02:03:59.259
Boardroom: Thank you, Councilmember, Councilmember O'Keefe.

846
02:04:00.530 --> 02:04:01.530
Boardroom: Thank you.

847
02:04:02.200 --> 02:04:12.139
Boardroom: Just gonna make some brief comments. I'll be supporting Councilmember Humbert's motion. Here's why. I do want to say I really respect the supplemental

848
02:04:12.250 --> 02:04:14.100
Boardroom: It makes sense, it's a good…

849
02:04:14.520 --> 02:04:21.779
Boardroom: like, the heart of it is in the right place, and it's, you know, it's very easy to feel good about tenant protections. That's just…

850

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02:04:21.890 --> 02:04:30.910
Boardroom: That's a… it seems on its face, like, always a good policy. Here's why I can't support it. I'm not choosing to support it tonight.

851
02:04:32.180 --> 02:04:33.720
Boardroom: we're making…

852
02:04:34.080 --> 02:04:42.889
Boardroom: the law more complicated. And we have to, that's the mandate of this, is we have to sort of update our laws to incorporate this specific situation.

853
02:04:44.080 --> 02:04:51.460
Boardroom: I'm pretty allergic to making laws more complicated. I think, as I said earlier in my comments for, Consent Calendar, I really…

854
02:04:51.640 --> 02:04:56.630
Boardroom: We really need to be making them clearer, more streamlined, make more sense at any opportunity.

855
02:04:56.890 --> 02:05:03.599
Boardroom: And so, yes, we have to tweak our law a little bit, we have to add a little, you know, cross some things out and add some things

856
02:05:04.040 --> 02:05:11.540
Boardroom: But the best way to do that in this case is to maintain as much as possible the philosophy and the structure of the existing law.

857
02:05:11.700 --> 02:05:17.029
Boardroom: And that's… that's what I'm basing my vote on. Right now in Berkeley, like it or not.

858
02:05:17.150 --> 02:05:23.300
Boardroom: Renters who are renting in multifamily, developments have

859
02:05:23.560 --> 02:05:32.340
Boardroom: certain tenant protections. Renters who are renting in single-family home-type situations, either a part or all of a home, or a back of a home.

860
02:05:32.800 --> 02:05:35.019
Boardroom: Have none, essentially.

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861
02:05:35.600 --> 02:05:44.569
Boardroom: And… the staff… The staff recommendation, the main, the, Councilmember Humbert's motion supports.

862
02:05:44.910 --> 02:06:00.389
Boardroom: carries that philosophy forward into this new situation, and so that just makes more sense to me, it feels more comfortable for me, and I'd like to just continue… I'd like to keep our law structurally the same as it exists now, and that's why I'm voting the way I am.

863
02:06:03.270 --> 02:06:09.649
Boardroom: Thank you. Actually, if you don't mind, before you speak, can I ask a couple of questions?

864
02:06:09.940 --> 02:06:15.089
Boardroom: Or do you wanna… I want to respond to that. Sure, please, go ahead, yeah, yeah. That's fine.

865
02:06:15.650 --> 02:06:22.840
Boardroom: I would argue that the Planning Commission version is much more complicated than our version, given that

866
02:06:23.290 --> 02:06:29.759
Boardroom: ADU units often can, like, go in and out of certain statuses.

867
02:06:29.870 --> 02:06:38.210
Boardroom: And if we apply the same tenant protections across the board, that very much simplifies the process.

868
02:06:39.930 --> 02:06:43.280
Boardroom: And, and also because we're mirroring existing

869
02:06:43.860 --> 02:06:50.029
Boardroom: Legislation that we have currently for the condo conversion ordinance, that also kind of

870
02:06:50.650 --> 02:06:55.619
Boardroom: connects everything together more than the Planning Commission version does. So, that's my argument.

871

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02:06:59.970 --> 02:07:19.210
Boardroom: So I will ask my questions, but I do want to make sure you get your comments in as well. So I'm curious if you can let us know, because I just couldn't pull it up quickly, what the affordable housing mitigation fee actually is, so that when we're talking about the fee, we can just be clear about what we're talking about.

872
02:07:20.870 --> 02:07:26.939
Boardroom: Yes, sorry, it's for staff. You know, we have, HHCS staff on the line.

873
02:07:27.040 --> 02:07:35.770
Boardroom: And so, I think we'd like to turn that question over to either Margo Ernst or Mike Huberti to speak to the affordable housing mitigation fee that applies to condo conversions.

874
02:07:39.040 --> 02:07:41.730
Mike Uberti: Hi, council members. Can you hear me okay?

875
02:07:41.730 --> 02:07:42.790
Boardroom: Yes.

876
02:07:42.990 --> 02:07:44.519
Boardroom: Thanks for being on.

877
02:07:44.520 --> 02:07:46.259
Mike Uberti: Sure, no problem, thank you for having me.

878
02:07:46.630 --> 02:07:49.580
Mike Uberti: I can't see my video, I'm hoping I'm looking good for everyone.

879
02:07:49.580 --> 02:07:51.659
Boardroom: We can see you, you're here, here.

880
02:07:51.660 --> 02:07:52.530
Mike Uberti: Okay.

881
02:07:52.710 --> 02:08:04.650
Mike Uberti: So how the affordable housing mitigation fee works is it's based on a nexus between, ownership costs and rental costs for the unit that's divided by the current interest rate.

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882
02:08:04.890 --> 02:08:10.250
Mike Uberti: And so… We usually,

883
02:08:10.670 --> 02:08:29.330
Mike Uberti: We have a kind of set way that we calculate the projected ownership cost for the unit as a condo, including a 5% down payment price, the cost of future HOAs, property taxes, etc, comparable to a rental cost for the unit.

884
02:08:29.920 --> 02:08:35.320
Mike Uberti: Now, there's an alternative called the rental limitation, in which

885
02:08:35.820 --> 02:08:38.910
Mike Uberti: Property owners can elect into,

886
02:08:39.640 --> 02:08:52.310
Mike Uberti: establishing rental limitations on the unit in exchange for a fee that's based on the sales price of the unit, an 8% sales price, or in certain cases, a 4% sales price.

887
02:08:52.720 --> 02:08:53.820
Mike Uberti: And so…

888
02:08:54.080 --> 02:09:09.379
Mike Uberti: That's either… they can do that based on an appraised price at the time of conversion, or they can base that on the actual sales price. They can defer the fee until the unit is sold, and then that's based on the sales… actual sales price when it goes on the market.

889
02:09:11.860 --> 02:09:23.750
Boardroom: Thank you. I, I just, I remember when we were talking about this, there were some… I don't know if it was, like, median, you know, amounts or something that was an actual dollar amount, just to kind of put some…

890
02:09:24.080 --> 02:09:29.660
Boardroom: specif- specifics into this conversation. I don't know if you can speak to that at all.

891
02:09:30.060 --> 02:09:39.919

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Mike Uberti: I believe we probably, I worked with Planning to develop examples based on, like, an estimated sales price, so you could kind of compare how the two fees would look.

892
02:09:40.110 --> 02:09:42.250
Mike Uberti: So I think that might be what you're thinking of.

893
02:09:42.510 --> 02:09:49.719
Boardroom: Yeah, thank you. I'm sorry, we've… we've continued this item so many times, I don't have, the same documents in front of me anymore. Alright.

894
02:09:50.200 --> 02:10:00.150
Boardroom: We do, thankfully, thanks to Bronco. Mike and I worked about… on this, I want to say about 6 months ago. So, the example that we came up with

895
02:10:00.940 --> 02:10:07.379
Boardroom: And so you're gonna have to bear with me, because there's a lot of numbers here, because to be honest with you, this is not a simple fee. This is a complex calculation.

896
02:10:07.990 --> 02:10:22.889
Boardroom: So, Mike mentioned that you're, identifying the difference between the rental costs and the ownership costs. So, if the rental costs were estimated at $1,500 per month, or, that's $18,000 a year annually.

897
02:10:23.410 --> 02:10:32.690
Boardroom: The ownership cost is… you develop the estimate of that based on, estimated mortgage payment costs plus,

898
02:10:33.170 --> 02:10:44.340
Boardroom: taxes and insurance and HOA dues, you might estimate that at $2,700 per month for a small ADU, or $32,400 annually.

899
02:10:44.960 --> 02:10:50.899
Boardroom: Okay, the difference between those numbers, the ownership cost minus the rental cost, is $14,400.

900
02:10:51.340 --> 02:11:00.799
Boardroom: And so, the mitigation fee Is developed by dividing That difference by…

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901
02:11:00.950 --> 02:11:05.399
Boardroom: the prevailing interest rate. 6 months ago, it was 6.5%.

902
02:11:06.020 --> 02:11:09.869
Boardroom: The resulting amount is $221,000.

903
02:11:09.970 --> 02:11:13.490
Boardroom: $221,538.

904
02:11:13.780 --> 02:11:16.730
Boardroom: And that's… that's a pretty real world.

905
02:11:18.360 --> 02:11:22.359
Boardroom: those… I mean, those amounts… We came up with…

906
02:11:23.190 --> 02:11:32.950
Boardroom: we did our best to estimate what the actual rental and ownership cost would be of an ADU around 750 to 1,000 square feet.

907
02:11:34.170 --> 02:11:44.060
Boardroom: Thank you. That is really helpful to have an actual number in front of us as we're having this conversation. And thank you, Mike, for being on as well and answering that question.

908
02:11:44.230 --> 02:11:58.329
Boardroom: Jordan, can you also speak to the impact of a conversion prohibition after no-fault eviction? I know that Councilmember Taplin asked us to opine about that, and I'm interested in thinking about that more as well.

909
02:12:02.440 --> 02:12:06.059
Boardroom: Well, first let me say, I think it's quite rare.

910
02:12:07.000 --> 02:12:09.770
Boardroom: that this… occurs.

911
02:12:13.250 --> 02:12:29.590
Boardroom: I would actually potentially… if you have questions about specificity, I think that Rent Board staff are… work… work with those cases much more frequently than we would. Sorry, I should clarify that question. It's, to speak to the impact of a…

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912
02:12:29.730 --> 02:12:36.560
Boardroom: Of a… of adding this to the potential,

913
02:12:37.240 --> 02:12:41.490
Boardroom: conversion of ADUs to condos, or building ADUs.

914
02:12:42.540 --> 02:12:48.299
Boardroom: It's really on the planning side. Oh, so whether adding it would impact production? Thank you.

915
02:12:49.470 --> 02:12:56.379
Boardroom: I really don't think it would impact production much, if at all.

916
02:12:56.630 --> 02:13:11.309
Boardroom: To add that, so currently, the Planning Commission proposal, it already applies to covered units and partially covered units, would not apply to fully exempt units. Supplemental proposes to expand it to also apply to fully exempt units.

917
02:13:14.350 --> 02:13:22.939
Boardroom: I think that it would impact production only in cases when somebody is intending to sell a condo as an investment property.

918
02:13:23.700 --> 02:13:25.799
Boardroom: or condoizing ADU.

919
02:13:26.100 --> 02:13:26.970
Boardroom: as…

920
02:13:27.360 --> 02:13:34.190
Boardroom: an investment property. In those cases, yeah, it could serve either… you're gonna add a huge amount of cost.

921
02:13:34.680 --> 02:13:36.910
Boardroom: to… the conversion.

922
02:13:37.150 --> 02:13:40.359
Boardroom: Over $200,000 is what we estimated.

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923
02:13:40.620 --> 02:13:43.420
Boardroom: Or you're gonna limit the future

924
02:13:43.860 --> 02:13:54.239
Boardroom: income-generating potential of the property. So yeah, in those cases, it could serve as a disincentive, if somebody would only produce the unit

925
02:13:54.360 --> 02:13:56.710
Boardroom: With intention for sale, as…

926
02:13:57.250 --> 02:14:17.020
Boardroom: an investment property. Yeah, and I think that's important, because I think the conversation that we're having here is about encouraging condoization in the hopes that also people are owning their homes, and not just, you know, someone's buying it in order to rent it out as additional income, because they can do that as an ADU. They don't need to convert it to be a condo in order to

927
02:14:17.060 --> 02:14:20.029
Boardroom: To, in order to rent it out in that way.

928
02:14:20.230 --> 02:14:26.949
Boardroom: So, I just want to clarify that for folks. Okay, I'm sorry, I wanted to make sure you got to make your comments.

929
02:14:28.330 --> 02:14:34.489
Boardroom: I just have a couple… a couple short comments, kind of emphasizing…

930
02:14:34.740 --> 02:14:40.360
Boardroom: some of the pieces of this. First, that for the affordable housing mitigation fee, the goal

931
02:14:40.660 --> 02:14:50.189
Boardroom: isn't necessarily for people to pay the fee, but if this is happening, if somebody is purchasing, this converted ADU,

932
02:14:50.970 --> 02:14:57.120
Boardroom: Condo is then renting it out, that then those tenants get rent control protection.

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933
02:14:57.240 --> 02:15:06.779
Boardroom: Which is also not the intended purpose of this, and is an unlikely scenario. I think.

934
02:15:07.240 --> 02:15:16.210
Boardroom: I also want to go back to some of the topic of how many tenants this would apply to. I don't… this wouldn't apply to many tenants.

935
02:15:17.010 --> 02:15:28.529
Boardroom: I think we all know that we have a crisis of displacement and of homelessness, and even if this applies to one person or one family.

936
02:15:29.090 --> 02:15:40.750
Boardroom: that person or family is getting evicted from the city, or is significantly more likely to fall into homelessness, and the best… we know that the best way to prevent homelessness is to keep people housed in the first place.

937
02:15:40.920 --> 02:15:53.329
Boardroom: I understand the unique relationship that ADU… that tenants and ADUs have with, with their landlords, if the landlords live on the same property,

938
02:15:53.500 --> 02:16:01.989
Boardroom: And I think that… They… if they… if they are not choosing to convert it, they still can…

939
02:16:02.160 --> 02:16:14.210
Boardroom: evict those tenants. That, that is not changing. I think if we're granting, as, Commissioner Kelly said, if we're granting this opportunity for homeowners,

940
02:16:15.060 --> 02:16:18.129
Boardroom: Which is a great opportunity, then…

941
02:16:18.870 --> 02:16:25.420
Boardroom: It should not come at the expense of our current tenants that are very vulnerable in this naturally affordable

942
02:16:25.590 --> 02:16:26.400
Boardroom: unit.

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943
02:16:28.940 --> 02:16:31.130
Boardroom: Thank you. Councilmember Bacabee?

944
02:16:31.740 --> 02:16:34.010
Boardroom: Thanks, Madam Mayor.

945
02:16:34.059 --> 02:16:40.599
Boardroom: just stepping back very briefly, I mean, one thing I've been observing and wrestling with a little bit is that, you know, we have a…

946
02:16:40.600 --> 02:16:55.670
Boardroom: a series of different, housing policies in Berkeley to accomplish different goals. different housing types, whether it's rental housing or housing that's available for purchase, tenant protections to protect people who are in those, those rental units.

947
02:16:55.670 --> 02:17:03.350
Boardroom: And so, part of what I've been wrestling with a little bit is thinking about, well, what's our A number one goal with this, you know, particular policy?

948
02:17:03.530 --> 02:17:09.439
Boardroom: And, you know, our challenge… one of many challenges we face in Berkeley is that we don't have

949
02:17:09.520 --> 02:17:23.949
Boardroom: enough housing for purchase at the lower end of the economic scale. And by lower end, it's still plenty high end. I'm just saying that, you know, we're trying to create more housing inventory that's available for less than a million dollars, and hopefully substantially less than a million dollars.

950
02:17:24.160 --> 02:17:40.349
Boardroom: And, to me, this ADU conversion policy is one chance, and we've heard… I know she's not here, but Councilmember Kastarwani's talked a lot about, in the past, some of this work to create more inventory on that side of the scale, and not just at the upper side of the scale.

951
02:17:40.510 --> 02:17:53.249
Boardroom: So this ADU conversion policy under AB 1033 is focused on generating more for-sale inventory at that sort of lower, relatively lower, relatively more affordable price point.

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952
02:17:53.360 --> 02:18:06.979
Boardroom: We have other policies, like the density bonus that incentivizes the creation of affordable rental housing, and that is a clear policy choice, and we're putting, we're trying to put that, to work, and the state's trying to put that to work.

953
02:18:06.980 --> 02:18:15.720
Boardroom: And we have a rent control system in here in Berkeley that's the most robust in the country, to provide strong tenant protections, in as many places as we can.

954
02:18:16.000 --> 02:18:23.479
Boardroom: But I keep coming back to the goal. In this case, our primary goal is the creation of more housing for purchase at a less exorbitant price point.

955
02:18:23.650 --> 02:18:29.030
Boardroom: And from speaking to residents in my district, I know there's real apprehension.

956
02:18:29.120 --> 02:18:38.770
Boardroom: to moving forward with ADUs at all if they feel potential, restrictions. It's a disincentive to convert existing ADUs

957
02:18:38.850 --> 02:18:50.299
Boardroom: And I do believe that it's the ethos of this additional regulation on, you know, ADU on a single-family property where the owner is occupying one of the units.

958
02:18:50.299 --> 02:19:02.069
Boardroom: the ethos of this additional regulation, whether it's real or perceived, is a disincentive to participate. I heard it a lot during the campaign, and I hear it as I go around now. There's just a sense that I don't know if I want to do this.

959
02:19:02.110 --> 02:19:18.459
Boardroom: If I feel like my hands are gonna be tied, if I feel like I'm gonna have these additional restrictions, additional fees, why bother? Like, I'm just not gonna do it. It's better for me not to do it at all than to do that. And that feels like that's… that moves us backwards in terms of what we're trying to do with this particular policy.

960

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02:19:18.650 --> 02:19:28.409
Boardroom: Again, I could be wrong, but that's sort of where my head is at in terms of my discussions in the district and thinking about the goals and what we're trying to accomplish.

961
02:19:28.590 --> 02:19:30.739
Boardroom: So, for that reason, I really appreciate

962
02:19:30.930 --> 02:19:45.099
Boardroom: I really appreciate the passion and the commitment of the Vice Mayor and Councilmember Bartlett for their proposal, but thinking about what's the primary goal here, what's the primary problem we're trying to solve with this particular legislation.

963
02:19:45.120 --> 02:20:00.689
Boardroom: I believe that the Planning Commission version with Councilmember Humbert's amendment is the better approach to actually creating more housing for purchase at this kind of price point. If our goal was different, you know, if we had a different goal, and that wasn't the goal, I think a different policy prescription could be the right choice, and I could end up supporting

964
02:20:00.690 --> 02:20:10.440
Boardroom: the supplemental. But for this particular goal, for this particular reason, I'm gonna support the staff recommendation with Councilmember Humbert's amendment. Thank you.

965
02:20:13.150 --> 02:20:24.439
Boardroom: Thank you, and speaking of, you know, what is kind of our goal here, you know, what I… I mean, the purpose of really converting the ADUs to condos is to encourage more opportunities for home ownership.

966
02:20:24.690 --> 02:20:44.439
Boardroom: And at the same time, I know that we need to be doing our best to protect the tenants who are currently living in the ADUs. At the same time, I'm also concerned about some of the aspects of Councilmember Luna Toppara's items, worried about how it might disincentivize the conversion of ADUs to condos, specifically the affordable housing mitigation fee piece of it.

967
02:20:44.750 --> 02:20:57.320
Boardroom: Another thing I realized that in this conversation, we really need to have better data around ADUs, so I'm just saying that out loud, because I think that's something that we should all be working on, because I think that will help us make more informed policy decisions.

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968
02:20:57.390 --> 02:21:11.070
Boardroom: I want to comment on something that was said earlier. I really want us to consider the possibility that people will be condoizing their IDUs in order to live in them themselves, and sell their main houses instead.

969
02:21:11.200 --> 02:21:30.360
Boardroom: And in fact, I know some older residents who, you know, are selling their main homes to their children, for instance, or to someone that they know, and then are living in the ADU, but might be interested in continuing to own something. So condoizing, it might make sense for them. So I just want us to think about that, and not make too many assumptions about how people might utilize this.

970
02:21:30.550 --> 02:21:48.689
Boardroom: The other thing that I also agree with in, that I agree with in Councilmember Lunapar, or Vice Mayor Lunapara's item is the right of first refusal for all ADU tenants with a 90-day time period. I want to briefly speak to why we were interested in shortening it, shortening it to 90 days.

971
02:21:48.690 --> 02:21:51.640
Boardroom: We had many conversations with

972
02:21:51.640 --> 02:22:04.890
Boardroom: With different folks, about how long it takes to get funding together, and we thought that 90 days was reasonable, was enough time. If you're able to get funding together in 90 days, you'll most likely be able to purchase.

973
02:22:04.890 --> 02:22:12.910
Boardroom: And I'm interested in giving everybody that opportunity, given that we're talking about, converting ADUs

974
02:22:13.200 --> 02:22:28.629
Boardroom: to condos and to encourage homeownership, we want to allow the people who are currently living in them to have the opportunity to purchase their ADU first. And given 90 days, we've kind of agreed is a reasonable time frame, I'm also interested in including that

975
02:22:28.830 --> 02:22:36.890
Boardroom: As well. And so, speaking to Councilmember Taplin's interest, in…

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976
02:22:37.150 --> 02:22:49.550
Boardroom: a conversion prohibition after no-fault eviction for 5 years. I'm also interested in supporting that, so I want to signal my support and see if folks have any other comments about my comments before we move on.

977
02:22:56.030 --> 02:22:56.710
Boardroom: Your thoughts?

978
02:22:57.720 --> 02:23:04.220
Boardroom: Right now, we only have one thing on the floor, so… Yeah, Vice Mayor Lunapara.

979
02:23:07.970 --> 02:23:11.609
Boardroom: I have some kind of high-level comments in kind of a…

980
02:23:12.880 --> 02:23:21.950
Boardroom: An attempt to, convince my colleagues, about what the choice that we're making here is, and how we are treating

981
02:23:22.250 --> 02:23:27.089
Boardroom: Tenant units, in comparison with homeowner units.

982
02:23:27.650 --> 02:23:32.279
Boardroom: If the choice that we're making here is about replacing our tenants with homeowners.

983
02:23:33.630 --> 02:23:38.239
Boardroom: I think that is a… I think we've lost the plot. I think it is so…

984
02:23:38.300 --> 02:23:47.690
Boardroom: important to create those middle-level, for-sale homes, but are we really willing to displace and evict our vulnerable tenants to create them? That's not a decision that we have to make.

985
02:23:47.720 --> 02:24:02.670
Boardroom: That is a policy choice. Our primary problem that we're trying to solve at a high level is housing affordability, and housing stability for all, and I'm really frustrated because I think that this conversation

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is leading into the same fundamental problem that we see over and over again.

986
02:24:02.720 --> 02:24:11.920
Boardroom: about prioritizing homeownerships… home ownership and placing their homes at a higher standard than tenants' homes. And we should not be… we should not be considering

987
02:24:12.780 --> 02:24:13.460
Boardroom: that…

988
02:24:14.850 --> 02:24:27.000
Boardroom: tenants' homes are unequal to homeowners' homes. We are telling tenants that they do not deserve the residential and financial stability that homeowners do, and that… I think that's the policy choice that we're making right now.

989
02:24:28.860 --> 02:24:30.370
Boardroom: Yeah, that's my argument.

990
02:24:33.360 --> 02:24:35.000
Boardroom: Okay, so…

991
02:24:36.800 --> 02:24:43.619
Boardroom: Right now, just so we're clear, the only thing that's on the floor is the staff recommendation with…

992
02:24:44.880 --> 02:24:51.330
Boardroom: with a supplemental that Councilmembers Humbert, Blackaby, and O'Keefe and I have put forward.

993
02:24:52.210 --> 02:25:01.270
Boardroom: I'll make a motion to approve the supplemental material without…

994
02:25:01.380 --> 02:25:04.469
Boardroom: the Affordable Housing Mitigation fee section.

995
02:25:04.910 --> 02:25:05.760
Boardroom: Second.

996

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02:25:08.910 --> 02:25:14.199
Boardroom: Sorry, your supplemental with… Without the affordable housing mitigation fee.

997
02:25:14.950 --> 02:25:15.650
Boardroom: Okay.

998
02:25:16.950 --> 02:25:22.349
Boardroom: I… I still can't fully support that, where it's at. Where… where are we…

999
02:25:22.450 --> 02:25:28.550
Boardroom: Do you have a friendly amendment? Yeah, I think the piece that I have a hard time with still is the,

1000
02:25:28.950 --> 02:25:33.540
Boardroom: Sorry, I'm just trying to pull up my… Notes.

1001
02:25:33.740 --> 02:25:43.639
Boardroom: the owner move in, since, like I said, there might be some owners who would be interested in moving in to their ADUs and converting them to a condo and then selling their… the main house.

1002
02:25:49.500 --> 02:26:03.900
Boardroom: do we think… what I'm worried about is an, a landlord using owner move-in eviction, and then turning it into a condo. I wonder if there's a way we can meet in the middle of there and, accommodate that.

1003
02:26:04.340 --> 02:26:05.300
Boardroom: Issue.

1004
02:26:05.830 --> 02:26:07.990
Boardroom: Without completely removing it.

1005
02:26:09.510 --> 02:26:13.050
Boardroom: I would be interested to see if anyone else is in support of this.

1006
02:26:13.400 --> 02:26:18.110
Boardroom: So… I'd like to ask if any of my colleagues have any comments.

1007

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02:26:18.460 --> 02:26:24.500
Boardroom: I'm interested in this mostly in the name of unity. I don't… I think I'd prefer to just have my way, but I think…

1008
02:26:24.890 --> 02:26:33.449
Boardroom: I think the other side's arguments are reasonable, so I'd like… it would be… feel better if, we could find some… some agreement, and I'm… I'm open to…

1009
02:26:33.620 --> 02:26:36.340
Boardroom: to looking for that. And this, I like this.

1010
02:26:36.750 --> 02:26:38.550
Boardroom: Keep going.

1011
02:26:38.550 --> 02:26:39.630
Terry Taplin: just manufacturing.

1012
02:26:39.630 --> 02:26:41.490
Boardroom: Go ahead, Councilmember Taplan.

1013
02:26:41.490 --> 02:26:48.390
Terry Taplin: I did want to speak to the point about displacement. I think that's why I'm interested in this, the prohibition on…

1014
02:26:48.580 --> 02:26:59.219
Terry Taplin: conversion following a no-fault eviction. I see both proposals as having very valid and very useful

1015
02:26:59.980 --> 02:27:03.180
Terry Taplin: disincentives against displacement.

1016
02:27:03.580 --> 02:27:14.400
Terry Taplin: And I want to just voice that. I don't think either the Planning Commission, or planning staff, or any of the members of the Council

1017
02:27:14.800 --> 02:27:19.499
Terry Taplin: Are seeking to replace tenants with homeowners.

1018
02:27:20.080 --> 02:27:23.850

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Terry Taplin: I think we are, you know, trying to thread the needle here.

1019
02:27:25.150 --> 02:27:27.250
Terry Taplin: But I, I, but I wanted to sort of…

1020
02:27:27.680 --> 02:27:34.670
Terry Taplin: reiterate that I… that's why I'm so interested in the prohibition on no-fault eviction, conversion.

1021
02:27:36.850 --> 02:27:49.399
Boardroom: Thank you. Yeah, Vice Marilynopara. I think, in the interest of not trying to come up with an entirely new policy on the dais, we can, revert to the Planning Commission version of

1022
02:27:49.520 --> 02:27:51.340
Boardroom: the OMI evictions.

1023
02:27:51.730 --> 02:27:55.030
Boardroom: And that's my… of the owner move-in evictions.

1024
02:27:55.340 --> 02:27:57.230
Boardroom: So,

1025
02:27:59.160 --> 02:28:17.699
Boardroom: Yes. Yeah, okay. Do you want… I'm sorry, do you want to actually just repeat everything? I think that might be helpful. Yeah, it would… this motion, would approve the supplemental item without the affordable housing mitigation fee, or the changes to owner move-in evictions from the Planning Commission version.

1026
02:28:19.690 --> 02:28:37.169
Boardroom: So that would leave… sorry, I'm just pulling up my notes, I want to make sure I'm saying everything correctly. So that would leave the right of first refusal of 90 days and the conversion prohibition after no-fault evictions for 5 years? Correct.

1027
02:28:39.090 --> 02:28:39.860
Boardroom: Okay.

1028
02:28:40.730 --> 02:28:45.130
Boardroom: And just looking to see if anyone… Has other thoughts.

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1029
02:28:45.380 --> 02:28:49.480
Boardroom: I'm imagining a scenario where somebody has rented their

1030
02:28:49.680 --> 02:28:54.520
Boardroom: ADU, backyard ADU, to a tenant that… and it wasn't working out.

1031
02:28:54.720 --> 02:28:57.969
Boardroom: And they wanted to condoize it.

1032
02:28:58.440 --> 02:29:12.139
Boardroom: And I feel like what's being proposed right now, I do have empathy and concern for that landlord. I think… I think they need, because it is, as I alluded to before, this is more of a single-family home situation, it's a little more personal.

1033
02:29:12.410 --> 02:29:19.930
Boardroom: I'm… I do want to preserve that right, sort of, of who you get to live next to for homeowners.

1034
02:29:20.280 --> 02:29:26.019
Boardroom: So, but I… I don't know, I feel like there's still a compromise in here, but the…

1035
02:29:26.290 --> 02:29:29.180
Boardroom: It's the pairing of those two things that concerns me.

1036
02:29:33.910 --> 02:29:38.489
Boardroom: I guess, in that situation.

1037
02:29:39.560 --> 02:29:45.299
Boardroom: They would either have to wait 5 years, and if it is a no-fault eviction, because there are many, you know.

1038
02:29:46.180 --> 02:29:53.509
Boardroom: I don't know what it's called, but faulted evictions, that a homeowner can take

1039
02:29:54.130 --> 02:30:00.709

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Boardroom: If they perform a no-fault eviction, they would have to either wait 5 years, or they can just rent it out to another tenant in the meantime.

1040
02:30:02.270 --> 02:30:08.569
Boardroom: I don't know, I guess I don't think that we should… I'm worried about weighing,

1041
02:30:08.700 --> 02:30:10.429
Boardroom: About displacing that tenant.

1042
02:30:10.910 --> 02:30:20.249
Boardroom: And possibly pushing them into homelessness when the homeowner has multiple options to not live with that person, if it's not working out for them.

1043
02:30:20.570 --> 02:30:25.869
Boardroom: They don't have to condoize it, and yeah, it…

1044
02:30:30.850 --> 02:30:35.680
Boardroom: Okay, I just want to check and see if there are any comments, and then I think we should move forward and vote, yeah?

1045
02:30:35.960 --> 02:30:53.339
Boardroom: Yeah, just because I guess we're having a little bit of back and forth, I'd love to respond. I just… I want to say, I… I hear what you're saying, I think you're… I think we're going to agree to disagree, but I think what you're saying is reasonable. I just… I'm not… I'm just not comfortable with what's being proposed at this time, but I appreciate the argument. It's… it has a lot of merit.

1046
02:31:02.650 --> 02:31:06.589
Boardroom: How do you think… what would you propose differently?

1047
02:31:10.070 --> 02:31:15.680
Boardroom: I'm not sure, I'm just… I'm open to some sort of… less,

1048
02:31:16.480 --> 02:31:22.459
Boardroom: less draconian isn't quite the right word, but less strong tenant protections. Like, I am open to…

1049
02:31:22.580 --> 02:31:25.830

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Boardroom: something. I just… I do want to preserve

1050
02:31:27.780 --> 02:31:30.190
Boardroom: I don't know why this has come to just me, maybe.

1051
02:31:30.350 --> 02:31:34.049
Boardroom: maybe other people on my side aren't open to this at all.

1052
02:31:35.070 --> 02:31:39.520
Boardroom: Yeah, I just, I really want to make sure to preserve the… The right of a…

1053
02:31:40.130 --> 02:31:47.240
Boardroom: Of a homeowner, a single-family homeowner, to choose who lives next door to them, next on the same property as them.

1054
02:31:47.440 --> 02:31:50.900
Boardroom: I just, I want to preserve that, so whatever we do has to…

1055
02:31:51.250 --> 02:31:54.810
Boardroom: Make that possible, even when they want to do a condo conversion.

1056
02:31:57.190 --> 02:32:06.990
Boardroom: So, just, just being realistic, thinking about the votes that we have here, I do really want us to make a push for the 90-day,

1057
02:32:07.680 --> 02:32:15.400
Boardroom: a 90-day, right of refusal, because I do think that that's something that we can have votes for.

1058
02:32:15.630 --> 02:32:17.689
Boardroom: And so…

1059
02:32:19.320 --> 02:32:32.940
Boardroom: I just want to say that out loud with the hope that you might make an adjustment and focus just on that piece, because I do think that that piece is winnable, and at the same time, to address Councilmember O'Keefe's concerns.

1060
02:32:32.960 --> 02:32:50.450

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Boardroom: It's possible for us to have this provision after no-fault evictions for 5 years, unless… unless the owner is moving into the ADU, into the condo.

1061
02:32:50.860 --> 02:32:53.079
Boardroom: And that might address your concern.

1062
02:32:54.730 --> 02:32:58.490
Boardroom: Right, there's a difference between a no-fault eviction and an owner-move-in eviction.

1063
02:33:00.030 --> 02:33:00.890
Boardroom: No?

1064
02:33:01.520 --> 02:33:04.430
Boardroom: There's no difference between those. They have different names.

1065
02:33:06.440 --> 02:33:18.050
Boardroom: Yeah, because I agree, if you could… there's crossover, so they are not the same thing, but situation could happen where there's both.

1066
02:33:18.920 --> 02:33:32.180
Boardroom: Okay. I also have one more point. I have one more point, if I can add. If someone condoizes and sells their ADU, and then that person sells it to someone else, that homeowner has no choice over who lives there.

1067
02:33:33.470 --> 02:33:37.620
Boardroom: They can choose who they sell it to, but then that person can sell it to whoever they want.

1068
02:33:37.890 --> 02:33:41.979
Boardroom: So, it… it's kind of… yeah.

1069
02:33:45.840 --> 02:33:48.779
Boardroom: Does that make sense? Does that address your concern?

1070
02:33:51.030 --> 02:33:51.760
Boardroom: Let me think about it.

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1071
02:33:51.930 --> 02:33:55.539
Boardroom: They could have the most control if they keep renting it out.

1072
02:34:01.210 --> 02:34:03.910
Boardroom: Does my vote even matter? Why is everyone looking at me?

1073
02:34:03.910 --> 02:34:04.430
Terry Taplin: That's true.

1074
02:34:04.430 --> 02:34:09.310
Boardroom: Everyone's vote matters! Yes, sorry, go ahead, Councilmember Taplin.

1075
02:34:09.310 --> 02:34:14.750
Terry Taplin: Thanks, yeah, I appreciate the conversation. I, I, you know, just, you know, I think, you know.

1076
02:34:15.090 --> 02:34:21.859
Terry Taplin: I hear what everyone is saying, I see where we're trying to go, and I think between the…

1077
02:34:22.010 --> 02:34:31.010
Terry Taplin: what's on the table, I feel most confident that the main motion by Councilmember Humbert will get us

1078
02:34:31.540 --> 02:34:35.679
Terry Taplin: As close as we can get to where we want to be.

1079
02:34:39.380 --> 02:34:47.269
Boardroom: Okay, so our… Okay, I have one more last-ditch effort. Sure.

1080
02:34:47.380 --> 02:34:58.559
Boardroom: If we can compromise to… Only apply the, No-fault eviction prohibition for…

1081
02:34:58.690 --> 02:35:03.389
Boardroom: All covered current tenants, or all, sorry, all current tenants?

1082
02:35:03.650 --> 02:35:07.340

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Boardroom: And we can set a date for that. That does make the law more complicated, though.

1083
02:35:07.490 --> 02:35:13.229
Boardroom: Sorry, say that one more time. Only apply the no-fault eviction.

1084
02:35:13.520 --> 02:35:19.889
Boardroom: 5-year prohibition for all current tenants as of the time of the second reading, but that does make it a lot more complicated.

1085
02:35:20.260 --> 02:35:28.330
Boardroom: I don't know. Yeah. Can I… is it okay if I… Yeah, please, thank you. I… the thing that sort of happened for me when I… that was a really early argument, I just, you know…

1086
02:35:28.590 --> 02:35:35.879
Boardroom: I respect a good argument, so, want to name that. But I think what's happening for me is I'm just going back to my original

1087
02:35:36.310 --> 02:35:45.639
Boardroom: orientation to this, which is, like, I think that the Planning Commission staff recommendation just makes more sense, and it just feels cleaner to me.

1088
02:35:45.750 --> 02:35:52.890
Boardroom: And I do wanna… it would be nice if we could come up with a compromise and voted unanimously, but I don't think that's on the table.

1089
02:35:53.310 --> 02:35:57.360
Boardroom: And I think I'd rather just stick with Councilmember Humbertz.

1090
02:35:57.660 --> 02:35:58.530
Boardroom: Vice…

1091
02:35:58.800 --> 02:36:09.100
Boardroom: Yeah, Vice Mayor, I think the only thing that we might be able to pass to add on from what your supplemental is, is the 90-day,

1092
02:36:09.470 --> 02:36:16.770
Boardroom: Now I'm mixing up all my phrases, oh my lord. Thank you. The right of refusal, thank you. 90-day right of refusal,

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1093
02:36:16.900 --> 02:36:18.369
Boardroom: for, for ALT.

1094
02:36:19.530 --> 02:36:30.810
Boardroom: I'll amend my motion to just that, then. So then it would be, just to clarify, it would be, staff's recommendation with Councilmember, Humbert's…

1095
02:36:31.260 --> 02:36:37.039
Boardroom: Supplemental, and… but the 90 days would be included for all? For all ten… for all tenants, yes.

1096
02:36:37.330 --> 02:36:42.190
Boardroom: Okay. So, I believe there was a second from…

1097
02:36:42.360 --> 02:36:49.349
Boardroom: Councilmember Bartlett already, and so, in that case, I will ask if the clerk can take the role.

1098
02:36:49.350 --> 02:36:52.439
Terry Taplin: Does that mean we have the same motion twice, or…

1099
02:36:52.440 --> 02:36:53.940
Boardroom: No. No.

1100
02:36:54.510 --> 02:36:56.799
Terry Taplin: So what's… what is the… what's the difference between the two?

1101
02:36:56.800 --> 02:37:04.600
Boardroom: The addition, the addition is that the 90-day right of refusal would apply to all, as opposed to just the,

1102
02:37:05.570 --> 02:37:08.979
Boardroom: It would… the 90 days was just a change from a year.

1103
02:37:09.680 --> 02:37:11.190
Boardroom: In which motion?

1104

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02:37:11.850 --> 02:37:17.419
Boardroom: In Councilmember Humphrey's… And the substitute. Substitute. No, supplemental.

1105
02:37:18.030 --> 02:37:24.459
Boardroom: And council members… In the main motion. In the main motion, yeah. Okay.

1106
02:37:24.920 --> 02:37:26.159
Boardroom: Did you have a question?

1107
02:37:26.680 --> 02:37:32.070
Boardroom: I think that was my question, was how it… it's exactly Humbert's, but with a different number.

1108
02:37:32.470 --> 02:37:45.369
Boardroom: No, same number. What's the… but it would apply to more people. Okay, I guess my question is, Councilmember Humber Humbert had a, something extra, and I just want to make sure that's in it, or if it doesn't matter anymore, maybe he could speak to that.

1109
02:37:49.750 --> 02:37:51.040
Boardroom: Yes, go ahead.

1110
02:37:51.180 --> 02:37:59.129
Boardroom: So, the Planning Commission version, gives one year of right of first refusal for covered tenants.

1111
02:37:59.930 --> 02:38:03.310
Boardroom: Councilmember Humbert's change reduces that to 90 days.

1112
02:38:03.960 --> 02:38:07.430
Boardroom: My supplemental expands that to all tenants.

1113
02:38:08.050 --> 02:38:10.129
Boardroom: Oh. But only for 90 days.

1114
02:38:13.700 --> 02:38:14.400
Boardroom: Yeah.

1115
02:38:15.090 --> 02:38:18.539

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Boardroom: So to exempt partially covered and covered to 90 days.

1116
02:38:19.020 --> 02:38:21.829
Boardroom: Yes, 90 days of right of first refusal.

1117
02:38:21.990 --> 02:38:35.129
Boardroom: Thank you. Thanks for clarifying. Councilmember Humbert, did you want to say something as well? Yeah, I, no, I can't support that. I mean, there may be a majority that does, but I can't support it. Okay.

1118
02:38:35.290 --> 02:38:35.849
Boardroom: Thank you.

1119
02:38:35.850 --> 02:38:40.530
Terry Taplin: Yeah, I… yeah, I just… sorry, I'm… I'm out of order, my apologies.

1120
02:38:40.530 --> 02:38:43.089
Boardroom: No, no, go ahead, Councilmember Taplin, did you have a comment?

1121
02:38:43.930 --> 02:38:49.349
Terry Taplin: Yeah, it's just, it's just, it's, I mean, it's difficult to keep up, it's, you know, it's…

1122
02:38:49.630 --> 02:38:51.099
Terry Taplin: Difficult to parse.

1123
02:38:51.940 --> 02:38:53.619
Terry Taplin: On the fly like this.

1124
02:38:54.960 --> 02:38:58.830
Terry Taplin: I… I, my, you know, I remain…

1125
02:38:59.300 --> 02:39:03.049
Terry Taplin: My support for the main motion remains.

1126
02:39:05.940 --> 02:39:06.740
Boardroom: Okay.

1127

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02:39:07.030 --> 02:39:08.020
Boardroom: Thank you.

1128
02:39:09.870 --> 02:39:13.410
Boardroom: Okay, so I… I think we should take the roll. The substitute motion…

1129
02:39:14.680 --> 02:39:17.370
Boardroom: By Council Member, Vice Mayor Lunapara.

1130
02:39:17.520 --> 02:39:24.700
Boardroom: On the motion… Councilmember Taplin.

1131
02:39:24.700 --> 02:39:25.110
Terry Taplin: No.

1132
02:39:27.000 --> 02:39:28.809
Boardroom: Bartlett? Yes.

1133
02:39:30.200 --> 02:39:31.320
Boardroom: O'Keefe.

1134
02:39:32.090 --> 02:39:33.280
Boardroom: Yes.

1135
02:39:34.470 --> 02:39:36.140
Boardroom: Blackaby? No.

1136
02:39:36.470 --> 02:39:38.440
Boardroom: Unapara? Yes.

1137
02:39:38.780 --> 02:39:40.210
Boardroom: Humbert. No.

1138
02:39:40.540 --> 02:39:42.460
Boardroom: Mayor Ishii? Yes.

1139
02:39:42.860 --> 02:39:50.869
Boardroom: Okay, that motion fails. Alright, thank you. And then, on the main motion, By Council Member Humbert.

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1140
02:39:51.220 --> 02:39:55.260
Boardroom: Councilmember Taplin.

1141
02:39:55.540 --> 02:39:56.300
Terry Taplin: Yes.

1142
02:39:57.030 --> 02:39:59.420
Boardroom: Bartlett, Yes.

1143
02:40:00.050 --> 02:40:01.200
Boardroom: O'Keefe.

1144
02:40:01.520 --> 02:40:04.570
Boardroom: Yes. Blackaby? Yes.

1145
02:40:04.820 --> 02:40:06.770
Boardroom: Bunapara… No.

1146
02:40:07.480 --> 02:40:10.800
Boardroom: Humbert? Yes. And Mayor Ishii? Yes.

1147
02:40:10.980 --> 02:40:12.829
Boardroom: Okay, that motion carries.

1148
02:40:13.870 --> 02:40:18.650
Boardroom: Thank you. Sorry, no, that was a lot of sausage making. I really appreciate you all sitting through that.

1149
02:40:19.020 --> 02:40:26.389
Boardroom: Okay, I think we should take a 5-minute break so we can switch over to the next item.

1150
02:41:07.510 --> 02:41:09.769
Boardroom: Let's get back in it!

1151
02:41:09.960 --> 02:41:16.759
Boardroom: Hello, lovely people in the crowd! We're gonna get started again.

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1152
02:41:17.960 --> 02:41:23.629
Boardroom: Okay, Sam, Sirok, Rebecca, everyone, please…

1153
02:41:24.170 --> 02:41:29.429
Boardroom: Paul, Sydney… I'm just gonna start calling everyone by name.

1154
02:41:30.150 --> 02:41:31.360
Boardroom: Okay!

1155
02:41:32.360 --> 02:41:47.300
Boardroom: Alright, let's get started. Thank you so much. Alright, we've got a few more items left, so let's get going. We're gonna move on to item number 22, which is Public Health Vital Statistics Vital Records.

1156
02:41:47.300 --> 02:41:55.650
Boardroom: fees. We don't have a presentation from this, but I will ask if there are any questions from our council members. And I will also open the public hearing.

1157
02:41:57.300 --> 02:42:02.160
Boardroom: Questions from… Council members, about item number 22.

1158
02:42:12.470 --> 02:42:16.720
Boardroom: Okay, seeing no questions, I will ask if there are any public comments.

1159
02:42:19.570 --> 02:42:28.639
Boardroom: This is… maybe say the title of the… Yep. Any public comments for the Public Health Vital Statistics Vital Records Fees Item Number 22?

1160
02:42:29.400 --> 02:42:34.029
Boardroom: Oh, I'm trying to… I'm trying to figure out how closely I can relate this.

1161
02:42:34.300 --> 02:42:43.269
Boardroom: But I just want to say, given the leptospirosis that's come out, it's just ironic that when,

1162
02:42:43.470 --> 02:42:52.400
Boardroom: The bathrooms that were, portable bathrooms that were raised in 2017, and that passed, counsel…

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1163
02:42:52.530 --> 02:42:56.009
Boardroom: Which have now, 8 years later, were…

1164
02:42:56.240 --> 02:43:01.620
Boardroom: Have been, set aside, that we now are in the middle of another epidemic.

1165
02:43:01.890 --> 02:43:07.430
Boardroom: Because at 2017, the reason that passed council was because of the Hep A.

1166
02:43:07.970 --> 02:43:11.479
Boardroom: That had broken out in San Diego.

1167
02:43:11.890 --> 02:43:15.930
Boardroom: And it was spreading to Santa Cruz and other areas.

1168
02:43:16.220 --> 02:43:20.539
Boardroom: And I hope that we don't have to have

1169
02:43:20.920 --> 02:43:25.299
Boardroom: That widespread of an epidemic, again, that we have to be fearful of.

1170
02:43:25.620 --> 02:43:35.799
Boardroom: Before we recognize the importance of… or the community recognizes the importance of having sanitation, because sanitation has now come…

1171
02:43:35.950 --> 02:43:40.450
Boardroom: come up as the issue with the leptocerosis at Harrison. Thank you.

1172
02:43:40.960 --> 02:43:41.989
Boardroom: Thanks, Carol.

1173
02:43:42.150 --> 02:43:50.530
Boardroom: Any other comments online? One online commenter, this is on item 22, Public Health Vital Statistics.

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1174
02:43:50.640 --> 02:43:51.710
Boardroom: Fees.

1175
02:43:53.180 --> 02:43:54.670
Boardroom: And the hand went down.

1176
02:43:55.680 --> 02:44:01.070
Boardroom: Okay, no, no comment. Okay, thank you very much. Is there a motion to close the public hearing? So moved.

1177
02:44:01.410 --> 02:44:02.509
Terry Taplin: Is there a second?

1178
02:44:02.810 --> 02:44:10.150
Boardroom: Okay, thank you very much, Councilmember. Can we take the roll, please? Okay, to close the public hearing, Councilmember Kesarwani?

1179
02:44:11.960 --> 02:44:15.710
Boardroom: Councilmember Kessler wanted to close the public hearing. Yes. Taplin?

1180
02:44:15.710 --> 02:44:16.450
Terry Taplin: Yes.

1181
02:44:16.660 --> 02:44:20.219
Boardroom: Bartlett? Yes. Tregeb? Aye. O'Keefe?

1182
02:44:20.730 --> 02:44:30.169
Boardroom: Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mariishi? Yes. Okay. Okay, are there any council comments on this item?

1183
02:44:31.110 --> 02:44:33.079
Boardroom: Yeah. Yes, go ahead, Councilmember Humbert.

1184
02:44:33.390 --> 02:44:41.060
Boardroom: I do have one. I just want to thank Director Gilman and the staff at HHCS for preparing this item.

1185
02:44:41.370 --> 02:44:55.629

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Boardroom: No one likes death and taxes, and people… and people like a fee you pay after death even less. But we have to make sure these fees keep up with the cost of providing these vital services. Thankfully, these increases

1186
02:44:55.740 --> 02:45:04.479
Boardroom: For most people, we'll equate to just a few dollars over a lifetime, so I don't think we're pricing anyone out of being born or dying, and I'll support this item.

1187
02:45:05.790 --> 02:45:07.260
Boardroom: Okay, thank you.

1188
02:45:07.400 --> 02:45:09.800
Boardroom: Any other comments?

1189
02:45:10.650 --> 02:45:16.909
Boardroom: All right. And is there a motion to approve? So moved. Second.

1190
02:45:17.220 --> 02:45:24.300
Boardroom: Very good. Can we take the roll, please? Okay, to approve the item, Councilmember Kesarwani? Yes. Taplin?

1191
02:45:24.300 --> 02:45:25.060
Terry Taplin: Yes.

1192
02:45:25.060 --> 02:45:34.339
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay.

1193
02:45:34.390 --> 02:45:47.139
Boardroom: Motion carries. Thank you very much. Moving on to item number 23, changes to selected recreation and camps facilities and program fees. I believe there's also not a presentation for this one, so I will ask if there are any council questions.

1194
02:45:47.640 --> 02:45:56.830
Boardroom: Yes, Councilmember Bacabee. Thanks, Madam Mayor, and, Director Ferris is online, is that right? Oh, Director Farris, just a quick question,

1195
02:45:57.490 --> 02:46:00.429

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Boardroom: I think we've seen this in previous,

1196
02:46:00.580 --> 02:46:02.520
Boardroom: ports. Do you have a sense of…

1197
02:46:02.630 --> 02:46:19.270
Boardroom: not just the before and after of the proposal in Berkeley, but how we compare, kind of, our fee levels. And I know we can't do it at the level of every line item, but, kind of, any sense of where this puts us relative to neighboring jurisdictions with kind of our fee levels for these programs?

1198
02:46:20.280 --> 02:46:35.569
Scott Ferris: Yeah, a lot of those tables are, attached to the report, but generally, it puts us, either close to the middle or below… below the average for most other cities.

1199
02:46:36.000 --> 02:46:37.829
Scott Ferris: So it just depends on what program.

1200
02:46:38.850 --> 02:46:42.580
Boardroom: Okay, but we're not… definitely not in the case of kind of pushing ourselves

1201
02:46:43.160 --> 02:46:49.050
Boardroom: Higher than… we're at median, or a little below, not significantly above median, which is more my concern.

1202
02:46:49.400 --> 02:46:51.880
Scott Ferris: Correct. Okay. You know, in…

1203
02:46:53.020 --> 02:46:59.639
Scott Ferris: In the case of, Berkeley Tuolumne Camp, which… which these fees addressed, we are…

1204
02:47:00.680 --> 02:47:04.739
Scott Ferris: You know, in… in good shape, but, you know, it is,

1205
02:47:06.480 --> 02:47:15.450
Scott Ferris: It is a camp that a lot of services are provided, so the fees are inching up there, but we're still in good shape compared to other family camps.

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1206
02:47:15.740 --> 02:47:16.570
Boardroom: Thank you.

1207
02:47:18.010 --> 02:47:20.160
Boardroom: Alright, thank you very much.

1208
02:47:20.640 --> 02:47:34.530
Boardroom: Okay, since there's no… there are no more council questions, I'm gonna move to public comment. Are there any public comments on item 23, changes to selected recreation and camps, facilities, and program fees?

1209
02:47:38.130 --> 02:47:39.920
Boardroom: Is there anybody online?

1210
02:47:40.090 --> 02:47:47.340
Boardroom: One commenter online, this is, Alan. Alan, you should be able to unmute.

1211
02:47:48.850 --> 02:47:57.089
Allan Abshez: Thank you, good evening, members of the City Council. My name's Alan Epshez. I'm the chairperson of your Parks, Recreation, and Waterfront Commission.

1212
02:47:57.090 --> 02:48:12.239
Allan Abshez: In November, the Parks Commission received a presentation on the proposed recreation fees for fiscal year 2027. As you know, the Parks Commission's quite concerned about the adequacy of Berkeley Parks funding. Berkeley's currently unable to fund approximately $300 million

1213
02:48:12.410 --> 02:48:25.300
Allan Abshez: and capital and major parks maintenance projects. And on top of that, the department is facing a potential 10% budget cut in the coming year. Simply put, Berkeley's parks and programs are starved for adequate revenue.

1214
02:48:25.300 --> 02:48:28.469
Allan Abshez: After receiving staff's presentation on the proposed fees.

1215
02:48:28.470 --> 02:48:52.550

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Allan Abshez: The Commission unanimously recommended that staff revisit the proposed fees, because in many cases, Berkeley is charging and proposes to charge less for comparable recreational programs and facility rentals than jurisdictions that surround it. In many cases, materially less, as indicated in Attachment 3 to this item in your packet. The Commission felt that it makes no sense for Berkeley to continue undercharging for recreational facilities and programs.

1216
02:48:52.840 --> 02:49:09.720
Allan Abshez: Especially given Berkeley's current fiscal environment and park funding needs. Accordingly, my fellow commissioners ask that I appear tonight to request that the City Council not approve the proposed fee schedule, and instead direct staff to revisit the proposed fees and bring them into better line with the fees surrounded by surrounding jurisdictions.

1217
02:49:09.720 --> 02:49:14.659
Allan Abshez: Every dollar counts. Our parks are not in a thriving state. Thank you.

1218
02:49:17.910 --> 02:49:18.850
Boardroom: Thank you.

1219
02:49:19.560 --> 02:49:20.630
Boardroom: Thanks, Alan.

1220
02:49:21.300 --> 02:49:22.840
Boardroom: Any other comments?

1221
02:49:23.020 --> 02:49:25.439
Boardroom: No other commenters online.

1222
02:49:25.680 --> 02:49:31.850
Boardroom: Okay, very good. Thank you so much. I'd like to see if there's a motion to close the public hearing.

1223
02:49:33.790 --> 02:49:34.270
Terry Taplin: It's almost…

1224
02:49:34.270 --> 02:49:35.719
Boardroom: So, second.

1225

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02:49:36.140 --> 02:49:44.119
Boardroom: Alright, can we take the roll on that, please? Okay. To close the public hearing, Councilmember Kastarwani? Yes. Kaplan?

1226
02:49:44.120 --> 02:49:44.490
Terry Taplin: Yes.

1227
02:49:44.850 --> 02:49:48.930
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Aye.

1228
02:49:49.060 --> 02:50:01.530
Boardroom: Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mary Ishii? Yes. Okay. Public hearing's closed. Thank you very much. Are there any council comments on this item?

1229
02:50:02.830 --> 02:50:04.429
Boardroom: Yes, Councilmember O'Keefe?

1230
02:50:05.130 --> 02:50:10.000
Boardroom: Yeah, I just want to say briefly, Because I…

1231
02:50:10.510 --> 02:50:15.640
Boardroom: I've thrown a tantrum in the past about Adventure Playground fees. I just want to say this is fine.

1232
02:50:15.890 --> 02:50:17.940
Boardroom: And also…

1233
02:50:18.040 --> 02:50:33.050
Boardroom: the… I'm remembering, my kids have aged out of, needing camp now, but, I remember the Berkeley Day Camp. The affordability of it was a real lifesaver. As a teacher, I haven't needed camp that much, but a few times we did, and…

1234
02:50:33.680 --> 02:50:52.769
Boardroom: you wouldn't… if you don't know, you wouldn't believe how expensive summer camp can be, and having that relatively affordable option, of very high quality, childcare during the summer was amazing, and that said, this new fee is still very affordable, so I just want to mostly give an opportunity to shout out Berkeley Day Camp.

1235
02:50:52.850 --> 02:50:54.869

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Boardroom: Give some appreciation, and this is fine.

1236
02:50:55.370 --> 02:51:02.300
Boardroom: Thank you. Councilmember Humbert? Yeah, I just want to thank Director Farris and park staff for all the work on this.

1237
02:51:02.780 --> 02:51:19.210
Boardroom: Raising fees is never fun, but given our budget situation and broader inflation, these cost increases are necessary to preserve the facilities and programs that we all value and that are so, you know, useful to us in terms of maintaining our sanity.

1238
02:51:19.540 --> 02:51:32.010
Boardroom: And using our public facilities and programs remains a very good deal relative to purely private options. I also want to thank staff for devising the birthday package options. I thought that was

1239
02:51:32.060 --> 02:51:42.930
Boardroom: really creative and important. It's a great idea to offer folks this opportunity and encourage more use of these facilities while maintaining general open public access. Thank you.

1240
02:51:43.750 --> 02:51:45.989
Boardroom: Thank you, Councilmember Blackaby.

1241
02:51:46.600 --> 02:52:00.930
Boardroom: Thanks, Madam Mayor. Very briefly, I just wanted to, respond to, the, Parks Chair, comments, and I, I, I appreciate, the feedback, because, I do, I think there's a tricky balance here. We want these.

1242
02:52:01.110 --> 02:52:17.830
Boardroom: programs to be affordable and accessible for all our residents. I think that's, you know, that is the most important thing. These are services that, we want people to be able to avail themselves of. At the same time, we know we're entering a difficult, budget climate. So I'm certainly open, kind of moving forward to just, you know.

1243
02:52:17.830 --> 02:52:29.049
Boardroom: how else we need to kind of strike this balance. So, you know, I'm going to support, certainly, the proposal from our parks director and all the work that they've done in this, but…

1244
02:52:29.050 --> 02:52:42.579

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Boardroom: as we go through the coming months and the coming year, we're just gonna have to look… not… I'm not saying we're gonna look at, you know, just these things, but we have to look at a lot of things in our budget, in terms of how we are both generating revenue and also, providing services.

1245
02:52:42.580 --> 02:52:56.739
Boardroom: And so I'm open to, if we need to make future adjustments, to make sure that we are properly funding these things. But I do just, I do have a real sense of me making sure that it's accessible to everyone in Berkeley, and that, to me, is still the A number one.

1246
02:52:56.740 --> 02:53:02.670
Boardroom: goal, but I do appreciate the feedback from the Parks Commission, and I'm sensitive to that, and it's very good feedback. So thank you.

1247
02:53:03.010 --> 02:53:06.569
Boardroom: Thank you. Going to Councilmember Taplin online.

1248
02:53:06.750 --> 02:53:19.500
Terry Taplin: Thank you. On that note, I'm wondering whether it would be possible for staff to come back, as we enter the budget, season with potential options for,

1249
02:53:20.350 --> 02:53:22.459
Terry Taplin: Fee levels that we can consider.

1250
02:53:25.910 --> 02:53:33.510
Boardroom: Councilmember Taplan, we can, we can do that. We can incorporate Some additional, fee information.

1251
02:53:34.290 --> 02:53:39.809
Boardroom: as part of the budget deliberations when we come back, to Council through that process.

1252
02:53:40.880 --> 02:53:41.900
Terry Taplin: Wonderful thinking.

1253
02:53:42.590 --> 02:53:52.510
Boardroom: Thank you very much, and yes, just adding on my comments about the challenges that we are going to be facing, and the importance of

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1254
02:53:52.770 --> 02:54:04.319
Boardroom: of looking at all of the different options for increased fee revenue, while also balancing what Councilmember Blackaby brought up around access, that that's very important. So, thank you all so much for your comments there, and…

1255
02:54:04.320 --> 02:54:12.989
Boardroom: I know our Council really understands the challenges that we face ahead, and the importance of also considering, our values as a city.

1256
02:54:13.080 --> 02:54:26.080
Boardroom: I… did you want to say something else? Yeah, really quickly, just to follow up on that as well, and by the way, I love, Tuolumne Camp. This will be the, now, the second year we've taken our kids. It's amazing, and I will say, Scott, you're right, like.

1257
02:54:26.080 --> 02:54:37.299
Boardroom: the value for the amenities for what a family pays is, I mean, it's a very attractive option. So, as we're, you know, working with staff going forward, maybe the other way to think about it is making sure that certainly there's, you know.

1258
02:54:37.300 --> 02:54:49.820
Boardroom: If you are at the more modest end of the income spectrum, again, super affordable, make sure it's completely accessible, and there might be some income-based things you could look at, but just, we might be able to be creative in terms of

1259
02:54:49.820 --> 02:55:07.139
Boardroom: I don't want to be assessing big fee increases on folks to discourage them from using the services, so maybe there's some capacity or ability to pay that also comes into play, I don't know. I'm reluctant to go into this territory, but I think we're going to have to at least look at it as we move forward. So, thank you.

1260
02:55:07.140 --> 02:55:14.650
Boardroom: Absolutely, thank you. And I know that the Parks Department is particularly, you know, focused on equity and access.

1261
02:55:14.650 --> 02:55:31.360
Boardroom: And that there are some options for scholarships for different programs through the Parks and Recreation Department, so I just want to shout that out, to thank the department, but also to bring that to folks'

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attention if anyone's listening and, you know, is looking for some relief from some fees that we have.

1262
02:55:31.600 --> 02:55:39.030
Boardroom: Okay, so, we have already voted to close the public hearing, is there a motion to move this item forward?

1263
02:55:39.030 --> 02:55:39.860
Terry Taplin: I moved.

1264
02:55:40.430 --> 02:55:41.470
Boardroom: Thank you. Second.

1265
02:55:41.850 --> 02:55:50.150
Boardroom: Alright, can we take the roll, please, Clerk? Okay, to approve the changes to selected recreation and camps facilities and program fees.

1266
02:55:50.270 --> 02:55:53.639
Boardroom: Councilmember Kisserwine? Yes. Taplin?

1267
02:55:53.640 --> 02:55:54.610
Terry Taplin: Yes.

1268
02:55:54.610 --> 02:56:05.230
Boardroom: Bartlett? Yes. Tregev? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion.

1269
02:56:05.430 --> 02:56:08.339
Boardroom: Very good. Moving on to item 20. Thank you, staff.

1270
02:56:08.680 --> 02:56:23.450
Boardroom: Moving on to item 24, Amendments to Title 23 zoning to permit by-right approval of qualifying housing projects on sites identified in previous housing elements, and revisions related to design review. Whew!

1271
02:56:24.290 --> 02:56:25.960
Boardroom: Alright.

1272
02:56:26.720 --> 02:56:30.249
Boardroom: Jordan, where's my fun acronym? I'm just kidding.

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1273
02:56:30.440 --> 02:56:33.309
Boardroom: Let's see if we can come up with one on the fly.

1274
02:56:34.050 --> 02:56:38.560
Boardroom: Okay, I'm gonna pass it back to you, thank you.

1275
02:56:38.920 --> 02:56:46.430
Boardroom: Good evening again, Councilmembers Jordan Klein, I'm joined at the staff table by Ann Hirsch, Lady's Planning Manager,

1276
02:56:46.840 --> 02:56:56.869
Boardroom: Ann Burns, Senior Planner and our Design Review Lead, and Justin Horner, Principal Planner for Policy, and Justin is gonna bring up a very quick slide deck.

1277
02:57:06.680 --> 02:57:08.619
Boardroom: I think it's this one? No, this one, this one.

1278
02:57:30.080 --> 02:57:42.450
Boardroom: Mary Ishi, members of the City Council, Justin Horner, Planning Department staff. Tonight, I'll, present amendments to the zoning ordinance to enact Program 32 of the Housing Element regarding buy-right approvals of housing projects.

1279
02:57:42.490 --> 02:57:51.240
Boardroom: and revisions to our design review regulations for these Program 32 projects, and for middle housing projects in the MUR Zoning district.

1280
02:57:53.770 --> 02:58:09.090
Boardroom: The 2023-2031 Housing Element Update includes Program 32, which requires the City to amend its zoning code to reflect the requirements of the California Government Code that allow residential uses by right, that is, with a zoning certificate, for developments in…

1281
02:58:09.090 --> 02:58:17.050
Boardroom: Which, at least 20% of the units are affordable on sites that have been listed as opportunity sites in previous housing elements.

1282
02:58:18.120 --> 02:58:35.980
Boardroom: There are currently 14 such projects or properties that meet the government code requirement, which are included on the map in the

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slide and listed in your staff report. In future housing elements, the list of eligible parcels may change as some sites are developed, and others end up meeting the government code requirements.

1283
02:58:37.460 --> 02:58:45.870
Boardroom: The second item relates to design review for Program 32 projects and for residential projects in the MUR, a middle housing zoning district.

1284
02:58:46.580 --> 02:58:56.190
Boardroom: As you recall, the intent of the middle housing changes was to approve new code-compliant housing projects without any discretionary public hearings and without any appeal.

1285
02:58:57.500 --> 02:59:04.190
Boardroom: BMC Section 23.406.070 contains the City's design review requirements.

1286
02:59:04.340 --> 02:59:11.160
Boardroom: To summarize for our purposes here, design review is required for all projects in all non-residential districts.

1287
02:59:11.290 --> 02:59:25.739
Boardroom: Therefore, design review applies to projects in the MUR district, which is a manufacturing or non-residential district, as well as any projects on sites identified through Program 32, which are all in commercial, that is, non-residential districts.

1288
02:59:26.190 --> 02:59:34.309
Boardroom: Projects that do not require a use permit, such as Program 32 and Middle Housing Projects, receive staff-level design review.

1289
02:59:34.460 --> 02:59:46.459
Boardroom: However, staff-level design review decisions are appealable to the Zoning Adjustments Board, and ZAB's decisions on DR… on the DR appeal can be appealed to the City Council, although that is quite rare.

1290
02:59:47.690 --> 02:59:56.530
Boardroom: As being able to use DR to appeal a project to the City Council is inconsistent with the intent of ministerial approvals to avoid appeals.

1291
02:59:56.760 --> 03:00:06.220

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Boardroom: The proposed ordinance includes an abbreviated design review process recommended by the Planning Commission for MUR and Project 32 projects.

1292
03:00:07.160 --> 03:00:22.339
Boardroom: These include staff-level design review, one advisory visit to the design review committee for design-related input only, and a new provision that would exempt projects covered by this process from appeal to the ZAB

1293
03:00:22.490 --> 03:00:23.939
Boardroom: or the City Council.

1294
03:00:24.510 --> 03:00:29.550
Boardroom: That's the end of my presentation. Please hold a public hearing, and we're available for any questions.

1295
03:00:29.650 --> 03:00:33.230
Boardroom: Thank you very much. I'm going to, pass it

1296
03:00:33.520 --> 03:00:38.639
Boardroom: forward to… are you ready? Actually, yeah, yeah, I'll ask a question. You're gonna ask a question? Yeah.

1297
03:00:38.740 --> 03:00:48.760
Boardroom: Okay, you don't want to present your supplemental? It's… So, Madam Mayor, I don't have a supplemental. I have, two short amendments that I want to make to the ordinance.

1298
03:00:48.760 --> 03:00:52.939
Boardroom: But before I do that, I… so this is the public hearing, so I can ask a question.

1299
03:00:52.940 --> 03:01:10.870
Boardroom: Director Klein, can you just briefly explain what was your recommendation to the Planning Commission, or Mr. Horner, you know, whoever wants to take it, what was your recommendation to the Planning Commission as it relates to middle housing projects in the mixed-use residential zone.

1300
03:01:10.870 --> 03:01:14.709
Boardroom: And can you explain why you made that recommendation?

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1301
03:01:15.520 --> 03:01:29.370
Boardroom: Our initial recommendation for both Program 32 and for MUR projects, middle housing projects in the MUR was to exempt them from design review. This was, in our view, consistent with the City Council's intent to

1302
03:01:29.380 --> 03:01:37.999
Boardroom: Allow code-compliant projects to be approved ministerially and not be subject to any discretionary hearing or any appeal.

1303
03:01:38.040 --> 03:01:42.780
Boardroom: And we, in the process of, implementing

1304
03:01:42.890 --> 03:01:54.010
Boardroom: middle housing zoning changes came across this, particular provision that would create an appeal pathway for middle housing projects. We thought that we should remove that provision.

1305
03:01:54.310 --> 03:02:02.680
Boardroom: And, Mr. Horner, can you just clarify, why does the mixed-use residential zone… why does it historically

1306
03:02:03.640 --> 03:02:09.410
Boardroom: have this, requirement for design review, whereas the residential zones do not.

1307
03:02:10.160 --> 03:02:12.290
Boardroom: A design review is…

1308
03:02:12.480 --> 03:02:26.910
Boardroom: is required in any non-residential zone. So any commercial zone and any manufacturing zone, requires design review for any project. And so the MUR, although it permits residential, is classified as a manufacturing zone.

1309
03:02:27.090 --> 03:02:35.850
Boardroom: Okay, thank you very much. I think we should close the public hearing, and then I can, discuss my proposed amendments. Thank you. Sure, that's fine. Are there other questions?

1310
03:02:38.520 --> 03:02:39.335
Boardroom: Mmm…

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1311
03:02:40.540 --> 03:02:50.740
Boardroom: I no longer see Councilmember Taplin, but I think if his hand is raised, he'll pop up, so, I will then move us on to see if there are any public comments.

1312
03:02:51.780 --> 03:02:55.369
Boardroom: On this item. So, public comments on item…

1313
03:02:55.530 --> 03:03:06.040
Boardroom: 24, which is amendments to Title 23 zoning to permit by-right approval of qualifying housing projects on sites identified in previous housing elements, and revisions related to the design review.

1314
03:03:07.710 --> 03:03:10.799
Boardroom: Is there anyone online who has public comments on this item?

1315
03:03:10.920 --> 03:03:17.370
Boardroom: We have three, three hands raised. Okay. First speaker is, Clio.

1316
03:03:18.610 --> 03:03:20.890
Boardroom: Cleo, you should be able to unmute.

1317
03:03:23.560 --> 03:03:32.299
Cleo Masliah: Hi, I have a small observation here. I noticed that there's a property, 10449… 1049 Gilman Street.

1318
03:03:32.580 --> 03:03:35.910
Cleo Masliah: That is, in the list of, of properties.

1319
03:03:36.530 --> 03:03:41.999
Cleo Masliah: And that's the location of the Dollar Tree, and so I think the observation I'd like to make is that

1320
03:03:42.000 --> 03:03:59.329
Cleo Masliah: It's amazing that, you know, we're having by-right authorizations to build housing that are going to contain lots of, affordable housing, but we might also want to consider, that we want to keep things like the Dollar Tree, because this is my neighborhood, and it is the only affordable store.

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1321
03:03:59.330 --> 03:04:14.829
Cleo Masliah: in the entire neighborhood, and I know that I have neighbors who have been in the area for a very long time, and who, are on the, I'll say, lower end of the income spectrum, and for whom that store is invaluable.

1322
03:04:15.270 --> 03:04:29.099
Cleo Masliah: So, this is great, but while you're doing it, don't forget to, like, keep the actual, the affordable stores that, you know, people, who would benefit from the lower income units might actually, want to use.

1323
03:04:29.200 --> 03:04:30.020
Cleo Masliah: Thank you.

1324
03:04:31.540 --> 03:04:32.529
Boardroom: Thank you.

1325
03:04:32.820 --> 03:04:37.080
Boardroom: Next is Kelly… Hammergren?

1326
03:04:42.550 --> 03:04:45.260
kelly hammargren: Can you hear me okay, without an echo?

1327
03:04:45.430 --> 03:04:46.090
Boardroom: Yes.

1328
03:04:46.380 --> 03:04:47.030
kelly hammargren: Okay.

1329
03:04:47.470 --> 03:04:56.070
kelly hammargren: So, I really pushed for this design review when I heard it at the Planning Commission, because

1330
03:04:56.340 --> 03:05:13.219
kelly hammargren: I've been attending the Planning Commission for 10 years now. I've missed very, very few meetings. Design review has changed considerably in those 10 years from what it used to be, very picky and many, many meetings, and now with SB…

1331
03:05:13.420 --> 03:05:15.479

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Boardroom: 3.30, we only have…

1332
03:05:15.790 --> 03:05:23.579
kelly hammargren: Like, one… one meeting at the beginning, and then kind of a final on colors and products and things.

1333
03:05:23.740 --> 03:05:34.119
kelly hammargren: I always thought that, it was for the mixed-use projects, because, projects in residential areas that are,

1334
03:05:34.370 --> 03:05:38.730
kelly hammargren: The big apartment buildings do come to design review.

1335
03:05:38.920 --> 03:05:47.560
kelly hammargren: And design review really contributes a lot in terms of that Of the building, of just…

1336
03:05:47.680 --> 03:05:50.780
kelly hammargren: Seen so many projects over so many years.

1337
03:05:50.940 --> 03:05:55.940
kelly hammargren: To improve… to improve the project, make improvements.

1338
03:05:56.410 --> 03:06:02.899
kelly hammargren: There are some things that the architects as, you know, as good as they are, will miss.

1339
03:06:03.670 --> 03:06:10.529
kelly hammargren: And the design review makes significant contributions, and so that one…

1340
03:06:10.640 --> 03:06:15.539
kelly hammargren: A stop at design review is really not going to slow things down.

1341
03:06:15.990 --> 03:06:24.010
kelly hammargren: And there's a great benefit to improving the project, because once it's built.

1342
03:06:24.160 --> 03:06:31.400

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kelly hammargren: You can't change… you really can't change it, but the Design Review Committee can catch problems that have been

1343
03:06:31.780 --> 03:06:35.100
kelly hammargren: That, shall we say, not considered or missed.

1344
03:06:35.390 --> 03:06:46.000
kelly hammargren: In the development and the design of the, of the building, and it's just, it's just so important.

1345
03:06:46.000 --> 03:06:46.320
Boardroom: country.

1346
03:06:46.420 --> 03:06:50.110
kelly hammargren: Thank you so much, and I… Thank you, Kelly. Thanks for your comments.

1347
03:06:51.930 --> 03:06:58.409
Boardroom: And then, the last… speaker… is Brianna Morales.

1348
03:07:01.920 --> 03:07:13.190
Brianna Morales: Hi, good evening again. My name is Brianna Morales with the Housing Action Coalition. We're a member-supported advocacy organization working across California to advance housing at all income levels.

1349
03:07:13.220 --> 03:07:21.980
Brianna Morales: And we see this as really about follow-through. These sites were identified by the city, as appropriate places for housing.

1350
03:07:22.090 --> 03:07:33.970
Brianna Morales: And so, by allowing qualifying projects on these sites to move forward by right, the city is honoring commitments it made, in its housing element and bringing local rules into alignment with state law.

1351
03:07:34.040 --> 03:07:49.600
Brianna Morales: We see this as a balanced approach. It prevents housing, especially more affordable middle housing, to… from getting stuck in layers of process that add costs and uncertainty and delays without, improving outcomes.

1352

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03:07:49.830 --> 03:08:07.840
Brianna Morales: And I think importantly, for builders and communities alike, predictability is incredibly important. When housing can move forward more efficiently, we get home sooner and lower, overall costs and a better chance that projects serve, lower-income households actually pencil out.

1353
03:08:07.840 --> 03:08:17.640
Brianna Morales: It benefits not just future residents, but the broader community, like local businesses, schools, and neighborhoods that depend on people being able to live nearby.

1354
03:08:17.830 --> 03:08:24.019
Brianna Morales: It's a practical, people-focused step forward towards a more functional housing system.

1355
03:08:24.120 --> 03:08:34.579
Brianna Morales: And so, yeah, the Housing Action Coalition strongly supports this ordinance and encourages, it to move forward, so thank you for your time and continued leadership on housing.

1356
03:08:35.910 --> 03:08:36.950
Boardroom: Thank you.

1357
03:08:38.920 --> 03:08:41.250
Boardroom: Okay, that's… that's it.

1358
03:08:41.440 --> 03:08:56.740
Boardroom: Okay, very good. I will go back to… Actually, I'm gonna see if anyone has a… if there's a motion to close the public hearing. So moved. Second. Second. Can we take the roll on that, please, Clerk? Okay, to close the public hearing, Councilmember Kisarwani? Yes.

1359
03:08:56.890 --> 03:08:58.529
Terry Taplin: Taplin? Yes.

1360
03:08:58.800 --> 03:09:12.310
Boardroom: Bartlett? Yes. Craiga? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay. Okay, going to Council Comments, starting with Councilmember Kessarwani.

1361
03:09:13.200 --> 03:09:32.249

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Boardroom: Thank you very much, Madam Mayor. I hope we can, wrap this up relatively quickly. I want to thank our, Planning Director and Mr. Horner for your very brief presentation, and so I just want to recap. The, the Planning Department recommended that the, Planning Commission

1362
03:09:32.250 --> 03:09:48.079
Boardroom: eliminate the design review requirement for middle housing projects in the mixed-use residential zone, to better align with the council direction in the middle housing ordinance, which we, you know, we passed unanimously back in

1363
03:09:48.150 --> 03:10:00.850
Boardroom: I think it was June, July? Time flies. So, and what we said in the middle housing ordinance, remember, is we want to treat all residential zones, except for the hillside overlay zone.

1364
03:10:01.030 --> 03:10:04.119
Boardroom: equally. They are gonna get the same…

1365
03:10:04.300 --> 03:10:21.020
Boardroom: density per acre, dwelling units per acre. They are all going to have the opportunity to go through a buy-right, streamlined approval process. So I, I, I have great respect for our Planning Commission. I, it is my view that,

1366
03:10:21.020 --> 03:10:38.120
Boardroom: their recommendation to have this small slice of middle housing projects that are 5 or more units in the mixed-use residential zone, to have a requirement to have one non-binding design review meeting, I think that is going in…

1367
03:10:38.140 --> 03:10:40.870
Boardroom: the wrong direction,

1368
03:10:41.060 --> 03:10:52.110
Boardroom: And, the reason why is all other middle housing projects are going to be able to go straight to that permit counter with their plans, and they don't have to go to design review, and

1369
03:10:52.150 --> 03:11:05.809
Boardroom: I think we heard in public comment that there's no delay. There is a delay. The design review group, they meet monthly. That's a one-month delay. I don't think we need to do that, and I'm also thinking about the, potentially.

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1370
03:11:05.810 --> 03:11:12.179
Boardroom: New developers, people of color, people who are new, who are trying to get into this development industry.

1371
03:11:12.180 --> 03:11:30.520
Boardroom: I think we should be lowering barriers and making it easier to enter this market, and so I have a brief amendment that just reverts back to what the staff proposed, that we're not going to require design review for middle housing projects of 5 units or more in the mixed-use residential zone.

1372
03:11:30.520 --> 03:11:34.720
Boardroom: On the housing element opportunity sites, it's interesting that staff

1373
03:11:34.930 --> 03:11:39.619
Boardroom: was… they're also saying no design review. When I looked at it.

1374
03:11:39.620 --> 03:11:59.429
Boardroom: today, you know, other sites in commercial zones do go to design review. It's typically one non-binding meeting. I don't, see anything wrong with that. What I'm trying to do with these amendments is, like, let's just treat like projects the same. So all middle housing projects in the City of Berkeley will be treated the same, no design review.

1375
03:11:59.430 --> 03:12:19.279
Boardroom: all of these sites and commercial zones will be treated essentially the same. They will go to design review. Those are going to be bigger projects. They may, you know, have greater benefit from the design review experience. So with that, I'm going to share screen on Zoom and introduce… oh, someone else is sharing.

1376
03:12:26.290 --> 03:12:29.379
Boardroom: Let's see… Sure, okay.

1377
03:12:30.940 --> 03:12:35.180
Boardroom: share… let's see if I can get the… Amendments up.

1378
03:12:39.750 --> 03:12:52.860

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Boardroom: Those are visible. Okay, so the first amendment here is in this B1A. We are just saying, except for residential uses in the MUR zoning district.

1379
03:12:53.510 --> 03:12:55.549
Boardroom: Oh, oh, even bigger, apologies.

1380
03:12:56.610 --> 03:12:58.540
Boardroom: as big as I can go…

1381
03:13:01.300 --> 03:13:03.419
Boardroom: And still have it be visible, okay.

1382
03:13:03.610 --> 03:13:21.430
Boardroom: Okay, so that's the first edit, and then these edits below, these are the amendments that came out of Planning Commission. And so what we're doing is we're leaving the housing element opportunity site portion, but we're just striking the piece about MUR, and for projects including 5 or more units.

1383
03:13:21.540 --> 03:13:24.760
Boardroom: This, again, is just to treat all middle housing projects

1384
03:13:24.850 --> 03:13:40.399
Boardroom: of any unit number in any zone the same. And, you know, on a personal note, as somebody who represents this mixed-use residential zone on the far west side of the city, formerly red-lined area, it just rubbed me the wrong way that we would treat this

1385
03:13:40.400 --> 03:13:58.900
Boardroom: this part of town for projects that are trying to do a lot of density, 5 or more. We're gonna put them through the wringer. I don't think we should be doing that. So these are the amendments, so I'd like to pass a motion to… or make a motion to pass this ordinance with the amendments shown on the screen.

1386
03:13:59.000 --> 03:13:59.840
Terry Taplin: Second.

1387
03:13:59.960 --> 03:14:00.989
Boardroom: Thank you.

1388

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03:14:02.190 --> 03:14:05.109
Boardroom: Thank you. Any other Council comments? Oh.

1389
03:14:05.340 --> 03:14:07.080
Boardroom: Yes, Councilmember Treykov.

1390
03:14:07.630 --> 03:14:10.780
Boardroom: Thank you so much,

1391
03:14:11.420 --> 03:14:19.959
Boardroom: I, I just wanted to conform with Councilmember Kesarwani, and I appreciate your, suggestions.

1392
03:14:20.200 --> 03:14:25.030
Boardroom: to clarify, this would only exempt MUR.

1393
03:14:27.230 --> 03:14:30.670
Boardroom: Our, middle housing title,

1394
03:14:30.940 --> 03:14:42.979
Boardroom: grassy housing-type proposal, but it would not… Alter anything under, Like, the proposed,

1395
03:14:43.800 --> 03:14:45.529
Boardroom: Let me see if I can pull it up.

1396
03:14:45.800 --> 03:14:49.080
Boardroom: The balance of the,

1397
03:14:49.480 --> 03:14:52.819
Boardroom: items, and I'm specifically looking at,

1398
03:14:53.100 --> 03:14:56.459
Boardroom: For example, the 14 sites,

1399
03:14:56.960 --> 03:15:21.270
Boardroom: under Program 32, three of which are in my district. So, yes, we're gonna, go with the Planning Commission recommendation for that, which is those housing element opportunity sites, including the three in your district, they will have the non-biting design review meeting, an

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opportunity to improve the design of the project. With this middle housing in the mixed-use residential zone.

1400
03:15:21.360 --> 03:15:39.859
Boardroom: It's, it's, the way I think about it is we're just treating those projects the same as the projects in the R zone. So, so where I live in R2, there is no design review requirement. If I want to transform my parcel into a 5-plus unit middle housing.

1401
03:15:40.100 --> 03:15:50.359
Boardroom: middle-income development. So we're just saying, if you go far west to mixed-use residential, you'd have the same treatment with this amendment.

1402
03:15:50.510 --> 03:15:52.050
Boardroom: Thank you. You're welcome.

1403
03:15:55.290 --> 03:15:57.180
Boardroom: Okay, thank you, Councilmember O'Keefe.

1404
03:15:58.310 --> 03:16:03.019
Boardroom: Yeah, I just want to say I'm supporting, I'll support,

1405
03:16:03.260 --> 03:16:07.519
Boardroom: Councilmember Cassarwani's motion, and I just… I really need to say.

1406
03:16:08.460 --> 03:16:24.989
Boardroom: I think was my hottest take has always been that design review is a waste of time, and I think we should get rid of it as much as possible. Architecture is an art form, and I don't think art, benefits from a committee. So, that's my hot take, so yes, I like this. More of this, please.

1407
03:16:25.680 --> 03:16:28.460
Boardroom: Thank you. Vice Mayor Lunapara.

1408
03:16:28.680 --> 03:16:30.859
Boardroom: I support the motion as well.

1409
03:16:32.440 --> 03:16:35.090
Boardroom: Okay, any other comments?

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1410
03:16:35.470 --> 03:16:54.500
Boardroom: Okay. Yeah, sorry, I forgot we were in comments, but I, I, I will support this item, although, and this is where, my colleague and I have maybe a slight, albeit respectful, disagreement, having sort of done the design review committee.

1411
03:16:54.500 --> 03:17:03.239
Boardroom: I, I think, committee members do good work, and, and I know that was not actually your comment, but,

1412
03:17:03.240 --> 03:17:08.400
Boardroom: I think the committee is very efficient. I think it reviews project most

1413
03:17:08.400 --> 03:17:22.050
Boardroom: design review projects don't come back for a second design review meeting. That said, it does make sense from a consistency and equity standpoint, to make the further,

1414
03:17:22.520 --> 03:17:28.539
Boardroom: alteration to this proposal suggested by Councilmember Cassarwani, so I'll be supporting the motion.

1415
03:17:30.020 --> 03:17:35.989
Boardroom: Alright, thank you very much. And then we have a motion on the floor.

1416
03:17:36.430 --> 03:17:47.129
Boardroom: Do we have a motion on 4? Yes, we do. Sorry, I couldn't remember the second. Alright, I am also going to be supporting the motion, so if we could take the roll, please, Clerk. Okay, on the…

1417
03:17:47.870 --> 03:17:52.510
Boardroom: On the motion by Councilmember Kisarwani, Councilmember Kisarwani?

1418
03:17:52.610 --> 03:17:53.440
Boardroom: Yes.

1419
03:17:53.440 --> 03:17:54.900
Terry Taplin: Kaplan? Yes.

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1420
03:17:55.140 --> 03:18:08.060
Boardroom: Bartlett? Yes. Craigam? Aye. O'Keefe? Yes. Blackby? Yes. Bunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion cares. Thank you very much. Thank you very much, staff.

1421
03:18:09.020 --> 03:18:10.509
Boardroom: Thanks for being here!

1422
03:18:12.210 --> 03:18:19.449
Boardroom: to the late hour of 9.56 PM. Councilmember Casserone, will you email that to me? I'll email that to you. Thank you.

1423
03:18:21.340 --> 03:18:27.060
Boardroom: Okay, so, now, public comment on items not listed on the agenda.

1424
03:18:27.730 --> 03:18:34.879
Boardroom: Thank you. First, I want to say those thrown bathrooms, they just open up.

1425
03:18:35.450 --> 03:18:40.560
Boardroom: They just open up after 10 minutes. So, ready or not, you're exposed.

1426
03:18:40.890 --> 03:18:44.719
Boardroom: And, last night, I…

1427
03:18:45.190 --> 03:18:58.849
Boardroom: was, near San Pablo Avenue, and I noticed an older man in a wheelchair outside the Everett and Jones. This is about 9 o'clock at night. He didn't… he wasn't…

1428
03:18:59.890 --> 03:19:04.440
Boardroom: properly clothed for the weather, I could share my scarf and my…

1429
03:19:04.580 --> 03:19:22.920
Boardroom: And a hat and a jacket with him, but he was clearly cognitively impaired, isolated out there by himself, so I engaged with him. He didn't know how he got there. He didn't even know he was in Berkeley, and,

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1430
03:19:23.540 --> 03:19:38.310
Boardroom: after… it took almost… I was with him for almost an hour, or probably over an hour after 10 o'clock, and, you know, mobile… there was no mobile crisis, but I have to say the officer that responded, the Berkeley Police Department.

1431
03:19:38.430 --> 03:19:53.500
Boardroom: was Officer Edwin Jacala, and he was incredibly empathetic, the way he communicated with the man. It was just, he was very, very sensitive to him, very kind, making him comfortable.

1432
03:19:53.500 --> 03:20:04.779
Boardroom: And, it was just really good to see an officer that was trained and skilled in this way, that was aware, you know, and he was taken.

1433
03:20:04.780 --> 03:20:17.979
Boardroom: away, in an ambulance, but to see that situation, that it could have gotten so much worse, because the man… I was holding onto his wheelchair, he kept trying to wheel away, because he was convinced he was going to make himself warmer if he…

1434
03:20:18.070 --> 03:20:20.259
Boardroom: Wheeled miles away.

1435
03:20:21.340 --> 03:20:32.680
Boardroom: But it was… that officer really deserves to be thanked for that. What was the name again of the officer? Officer Edwin Giacala. Thank you.

1436
03:20:32.820 --> 03:20:45.669
Boardroom: We can… Thank you. Thanks. We can have our city manager pass it on to, thanks to him as well. Thank you. Other, public comment on items not listed on the agenda?

1437
03:20:47.280 --> 03:20:55.339
Boardroom: Anyone online? Yeah, we have four hands online. First is a caller phone number ending in 211.

1438
03:21:01.190 --> 03:21:04.919
1510****211: Well, good to talk to you… good to talk to you tonight. I'd just like to remind you.

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1439
03:21:05.210 --> 03:21:11.349
1510****211: Our great company contributed more, over $1.2 million, to the City of Berkeley Finance.

1440
03:21:11.810 --> 03:21:19.229
1510****211: And business license, a business license to be $60,000, $70,000 a year, as well as sales tax, which is to get 1%.

1441
03:21:19.640 --> 03:21:28.719
1510****211: So let's go forward. We're not only losing, we're in business, but our customers are losing, and many of them are crushing you.

1442
03:21:29.110 --> 03:21:39.870
1510****211: for the fact that he did nothing, when he had 7 places vacant, and rent more. And eventually he rented for one buck. When we talked to this woman, we told her we'll pay anything she wants.

1443
03:21:40.160 --> 03:21:41.479
1510****211: We're never given a chance.

1444
03:21:41.750 --> 03:21:45.979
1510****211: Let's fix what was done wrong, and go forward.

1445
03:21:46.300 --> 03:21:55.349
1510****211: Again, we are dealing with horrible time with this monitor in the White House, so we need all of our strengths to build the city of Berkeley as it was before.

1446
03:21:55.460 --> 03:21:56.450
1510****211: Have a good night.

1447
03:21:57.750 --> 03:21:59.250
Boardroom: Thank you. Thank you.

1448
03:22:00.050 --> 03:22:02.390
Boardroom: And we have Alfred Tu.

1449
03:22:05.270 --> 03:22:25.120

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Alfred Twu: Hi, everyone! I want to invite everyone to the Friday kickoff of Connect Bay Area, the ballot measure initiative to fund and save transit in the Bay Area. I want to give a big thanks to everyone who's already endorsed the measure, encourage everyone else to as well, at connectbayarea.org.

1450
03:22:25.380 --> 03:22:38.380
Alfred Twu: And there will be a kickoff at 10 o'clock on Friday at the Embarcadero Plaza, and then another one at 12.15 at the Alameda County Administration Building in Oakland. Hope to see you there! Thank you!

1451
03:22:38.920 --> 03:22:41.399
Boardroom: Thank you, Halfred.

1452
03:22:41.550 --> 03:22:44.950
Boardroom: Alright, and then we have Daniel Brownson.

1453
03:22:47.580 --> 03:22:56.910
Daniel Brownson: Hello. So recently, Santa Cruz became, I believe, the first city to terminate their contract with Flock Safety.

1454
03:22:57.440 --> 03:22:59.760
Daniel Brownson: Berkeley should follow suit.

1455
03:23:00.260 --> 03:23:06.069
Daniel Brownson: We know that the owners of this company, the people who run it, are deep.

1456
03:23:06.180 --> 03:23:20.129
Daniel Brownson: In… with, ties to the Trump administration. We know that despite prohibitions on them doing so before they have shared, information with ICE,

1457
03:23:20.250 --> 03:23:26.170
Daniel Brownson: We know that ICE is coming to the Bay Area. Minneapolis will not be the end.

1458
03:23:27.040 --> 03:23:30.739
Daniel Brownson: These cameras, as long as they are up.

1459
03:23:31.180 --> 03:23:36.239
Daniel Brownson: Our weapons pointed at the very heart of our community.

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1460
03:23:36.500 --> 03:23:55.339
Daniel Brownson: It's time to take them down. People will say, oh, but what about public safety? But at the current moment, there's no greater threat to the public safety of our community than the rising fascism that is now very much here, as we can see.

1461
03:23:55.340 --> 03:24:08.219
Daniel Brownson: In Minneapolis. And those cameras will be used to track those who try to stand up against the fascist incursion when it comes to Berkeley, which it will.

1462
03:24:08.910 --> 03:24:10.050
Boardroom: Thanks.

1463
03:24:10.370 --> 03:24:11.740
Boardroom: Thank you, Daniel.

1464
03:24:12.260 --> 03:24:15.239
Boardroom: We have, Janice Ching.

1465
03:24:20.850 --> 03:24:27.169
Janis Ching: Thank you for taking my comment. I just have to, say on that last item that you discussed.

1466
03:24:27.180 --> 03:24:43.680
Janis Ching: I don't understand why Council members can propose supplementals after the public comment is closed. I appreciate, Mayor Ishii, that you offered, the Councilmember to present the supplemental, but

1467
03:24:43.930 --> 03:24:52.370
Janis Ching: you know, maybe I missed it, I read the packet, I listened to the staff report, I thought I understood the, item, and then…

1468
03:24:52.540 --> 03:24:58.060
Janis Ching: a supplemental is brought forward, and I wasn't able then, comment about.

1469
03:24:58.440 --> 03:25:10.610
Boardroom: the new proposal, and it passes. Yeah, Janice, I'm sorry, but this is actually public comment for items not listed on the agenda, since

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the item that you're referring to was on the agenda already. I understand your comment.

1470
03:25:10.610 --> 03:25:14.860
Janis Ching: I'm not commenting on the item, I'm commenting on the process.

1471
03:25:15.290 --> 03:25:26.579
Janis Ching: That, council members are allowed to bring supplementals that completely change the staff recommendation after public comment is made and closed.

1472
03:25:26.790 --> 03:25:41.340
Janis Ching: So, I just want to voice my opposition to that. If it's, you know, if we're at the meeting to comment on an item, we should hear all of what is going to be proposed, especially when it's already

1473
03:25:41.450 --> 03:25:45.330
Janis Ching: stated that there is a supplemental, it would have been good to hear it.

1474
03:25:48.930 --> 03:25:51.419
Boardroom: Thank you for your comment.

1475
03:25:52.100 --> 03:26:06.690
Boardroom: I appreciate… I appreciate what you're saying, and I do just want to say that, you know, that there can be changes that are made on the dais, that are completely different from our… what are in the agenda packet, just generally, and I understand that that can be frustrating, and the purpose of,

1476
03:26:07.590 --> 03:26:21.539
Boardroom: you know, closing the public hearing, is… and is really so that, we can actually take a vote on what we're talking about. So I understand it's… it's frustrating, and appreciate your comment. Are there other comments online?

1477
03:26:22.230 --> 03:26:24.770
Boardroom: Yes, 2 more. Kelly Hammergren?

1478
03:26:31.160 --> 03:26:36.379
kelly hammargren: I know surveillance is coming up at… Next meeting.

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1479
03:26:36.550 --> 03:26:40.640
kelly hammargren: And… It's very concerning.

1480
03:26:40.780 --> 03:26:47.850
kelly hammargren: My family's in the greater Twin Cities area, Minneapolis, St. Paul, Minnesota.

1481
03:26:49.050 --> 03:26:56.890
kelly hammargren: And whatever you've seen on television, or may have heard, or have seen on videos, It's worse.

1482
03:26:57.970 --> 03:27:01.269
kelly hammargren: It's worse than that, for the people that are there.

1483
03:27:02.240 --> 03:27:03.430
kelly hammargren: It is.

1484
03:27:04.020 --> 03:27:05.310
kelly hammargren: Terrifying.

1485
03:27:05.520 --> 03:27:07.189
kelly hammargren: It's terrible.

1486
03:27:08.600 --> 03:27:17.620
kelly hammargren: people are being sheltered. My… It's just really awful.

1487
03:27:18.590 --> 03:27:22.440
kelly hammargren: And… At some point, they'll probably be here.

1488
03:27:22.940 --> 03:27:23.860
Boardroom: And…

1489
03:27:23.860 --> 03:27:25.780
kelly hammargren: I think you all need to be…

1490
03:27:26.360 --> 03:27:30.560
kelly hammargren: thinking about the future. We're no longer living in the same kind of

1491

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03:27:31.080 --> 03:27:34.789
kelly hammargren: World, the same kind of democracy that we thought we had.

1492
03:27:35.020 --> 03:27:38.579
kelly hammargren: Even though democracy wasn't the same for everyone.

1493
03:27:39.550 --> 03:27:42.829
kelly hammargren: But this is… this is very, very bad.

1494
03:27:44.580 --> 03:27:48.970
kelly hammargren: So I'll leave you with that thought for the night.

1495
03:27:49.610 --> 03:27:50.279
kelly hammargren: Thank you.

1496
03:27:50.930 --> 03:27:52.030
Boardroom: Thank you, Kelly.

1497
03:27:54.300 --> 03:27:56.299
Boardroom: Jeff Lomax?

1498
03:27:59.640 --> 03:28:24.159
Geoff Lomax - CIRM: Yeah, Kelly's always a tough act to follow, and that was a great comment, so thanks for that, but I do want to return to the previous comment. I mean, I actually supported Member Keshawani's amendment, but I do agree that the, you're basically icing out… you can substantially change an item, and then you're icing the public out of any participation in that change, and you all have the discretion to re-invite

1499
03:28:24.490 --> 03:28:29.949
Geoff Lomax - CIRM: comment, so nothing has to change, but I think once you make a substantial change to

1500
03:28:29.950 --> 03:28:47.430
Geoff Lomax - CIRM: an item you should give the public who are spending their time and their intellect to be part of this process the opportunity to respond once that change is made. So, I just want to concur with the prior comment, and again, thank Kelly. I agree completely. Have a good evening.

1501

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03:28:47.890 --> 03:28:49.349
Geoff Lomax - CIRM: Thank you for your comment.

1502
03:28:50.960 --> 03:28:58.770
Boardroom: Are there other comments? That's the last, commenter. Thank you very much, everyone. Okay, with that, I will see if there's a… I will entertain a motion to adjourn.

1503
03:28:59.010 --> 03:29:00.880
Boardroom: So moved. Second.

1504
03:29:01.220 --> 03:29:02.829
Boardroom: Can we take the roll, please, Clerk?

1505
03:29:04.130 --> 03:29:08.630
Boardroom: To adjourn, Councilmember Kisarwani? Yes. Taplin?

1506
03:29:08.630 --> 03:29:09.310
Terry Taplin: Yes.

1507
03:29:09.630 --> 03:29:17.569
Boardroom: Bartlett? Yes. Trego? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. Maraishii?

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